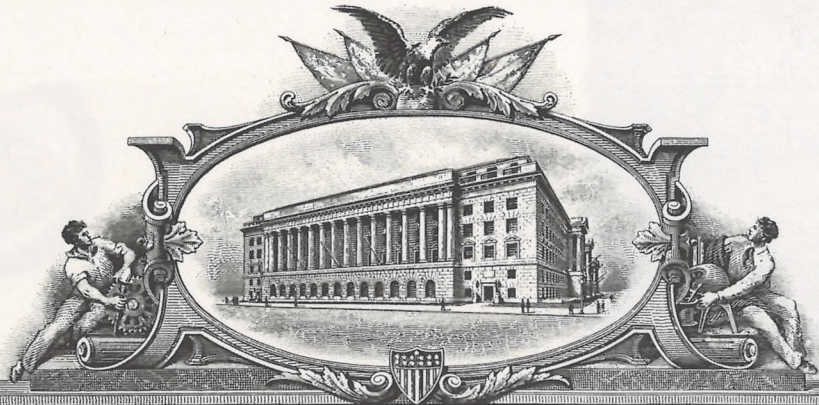


Appendix C

Certified Copy of Prosecution History of U.S. Patent No.
8,398,165

8712772



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OF:

APPLICATION NUMBER: 12/981,176

FILING DATE: December 29, 2010

PATENT NUMBER: 8,398,165

ISSUE DATE: March 19, 2013

By Authority of the
Under Secretary of Commerce for Intellectual Property
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Shakena Harrison

Shakena Harrison
Certifying Officer



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Application Data Sheet 37 CFR 1.76		Attorney Docket Number	LGPL.153597
		Application Number	
Title of Invention	POWERED ROCKER RECLINER LINKAGE MECHANISM		
The application data sheet is part of the provisional or nonprovisional application for which it is being submitted. The following form contains the bibliographic data arranged in a format specified by the United States Patent and Trademark Office as outlined in 37 CFR 1.76. This document may be completed electronically and submitted to the Office in electronic format using the Electronic Filing System (EFS) or the document may be printed and included in a paper filed application.			

Secrecy Order 37 CFR 5.2

- ☐ Portions or all of the application associated with this Application Data Sheet may fall under a Secrecy Order pursuant to 37 CFR 5.2 (Paper filers only. Applications that fall under Secrecy Order may not be filed electronically.)

Applicant Information:

Applicant 1						Remove	
Applicant Authority		☒ Inventor		☐ Legal Representative under 35 U.S.C. 117		☐ Party of Interest under 35 U.S.C. 118	
Prefix	Given Name	Middle Name	Family Name		Suffix		
	Gregory	M.	Lawson				
Residence Information (Select One)		☒ US Residency ☐ Non US Residency ☐ Active US Military Service					
City	Tupelo	State/Province	MS	Country of Residence ⁱ	US		
Citizenship under 37 CFR 1.41(b) ⁱ		US					
Mailing Address of Applicant:							
Address 1		133 Woodland Avenue					
Address 2							
City	Tupelo	State/Province	MS				
Postal Code	38801	Country ⁱ	US				
All Inventors Must Be Listed - Additional Inventor Information blocks may be generated within this form by selecting the Add button. Add							

Correspondence Information:

Enter either Customer Number or complete the Correspondence Information section below. For further information see 37 CFR 1.33(a).			
☐ An Address is being provided for the correspondence Information of this application.			
Customer Number	05251		
Email Address	BTABOR@SHB.COM	Add Email	Remove Email
Email Address	IPDOCKET@SHB.COM	Add Email	Remove Email

Application Data Sheet 37 CFR 1.76		Attorney Docket Number	LGPL.153597
		Application Number	
Title of Invention	POWERED ROCKER RECLINER LINKAGE MECHANISM		

Application Information:

Title of the Invention	POWERED ROCKER RECLINER LINKAGE MECHANISM		
Attorney Docket Number	LGPL.153597	Small Entity Status Claimed	☐
Application Type	Nonprovisional		
Subject Matter	Utility		
Suggested Class (if any)		Sub Class (if any)	
Suggested Technology Center (if any)			
Total Number of Drawing Sheets (if any)	8	Suggested Figure for Publication (if any)	4

Publication Information:

☐	Request Early Publication (Fee required at time of Request 37 CFR 1.219)
☐	Request Not to Publish. I hereby request that the attached application not be published under 35 U.S.C. 122(b) and certify that the invention disclosed in the attached application has not and will not be the subject of an application filed in another country, or under a multilateral international agreement, that requires publication at eighteen months after filing.

Representative Information:

Representative information should be provided for all practitioners having a power of attorney in the application. Providing this information in the Application Data Sheet does not constitute a power of attorney in the application (see 37 CFR 1.32). Enter either Customer Number or complete the Representative Name section below. If both sections are completed the Customer Number will be used for the Representative Information during processing.			
Please Select One:	☒ Customer Number	☐ US Patent Practitioner	☐ Limited Recognition (37 CFR 11.9)
Customer Number	05251		

Domestic Benefit/National Stage Information:

This section allows for the applicant to either claim benefit under 35 U.S.C. 119(e), 120, 121, or 365(c) or indicate National Stage entry from a PCT application. Providing this information in the application data sheet constitutes the specific reference required by 35 U.S.C. 119(e) or 120, and 37 CFR 1.78(a)(2) or CFR 1.78(a)(4), and need not otherwise be made part of the specification.			
Prior Application Status		Remove	
Application Number	Continuity Type	Prior Application Number	Filing Date (YYYY-MM-DD)
	non provisional of	61295546	2010-01-15
Additional Domestic Benefit/National Stage Data may be generated within this form by selecting the Add button.			Add

Foreign Priority Information:

This section allows for the applicant to claim benefit of foreign priority and to identify any prior foreign application for which priority is not claimed. Providing this information in the application data sheet constitutes the claim for priority as required by 35 U.S.C. 119(b) and 37 CFR 1.55(a).

Application Data Sheet 37 CFR 1.76		Attorney Docket Number	LGPL.153597
		Application Number	
Title of Invention	POWERED ROCKER RECLINER LINKAGE MECHANISM		

			Remove
Application Number	Country ⁱ	Parent Filing Date (YYYY-MM-DD)	Priority Claimed
			☐ Yes ☒ No
Additional Foreign Priority Data may be generated within this form by selecting the Add button.			Add

Assignee Information:

Providing this information in the application data sheet does not substitute for compliance with any requirement of part 3 of Title 37 of the CFR to have an assignment recorded in the Office.			
Assignee 1			Remove
If the Assignee is an Organization check here. ☒			
Organization Name	L & P Property Management Company		
Mailing Address Information:			
Address 1	4095 Firestone Blvd		
Address 2			
City	South Gate	State/Province	CA
Country ⁱ	US	Postal Code	90280
Phone Number		Fax Number	
Email Address			
Additional Assignee Data may be generated within this form by selecting the Add button.			Add

Signature:

A signature of the applicant or representative is required in accordance with 37 CFR 1.33 and 10.18. Please see 37 CFR 1.4(d) for the form of the signature.					
Signature	/BENJAMIN P. TABOR/			Date (YYYY-MM-DD)	2010-12-29
First Name	Benjamin	Last Name	Tabor	Registration Number	60741

This collection of information is required by 37 CFR 1.76. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 23 minutes to complete, including gathering, preparing, and submitting the completed application data sheet form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether the Freedom of Information Act requires disclosure of these records.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
4. A record in this system of records may be disclosed, as a routine use, to a contractor of the Agency having need for the information in order to perform a contract. Recipients of information shall be required to comply with the requirements of the Privacy Act of 1974, as amended, pursuant to 5 U.S.C. 552a(m).
5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspections or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

POWERED ROCKER RECLINER LINKAGE MECHANISM

CROSS-REFERENCE TO RELATED APPLICATIONS

[0001] This application claims the benefit of U.S. Provisional Application No. 61/295,546, filed January 15, 2010, entitled “POWERED ROCKER RECLINER LINKAGE MECHANISM,” herein incorporated by reference.

BACKGROUND OF THE INVENTION

[0002] The present invention relates broadly to motion upholstery furniture designed to support a user’s body in an essentially seated disposition. Motion upholstery furniture includes recliners, incliners, sofas, love seats, sectionals, theater seating, traditional chairs, and chairs with a moveable seat portion, such furniture pieces being referred to herein generally as “seating units.” More particularly, the present invention relates to an improved linkage mechanism developed to accommodate a seating unit that acts as a rocker recliner. Accordingly, the improved linkage mechanism of the present invention provides for reclining the seating unit while accommodating operation of a rocker mechanism.

[0003] Reclining seating units exist that allow a user to forwardly extend a footrest or ottoman and to recline a backrest relative to a seat. These existing seating units typically provide three basic positions: a standard, non-reclined closed position; an extended position; and a reclined position. In the closed position, the seat resides in a generally horizontal orientation and the backrest is disposed substantially upright. Additionally, if the seating unit includes an ottoman attached with a mechanical arrangement, the mechanical arrangement is collapsed such that the ottoman is not extended. In the extended position, often referred to as a television (“TV”) position, the ottoman is extended forward of the seat, and the backrest remains

sufficiently upright to permit comfortable television viewing by an occupant of the seating unit. In the reclined position the backrest is positioned rearward from the extended position into an obtuse relationship with the seat for lounging or sleeping.

[0004] Several modern rocker recliners presently in the industry are adapted to provide the adjustment capability described above. However, these rocker recliners require relatively complex linkage mechanisms to afford this capability. The complex linkage assemblies limit certain design aspects utilized by furniture manufacturers, such as incorporation of a motor to provide powered adjustment. In particular, these present rocker-recliner linkage assemblies impose constraints on attaching a motor that can achieve full adjustment between the three positions above without interfering with internal crossbeams or limiting movement of the rocker mechanism. Accordingly, the present invention introduces a novel linkage mechanism that allows a rocker-recliner-style seating unit to provide the features of full powered adjustment between the three positions above without interfering with crossbeams or the operation of the rocker mechanism.

BRIEF SUMMARY OF THE INVENTION

[0005] Embodiments of the present invention seek to provide a simplified, compact, linkage mechanism which can fully adjust a rocker-recliner-type seating unit (hereinafter “rocker recliner”) between three positions (closed, extended, and reclined) without limiting movement of a rocker mechanism, where the rocker mechanism allows a seat of the rocker recliner to sway forward and backward with respect to the base. Generally, the rocker recliner is powered by a linear actuator that assists adjustment of a linkage mechanism. Movement of the linear actuator is sequenced into a first phase and a second phase, where the second phase occurs once the first phase is substantially complete. In other words, a stroke of the first phase is carried out

substantially independently of a stroke of the second phase. In an exemplary embodiment, the first phase acts to adjust the linkage mechanism between the closed and extended positions, while the second phase acts to adjust the linkage mechanism between the extended and reclined positions. Accordingly, in operation, the sequencing ensures that a footrest is substantially extended before a backrest begins reclining.

[0006] In embodiments of the present invention, the simplified linkage mechanism discussed above can be assembled to a linear actuator reassembling a compact motor and that is adaptable to essentially any type of seating unit. In an exemplary embodiment, the compact motor in concert with the linkage mechanism can achieve full, sequenced, and automated adjustment of the rocker recliner between each of the closed, extended, and reclined positions. Typically, the compact motor may be employed in a proficient and cost-effective manner to adjust the linkage mechanism without creating interference or other disadvantages appearing in the conventional designs that are inherent with automation.

BRIEF DESCRIPTION OF THE SEVERAL VIEWS OF THE DRAWING

[0007] In the accompanying drawings which form a part of the specification and which are to be read in conjunction therewith, and in which like reference numerals are used to indicate like parts in the various views:

[0008] FIG. 1 is a diagrammatic lateral view of a seating unit in a closed position, in accordance with an embodiment of the present invention;

[0009] FIG. 2 is a view similar to FIG. 1, but in an extended position, in accordance with an embodiment of the present invention;

[0010] FIG. 3 is a view similar to FIG. 1, but in a reclined position, in accordance with an embodiment of the present invention;

[0011] FIG. 4 is a perspective view of a linear actuator mounted to a linkage mechanism that is adjusted to a reclined position, in accordance with an embodiment of the present invention;

[0012] FIG. 5 is a diagrammatic lateral view, from an internal perspective, of the linkage mechanism in the reclined position, in accordance with an embodiment of the present invention;

[0013] FIG. 6 is a view similar to FIG. 5, but in an extended position, in accordance with an embodiment of the present invention; and

[0014] FIG. 7 is a view similar to FIG. 5, but in a closed position, in accordance with an embodiment of the present invention;

[0015] FIG. 8 is a diagrammatic lateral view, from an external perspective, of the linkage mechanism in the reclined position, in accordance with an embodiment of the present invention;

[0016] FIG. 9 is a partial side-elevation view of the linkage mechanism in the closed position highlighting a sequence link, in accordance with an embodiment of the present invention;

[0017] FIG. 10 is a view similar to FIG. 9, but in the extended position, in accordance with an embodiment of the present invention; and

[0018] FIG. 11 is a view similar to FIG. 9, but in the reclined position, in accordance with an embodiment of the present invention.

DETAILED DESCRIPTION OF THE INVENTION

[0019] FIGS. 1-3 illustrate a seating unit 10. Seating unit 10 has a seat 15, a backrest 25, legs 26 (e.g., support bushings), a linkage mechanism 100, a first foot-support ottoman 45, a second foot-support ottoman 47, a stationary base 35, and a pair of opposed arms 55. Stationary base 35 has a forward section 52, a rearward section 54, and is supported by the legs 26, where

the legs 26 (e.g., bushings) support the stationary base 35 and raise it above an underlying surface (not shown). In addition, the stationary base 35 is interconnected to the seat 15 via the linkage mechanism 100 that is generally disposed between the pair of opposed arms 55, and the rearward section 54. Seat 15 is moveable over the stationary base 35 during adjustment of the seating unit 10, or when swaying the rocker mechanism of the linkage mechanism 100. In embodiments, the seat 15 or the backrest 25 is moveable according to the arrangement of the linkage mechanism 100 such that no portion of the seat 15 interferes with the opposed arms 55 throughout adjustment.

[0020] Opposed arms 55 are laterally spaced and have an arm-support surface 57 that is typically substantially horizontal. In one embodiment, the pair of opposed arms 55 are attached to the stationary base 35 via intervening members. The backrest 25 extends from the rearward section 54 of the stationary base 35 and is rotatably coupled to the linkage mechanism 100, typically proximate to the arm-support surface 57. First foot-support ottoman 45 and the second foot-support ottoman 47 are moveably supported by the linkage mechanism 100. The linkage mechanism 100 is arranged to articulably actuate and control movement of the seat 15, the back 25, and the ottomans 45 and 47 between the positions shown in FIGS. 1-3, as more fully described below.

[0021] As shown in FIGS. 1-3, the seating unit 10 is adjustable to three basic positions: a closed position 20, an extended position 30 (i.e., TV position), and the reclined position 40. FIG. 1 depicts the seating unit 10 adjusted to the closed position 20, which is a normal non-reclined sitting position with the seat 15 in a generally horizontal position and the backrest 25 generally upright and generally perpendicular to the seat 15. In particular, the seat 15 is disposed in a slightly inclined orientation relative to the stationary base 35. In this embodiment, the inclined

orientation may be maintained throughout adjustment of the seating unit 10. In addition, when adjusted to the closed position 20, the ottomans 45 and 47 are positioned below the seat 15.

[0022] Turning to FIG. 2, the extended position 30, or TV position, will now be described. When the seating unit 10 is adjusted to the extended position 30, the first foot-support ottoman 45 and the second foot-support ottoman 47 are extended forward of the forward section 52 of the stationary base 35 and disposed generally horizontal. However, the backrest 25 remains substantially perpendicular to the seat 15 and will not encroach an adjacent wall. Also, the seat 15 is maintained in the inclined orientation relative to the stationary base 35. Typically, the seat 15 is translated slightly forward and upward relative stationary base 35. Thus, the configuration of the seating unit 10 in the extended position 30 provides an occupant an inclined TV position while providing space-saving utility. This independent movement of the seat 15 allows for a variety of styling to be incorporated into the seat 15, such as T-cushion styling.

[0023] FIG. 3 depicts the reclined position 40, in which the seating unit 10 is fully reclined. Typically, the opposed arms 55 are attached to the stationary base 35 and the legs 26 extend from the stationary base 35. The backrest 25 is rotated rearward by the linkage mechanism 100 and biased in a rearward inclination angle. The rearward inclination angle is typically an obtuse angle in relation to the seat 15. However, the rearward inclination angle of the backrest 25 is offset by a forward and upward translation of the seat 15 as controlled by the linkage mechanism 100. This is in contrast to other reclining chairs with 3-position mechanisms, which cause their backrest to move rearward during adjustment, thereby requiring that the reclining chair be positioned a considerable distance from an adjacent rear wall or other proximate fixed objects. Thus, the forward and upward translation of the seat 15 in embodiments of the present invention allow for zero-wall clearance. Generally, the “zero-wall

clearance” is utilized herein to refer to space-saving utility that permits positioning the seating unit 10 in close proximity to an adjacent rear wall and other fixed objects. In embodiments of the reclined position 40, the ottomans 45 and 47 may be moved farther forward and upward from their position in the extended position 30.

[0024] FIGS. 4-7 illustrate the exemplary configurations of a linkage mechanism 100 for a rocker-recliner-type seating unit 10 (hereinafter “rocker recliner”) that is powered by a linear actuator included within a motor assembly 300. As discussed above, the linkage mechanism 100 is arranged to articulably actuate and control movement of a seat, a backrest, and ottoman(s) of the rocker recliner when the linkage mechanism 100 is adjusted between the positions shown in FIGS. 5-7. That is, the linkage mechanism 100 is adjustable to three basic positions: reclined position (FIGS. 5 and 8), an extended (TV) position (FIG. 6), and a closed position (FIG. 7). In the reclined position, as shown in FIGS. 5 and 8, the backrest is rotated rearwardly by the linkage mechanism 100 and biased in a rearward inclination angle, which is an obtuse angle in relation to the seat. When the rocker recliner is adjusted to the extended position, as shown in FIG. 6, the ottomans are extended forward and disposed generally horizontal, while the backrest remains substantially perpendicular to the seat. The closed position of FIG. 7 is a normal non-reclined sitting position with the seat in a generally horizontal position and the back generally upright and in a substantial, perpendicular-biased relation to the seat.

[0025] Further, the linkage mechanism 100 comprises a plurality of linkages that are arranged to actuate and control movement of the rocker recliner during adjustment between the closed, the extended, and the reclined position. These linkages may be pivotably interconnected. It is understood and appreciated that the pivotable couplings (illustrated as pivot points in the figures) between these linkages can take a variety of configurations, such as pivot pins, bearings,

traditional mounting hardware, rivets, bolt and nut combinations, or any other suitable fasteners which are well-known in the furniture-manufacturing industry. Further, the shapes of the linkages and the brackets may vary as desired, as may the locations of certain pivot points. It will be understood that when a linkage is referred to as being pivotably “coupled” to, “interconnected” with, “attached” on, etc., another element (e.g., linkage, bracket, frame, and the like), it is contemplated that the linkage and elements may be in direct contact with each other, or other elements (such as intervening elements) may also be present.

[0026] Generally, the linkage mechanism 100 guides the rotational movement of the backrest, the translation of the seat, and the extension of the ottoman(s). In an exemplary configuration, these movements are controlled by a pair of essentially mirror-image linkage mechanisms (one of which is shown herein and indicated by reference numeral 100), which comprise an arrangement of pivotably interconnected linkages. The linkage mechanisms are typically disposed in opposing-facing relation about a longitudinally-extending plane that bisects the rocker recliner between the pair of opposed arms. As such, the ensuing discussion will focus on only one of the linkage mechanisms 100, with the content being equally applied to the other, complimentary, linkage assembly.

[0027] With reference to FIG. 4, a perspective view of the linkage mechanism 100 in the reclined position is shown, in accordance with an embodiment of the present invention. In embodiments, the linkage mechanism 100 includes a footrest assembly 200, a seat-mounting plate 400, a seat-adjustment assembly 500, a base plate, and a rocker mechanism 410. The footrest assembly 200 is comprised of a plurality of links arranged to extend and collapse the ottomans during adjustment of the rocker recliner between the extended position and the closed position. The seat-mounting plate 400 is configured to fixedly mount to the seat of the rocker

recliner, and, in conjunction with an opposed seat-mounting plate, defines a seat support surface (not shown). Generally, the seat-adjustment assembly 500 is adapted to recline and incline the backrest of the rocker recliner, which is coupled to the back-mounting link 510. Further, the seat-adjustment assembly 500 includes links (e.g., the motor bellcrank 430) that indirectly couple an activator bar 350 of a motor assembly 300 to the seat-mounting plate 400, thereby facilitating movement of the rocker-recliner seat in response to actuation of a linear actuator within the motor assembly 300.

[0028] As mentioned previously, with reference to FIG. 4, the linkage mechanism 100 is coupled to the motor assembly 300, which provides powered adjustment of the linkage mechanism 100 between the reclined, the extended, and the closed positions. The motor assembly 300 includes a front motor tube 310, a front motor bracket 315, a motor mechanism 320, a front motor tube bracket 325, a track 330, a motor activator block 340, and an activator bar 350. The motor mechanism 320 and the motor activator block 340 are slidably connected via the track 330. This “linear actuator” comprised of the motor mechanism 320, the track 330, and the motor activator block 340 is held in position and coupled to the linkage mechanism 100 by way of the front motor tube 310 and the activator bar 350. Generally, the front motor tube 310 and the activator bar 350 span between and couple together the linkage mechanism 100 shown in FIG. 1 and its counterpart, mirror-image linkage mechanism (not shown). In embodiments, the front motor tube 310 and the activator bar 350 function as a set of crossbeams and may be formed from square metal tubing. Alternatively, the seat-mounting plate 400 and the plurality of links that comprise the linkage mechanism 100 are typically formed from metal stock, such as stamped, formed steel. However, it should be understood and appreciated that any suitable rigid or sturdy material known in the furniture-manufacturing industry may be used in place of the

materials described above. For instance, a rocker element 412 of the rocker mechanism 410 may be molded plastic, fiberglass, or another resilient material.

[0029] The front motor tube 310 is attached to the linkage mechanism 100 via the front motor tube bracket 325, which is fixedly coupled to a front ottoman link 110 of the footrest assembly 200. The activator bar 350 includes a pair of opposed ends and is rotatably coupled to the motor bellcrank 430 of the seat-adjustment assembly 500 via a motor pivot bracket 470. The motor mechanism 320 is protected by a housing that is pivotably coupled to the front motor tube 310 via the front motor bracket 315. The motor activator block 340 is attached to the activator bar 350 between the opposed ends by way of fasteners.

[0030] In operation, the motor mechanism 320 and the motor activator block 340 cause the motor activator block 340 to longitudinally traverse, or slide, along the track 330. This sliding action produces a lateral force or thrust on the front motor tube 310 and the activator bar 350, which, in turn, generates movement of the linkage mechanism 100. As more fully discussed below, the sliding action of the motor activator block 340, or stroke of the linear actuator, is sequenced into a first phase and a second phase. In an exemplary embodiment, the first phase and second phase are mutually exclusive in stroke. In other words, the linear-actuator stroke of the first phase fully completes before the linear-actuator stroke of the second phase commences, and vice versa.

[0031] Initially, the track 330 is operably coupled to the motor mechanism 320 and includes a first travel section 331 and a second travel section 332. The motor activator block 340 translates longitudinally along the track 330 under automated control of the motor mechanism 320 such that the motor activator block 340 translates within the first travel section 331 during the first phase and the second travel section 332 during the second phase. As illustrated in FIG.

4, the dashed line separating the first travel section 331 and the second travel section 332 indicates that the travel sections 331 and 332 abut, however, they do not overlap. It should be realized that the precise length of the travel sections 331 and 332 is provided for demonstrative purposes only, and that the length of the travel sections 331 and 332, or ratio of the linear-actuator stroke allocated to each of the first phase and second phase, may vary from the length or ratio depicted.

[0032] Generally, the first phase involves longitudinal translation of the motor activator block 340 along the first travel section 331 of the track 330 that creates a lateral thrust at the front motor tube 310. The lateral thrust invokes movement of the front ottoman link 110. The movement of the front ottoman link 110 invokes and controls adjustment of the footrest assembly 200 between the closed position and the extended position. Further, during the first phase, the motor mechanism 320 moves forward and upward with respect to the rocker mechanism 410 while the motor activator block 340 remains generally fixed in space, thereby extending the footrest assembly 200 from the closed position to the extended position. Once a stroke of the first phase is substantially complete, the second phase occurs.

[0033] Generally, the second phase involves longitudinal translation of the motor activator block 340 along the second travel section 332 of the track 330 that creates a lateral thrust at the activator bar 350. The lateral thrust invokes movement of the motor bellcrank 430. The movement of the motor bellcrank 430 invokes and controls adjustment of the seat-adjustment assembly 500 between the extended position and the reclined position. Further, during the second phase, the motor activator block 340 moves rearward with respect to the rocker mechanism 410 while the motor mechanism 320 remains generally fixed in space, thereby adjusting the seat-adjustment assembly 500 from the extended position to the reclined position.

In embodiments, a weight of an occupant seated in the rocker recliner and/or springs interconnecting links of the seat-adjustment assembly 500 may assist in creating the sequence. Accordingly, the sequence ensures that adjustment of the footrest between the closed and extended positions is not interrupted by an adjustment of the backrest, and vice versa. In other embodiments, as depicted in FIGS. 9-11, a sequencing assembly integrated within the linkage mechanism 100 is provided to control the adjustment of the rocker recliner.

[0034] In one instance, the combination of the motor mechanism 320, the track 330, and the motor activator block 340 is embodied as an electrically powered linear actuator. In this instance, the linear actuator is controlled by a hand-operated controller that provides instructions to the linear actuator. These instructions may be provided upon detecting a user-initiated actuation of the hand-operated controller. Further, these instructions may cause the linear actuator to carry out a complete first phase and/or second phase of movement. Or, the instructions may cause the linear actuator to partially complete the first phase or the second phase of movement. As such, the linear actuator may be capable of being moved to and maintained at various positions within a stroke of the first phase or the second phase, in an independent manner.

[0035] Although a particular configuration of the combination of the motor mechanism 320, the track 330, and the motor activator block 340 has been described, it should be understood and appreciated that other types of suitable devices that provide sequenced adjustment may be used, and that embodiments of the present invention are not limited to a linear actuator as described herein. For instance, the combination of the motor mechanism 320, the track 330, and the motor activator block 340 may be embodied as a telescoping apparatus that extends and retracts in a sequenced manner.

[0036] Turning now to FIG. 5, the components of the linkage mechanism 100 will now be discussed in detail. As discussed above, the linkage mechanism 100 includes the footrest assembly 200, the seat-mounting plate 400, the seat-adjustment assembly 500, and the rocker mechanism 410. The footrest assembly 200 includes the front ottoman link 110, a rear ottoman link 120, an outer ottoman link 130, a mid-ottoman bracket 140, an inner ottoman link 150, and a footrest bracket 170. Front ottoman link 110 is rotatably coupled to a forward portion 401 of the seat-mounting plate 400 at pivot 115. The front ottoman link 110 is also pivotably coupled to the outer ottoman link 130 at pivot 113 and the inner ottoman link 150 at pivot 117. Further, the front ottoman link 110 is attached to the front motor tube 310 via the front motor tube bracket 325 mounted at locations 111. The rear ottoman link 120 is rotatably coupled to the forward portion 401 of the seat-mounting plate 400 at pivot 121 and pivotably coupled to the outer ottoman link 130 at pivot 133. Further, as shown in FIG. 8, the rear ottoman link 120 is pivotably coupled to a forward portion 591 of the footrest drive link 590, of the seat-adjustment assembly 500, at pivot 275. During adjustment in the first phase (i.e., adjustment between the closed and extended positions), directional force transferred by the linear actuator to the front ottoman link 110 causes the footrest assembly 200 to push out to the extended position or to collapse to the closed position. This movement of the footrest assembly 200, and specifically of the rear ottoman link 120, within the first phase invokes translation of the footrest drive link 590. The translation of the footrest drive link 590, in turn, shifts a sequence element 526 within a guide slot 551 of a sequence link 550 between a first region 555 and a second region 556, as described more fully below, with reference to FIGS. 9-11.

[0037] The outer ottoman link 130 is pivotably coupled on one end to the rear ottoman link 120 at the pivot 133 and the front ottoman link 110 at the pivot 113. At an opposite end, the

outer ottoman link 130 is pivotably coupled to the footrest bracket 170 at pivot 172. Between the ends of the outer ottoman link 130, the mid-ottoman bracket 140 is pivotably coupled thereto at pivot 135. The mid-ottoman bracket 140 is also pivotably coupled to the inner ottoman link 150 at pivot 141. The inner ottoman link 150 is further pivotably coupled to the front ottoman link 110 at the pivot 117 and to the footrest bracket 170 at pivot 175. In embodiments, the footrest bracket 170 and the mid-ottoman bracket 140 are designed to attach to ottomans, such as the first foot-support ottoman 45 and the second foot-support ottoman 47, respectively. In a specific instance, as shown in FIGS. 2 and 5, the footrest bracket 170 and the mid-ottoman bracket 140 support respective ottomans in a substantially horizontal disposition when the footrest assembly 200 is fully extended upon completion of the first phase of adjustment.

[0038] With reference to FIG. 4, the pair of rocker mechanisms 410 that moveably support the linkage mechanism 100 will now be described. Typically, each rocker mechanism 410 serves to provide vertical support for a respective linkage mechanism 100 above the underlying surface while allowing an occupant of the rocker recliner to easily tilt, sway, or rock the linkage mechanism 100 forward and/or rearward. Each of the rocker mechanisms 410 include a rocker base 411, a rocker element 412, and at least one spring 425. The rocker base 411 includes a front end, a rear end, and a mid section 416. Typically, the front end and the rear end attach to respective legs that stabilize the rocker base 411 above the underlying surface. Further, the rocker base 411 includes a rearward portion 417 that intermittently contacts with a wheel 530, as more fully discussed below.

[0039] In embodiments, the rocker element 412 is formed with a convex curvature 413, or bevel, that rollably engages to or physically rides upon the mid section 416 of the rocker base 411. Typically, each rocker element 412 is attached to a respective base plate 580. In a

particular instance, the rocker element 412 is fixedly coupled to the base plate 580 at a forward location 581 and at a mid location 582 (see FIGS. 5 and 8). The spring(s) 425 serve to interconnect the rocker base 411 and the rocker element 412. As illustrated in FIG. 4, the spring(s) 425 are embodied as a pair of vertically disposed compression springs that extend between an upper bracket 418 and a lower bracket 419. The upper bracket 418 is mounted to the rocker element 412 while the lower bracket 419 is mounted to a pair of lower crossbeams 415 that span between the rocker elements 412. These lower crossbeams 415, in cooperation with upper crossbeams 414, interconnect the rocker elements 412 and provide lateral support thereto.

[0040] In operation, the interconnection of the spring(s) 425 between the rocker base 411 and the rocker element 412 facilitates a controlled sway of the rocker element 412, as the rocker element's 412 convex curvature 413 rollably rides over an upper flattened surface of the rocker base 411. This controlled sway of the rocker element 412, with respect to the underlying surface, is translated to the base plate 580 that couples to the linkage mechanism 100. Accordingly, the controlled sway enabled by the rocker mechanism 410 allows an occupant sitting in the rocker recliner to easily tilt or rock the linkage mechanism 100 back and forth in a rocking motion with minimal effort. Although the controlled sway is described herein as being facilitated by the spring(s) 425, it should be appreciated and understood that various other devices (e.g., air cylinders or dampeners) or components (e.g., compressible members) may be employed to restrain, enhance, and/or control the sway furnished by the rocker mechanisms 410.

[0041] Turning now to FIGS. 5 and 8, the interconnecting links of the seat-adjustment assembly 500 will now be discussed. Initially, in embodiments, the seat-adjustment assembly 500 includes a motor bellcrank 430, a front lift link 440, a front pivot link 450, a lifter link 460, the motor pivot bracket 470 (see FIG. 5), the back-mounting link 510, a rear pivot link 520, a

wheel 530, a wheel link 540, a sequence link 550, a wheel control link 565, and the footrest drive link 590.

[0042] As discussed above, the footrest drive link 590 is pivotably coupled at the forward portion 591 to the rear ottoman link 120, of the footrest assembly 200, at the pivot 275. In addition, the footrest drive link 590 is pivotably coupled at a back end 593 to the rear pivot link 520 at pivot 525. In an exemplary embodiment, the pivot 525 is coupled to a generally cylindrical sequence element 526 (e.g., bushing, disc, wheel, and the like) that extends, at least partially within a longitudinal guide slot (see reference numeral 551 of FIG. 8) formed (e.g., laser cut or stamped) within a lower portion 554 of the sequence link 550. In one embodiment, the sequence element 526 is rollably or slidably engaged within the guide slot 551 and laterally captured between the footrest drive link 590 and the rear pivot link 520. Although various configurations of the assembly and interplay between the guide slot 551 and the sequence element 526 have been described, it should be understood and appreciated that other types of suitable mechanisms that allow longitudinal shifting of a pivot location between links may be used, and that embodiments of the present invention are not limited to the slot-and-element configuration described herein. For instance, the sequence element 526 and the guide slot 551 may be replaced by a track that guides a roller in a predefined trajectory in order to achieve sequencing of adjustment.

[0043] In instances of the present invention, the guide slot 551 represents a pill-shaped aperture formed within the lower portion 554 of the sequence link 550. Further, a central, longitudinal axis of the guide slot 551 may be substantially aligned with a central, longitudinal axis of the sequence link 550. In an exemplary embodiment, the sequence element 526 fully extends through the guide slot 551 such that the sequence element 526 substantially spans

between the footrest drive link 590 and the rear pivot link 520, which laterally retain the sequence link 550 onto the sequence element 526. In operation, the guide slot 551 acts to guide in a predetermined trajectory and retain the sequence element 526 (see FIGS. 9-11). Further, the guide slot 551 of the sequence link 550 assists in ensuring the first phase and second phase of the linear-actuator stroke do not interfere with or overlap each other.

[0044] Beyond being rollably or slidably engaged within the guide slot 551 of the sequence link 550 at the pivot 525, the rear pivot link 520 is rotatably coupled to the back-mounting link 510 at pivot 521. Similarly, an upper portion 553 of the sequence link 550 is rotatably coupled to the back-mounting link 510 at pivot 552. In an exemplary embodiment, the pivot 521 is rearward of the pivot 552, with respect to the rocker recliner. Further, the pivot 552 is rearward of pivot 511, which rotatably couples a rearward portion 402 of the seat-mounting plate 400 to the back-mounting link 510. Further yet, the pivot 511 is rearward of pivot 515, which pivotably couples the back-mounting link 510 to a back end 442 of the front lift link 440, as discussed more fully below.

[0045] Turning now to FIGS. 5 – 8, a remainder of the seat-adjustment assembly 500 will now be described. As discussed above, the rear pivot link 520 is rotatably coupled to the back-mounting link 510 at pivot 521 and to the footrest drive link 590 at pivot 525. Additionally, the rear pivot link 520 is pivotably coupled to a rearward portion 583 of the base plate 580 at pivot 522. The base plate 580 is further pivotably coupled to a front end 461 of the lifter link 460 at pivot 466, which is located forward of the mid location 582 of the base plate 580. A back end 462 of the lifter link 460 is pivotably coupled to a second end 434 of the motor bellcrank 430 at pivot 465.

[0046] In an exemplary embodiment, the motor bellcrank 430 is an L-shaped link that includes a mid portion 433 located between a first end 432 and the second end 434. As mentioned above, the activator bar 350 is rotatably coupled to the first end 432 of the motor bellcrank 430 via the motor pivot bracket 470 of the motor assembly 300 at pivot 431. The front lift link 440 includes a front end 441 and a back end 442. In embodiments, the back end 442 of the front lift link 440 is pivotably coupled to the back-mounting link 510 at pivot 515. The front end 441 of the front lift link 440 is pivotably coupled to the front pivot link 450 at pivot 445. The mid portion 433 of the motor bellcrank 430 is rotatably coupled to a section between the front end 441 and the back end 442 of the front lift link 440. The front pivot link 450 is also coupled to the base plate 580 at pivot 446. The pivot 446 is positioned forward of the pivot 466 on the base plate 580, which is positioned forward of the forward location 581 that attaches the rocker element 412 to the base plate 580.

[0047] The back-mounting link 510 serves to support the backrest and is angled rearwardly to a reclined orientation when the linkage mechanism 100 is moved from the extended position to the reclined position. The back-mounting link 510 is pivotably coupled to the back end 442 of the front lift link 440 at the pivot 515, the upper portion 553 of the sequence link 550 at pivot 552, and the rear pivot link 520 at the pivot 521. Also, the back-mounting link 510 is rotatably coupled to the rearward portion 402 of the seat-mounting plate 400 at pivot 511.

[0048] The seat-mounting plate 400 serves to support the seat of the rocker recliner. The seat-mounting plate 400 is situated in a substantially horizontal orientation when the linkage mechanism 100 resides in the closed position and the extended position. But, when the linkage mechanism 100 is adjusted to the reclined position, with the assistance of the linear actuator, the seat-mounting plate 400 is shifted upward and rotated slightly rearward, thereby orientating the

seat in a slightly angled position. The seat-mounting plate 400 is pivotably coupled to the front ottoman link 110 and the rear ottoman link 120 of the footrest assembly 200 at the pivots 115 and 121, respectively. Also, the seat-mounting plate 400 is pivotably coupled to the back-mounting link 510 of the seat-adjustment assembly 500 at the pivot 511. As illustrated in the FIGS. 5 – 8, the locations of the pivots that interconnect the linkage mechanism 100 and the seat-mounting plate 400 are configured to translate the seat-mounting plate 400 at a substantially consistent inclination angle, with respect to the base plate 580, throughout the adjustment of the rocker recliner between the closed position, the extended position, and the reclined position.

[0049] The rear pivot link 520 is pivotably coupled to the wheel link 540 at pivot 526. The wheel link 540 is pivotably coupled to the wheel control link 565 at pivot 567 and is rotatably coupled to the rear pivot link 520 at the pivot 526. At a lower end, a wheel 530 is rotatably coupled to the wheel link 540 at pivot 541. The wheel link 540 is substantially vertically orientated when the recliner mechanism 100 is adjusted to the extended and reclined positions. This configuration of the wheel link 540 brings the wheel 530 within close proximity of an upper surface of the rearward portion 417 of the rocker base 411. Further, the wheel 530 and the upper portion of the rocker base 411 are aligned to induce contact upon the occurrence of excessive rocking, thereby reducing exaggerated rearward tilt of the rocker mechanism 410 upon the wheel 530 contacting the upper portion of the rocker base 411.

[0050] The wheel control link 565 is pivotably coupled to the wheel link 540 at the pivot 567 and to the base plate 580 at pivot 566. Generally, the wheel control link 565 functions to retract the wheel 530 from the close proximity to the upper portion of the rocker base 411 when the linkage mechanism 100 is adjusted from the extended position to the closed position. As discussed above, the base plate 580 is fixedly attached to the upper portion of the rocker element

412 at the locations 581 and 582. Further, the base plate 580 is pivotably coupled to a variety of linkages: the rear pivot link 520 at the pivot 522, the wheel control link 565 at the pivot 566, the lifter link 460 at pivot 466, and the front pivot link 450 at pivot 446.

[0051] The operation of the seat-adjustment assembly 500 will now be discussed with reference to FIGS. 5-11. Initially, an occupant of the rocker recliner may invoke an adjustment from the reclined position (FIGS. 3, 4, 5, 8, and 11) to the extended position (FIGS. 2, 6, and 10) in an effort to sit upright for viewing television. In an exemplary embodiment, the occupant may invoke an actuation at a hand-operated controller that sends a control signal with instructions to the linear actuator. As discussed above, the linear actuator moves in a sequenced manner, which is enforced by a weight of the occupant, a placement of springs within the seat-adjustment assembly 500, and/or a configuration of the sequence link 550 and sequence element 526. Typically, the movement of the linear actuator is sequenced into two substantially independent strokes: the first phase (adjusting between the closed and extended positions), and the second phase (adjusting between the extended and reclined positions).

[0052] Upon receiving the control signal from the hand-operated controller when the linkage mechanism 100 resides in the reclined position, the linear actuator carries out a stroke in the second phase. That is, with reference to FIG. 4, the linear actuator slides the motor activator block 340 forward with respect to the rocker mechanism 410 while holding the motor mechanism 320 relatively fixed in space. This sliding action of the motor activator block 340 pulls the activator bar 350 and the attached motor pivot bracket 470 forward. The forward force on the motor pivot bracket 470 creates a clockwise moment 705 (see FIG. 6) on the motor bellcrank 430 about the pivot 435 that pulls the front lift link 440 downward. This pulling action is caused, in part, by the rotation of the motor bellcrank 430 at the pivot 465, which pivotably

couples the motor bellcrank 430 to the lifter link 460. The lifter link 460 is restrained from translational movement by its pivotable coupling to the base plate 580 at the pivot 466.

[0053] Further, the downward pulling action on the front lift link 440 creates a counter-clockwise moment 700 (see FIG. 6) of the back-mounting link 510 about the pivot 511, which rotatably couples the back-mounting link 510 to the seat-mounting plate 400. This moment 700 of the back-mounting link 510 inclines the attached seat and causes the sequence element 526, which is coupled to the rear pivot link 520 at the pivot 525, to slide in an upward trajectory within the longitudinal guide slot 551 of the sequence link 550. In an exemplary embodiment, the sequence element 526 slides from the second region 556 (see FIG. 11) to the first region 555 (see FIG. 10) of the guide slot 551. As discussed above, if the sequence element 526 resides within the second region 556 (when the rocker recliner is adjusted to the reclined position), the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the rocker recliner directly from the reclined position to the closed position. Then, upon the back-mounting link 510 rotating to a position that causes contact between a rear stop 420 and the front lift link 440, the linkage mechanism 100 has achieved the extended position and the linear actuator has completed the stroke of the second phase.

[0054] The operation of the footrest assembly 200 will now be discussed with reference to FIGS. 6 and 7. As discussed above, when desiring to move from the extended position (FIG. 6) to the closed position (FIG. 7), the occupant may invoke an actuation at the hand-operated controller that sends the control signal with instructions to the linear actuator to carry out a stroke in the first phase. Upon receiving the control signal from the hand-operated controller, the linear actuator slides the motor mechanism 320 rearward with respect to the rocker mechanism 410 while holding the motor activator block 340 relatively fixed in space. This sliding action of the

motor mechanism 320 pulls the front motor tube 310 and the attached front ottoman link 110 rearward. In an exemplary embodiment, the rearward force on the front ottoman link 110 removes the front ottoman link 110 from contact with a front stop 422, which serves to limit the extension of the footrest assembly 200.

[0055] Further, the rearward force on the front ottoman link 110 indirectly causes a rearward translation of the footrest drive link 590. This rearward translation of the footrest drive link 590 directly creates a counter-clockwise moment 710 of the rear pivot link 520 about the pivot 521, which rotatably couples the rear pivot link 520 to the back-mounting link 510. This moment 710 (see FIG. 7) functions to slide the sequence element 526 (coupled to the rear pivot link 520 at the pivot 525) in a downward trajectory within the longitudinal guide slot 551 of the sequence link 550.

[0056] In an exemplary embodiment of the first phase, the sequence element 526 slides from the first region 555 (see FIG. 10) to the second region 556 (see FIG. 9) of the guide slot 551. As discussed above, if the sequence element 526 resides within the first region 555 (when the rocker recliner is adjusted to the extended position), the interaction of the sequence element 526 and the sequence link 550 allows adjustment of the rocker recliner to either the reclined position or to the closed position. However, upon adjusting the rocker recliner to the closed position, the sequence element 526 resides within the second region 556 (see FIG. 9) and the interaction of the sequence element 526 and the sequence link 550 resists adjustment of the rocker reclined directly from the closed position to the reclined position. Further, the movement 710 functions to slightly lift upward and tilt forward the back-mounting link 510. This forward tilt of the back-mounting link 510 pulls the front lift link 440 downward at the pivot 515 about the pivot 445. Once the front lift link 440 is pulled downward to a position where it makes

contact with a mid stop 421 attached to the seat-mounting plate 400 (see FIG. 7), the linkage mechanism 100 has achieved the closed position.

[0057] In a manner that is reverse to the steps discussed above, with reference to adjustment of the footrest assembly 200 from the closed position to the extended position, the automated force of the motor mechanism 320 on the front motor tube 310 in the first phase of the linear-actuator stroke rotates the front ottoman link 110 about the pivot 115. This rotation acts to extend the footrest assembly 200 and causes the links 110, 120, 130, and 150 to move upwardly and/or rotate in a clockwise direction. Also, the brackets 140 and 170 are raised and rotated in a clockwise fashion such that the ottomans 45 and 47 (see FIGS. 1-3) are adjusted from a collapsed, generally vertical orientation to an extended, generally horizontal orientation. Extension of the footrest assembly is restrained upon the front ottoman link 110 coming into contact with the front stop 422.

[0058] In addition, upon completion of the first phase, continued actuation of the linear actuator causes the adjustment of the linkage mechanism 100 within the second phase of the linear-actuator stroke. Within the second phase, the automated force of the motor activator block 340 on the activator bar 350 rotates the motor bellcrank 430 in a counter-clockwise direction about the pivot 435 (with respect to FIGS. 5 – 7), which acts to raise the front lift link 440 and, in turn, bias rearward the back-mounting link 510 via the pivot 515. The rearward bias of the back-mounting link 510, as well as continued adjustment within the second phase, is restrained upon the completion of the stroke within the second phase.

[0059] It should be understood that the construction of the linkage mechanism 100 lends itself to enable the various links and brackets to be easily assembled and disassembled from the remaining components of the rocker recliner. Specifically the nature of the pivots and/or

mounting locations, allows for use of quick-disconnect hardware, such as a knock-down fastener. Accordingly, rapid disconnection of components prior to shipping, or rapid connection in receipt, is facilitated.

[0060] The present invention has been described in relation to particular embodiments, which are intended in all respects to be illustrative rather than restrictive. Alternative embodiments will become apparent to those skilled in the art to which the present invention pertains without departing from its scope.

[0061] It will be seen from the foregoing that this invention is one well adapted to attain the ends and objects set forth above, and to attain other advantages, which are obvious and inherent in the device. It will be understood that certain features and subcombinations are of utility and may be employed without reference to other features and subcombinations. This is contemplated by and within the scope of the claims. It will be appreciated by persons skilled in the art that the present invention is not limited to what has been particularly shown and described hereinabove. Rather, all matter herein set forth or shown in the accompanying drawings is to be interpreted as illustrative and not limiting.

CLAIMS

What is claimed is:

1. A seating unit having a chassis, a seat, a backrest, and at least one foot-support ottoman, the seating unit being adapted to move between a closed, an extended and a reclined position, the seating unit comprising:

a pair of base plates in substantially parallel-spaced relation;

a pair of rocker mechanisms, wherein each of the rocker mechanisms is attached to a respective base plate and moveably supports the respective base plate above an underlying surface;

a pair of seat-mounting plates in substantially parallel-spaced relation, wherein the seat-mounting plates translatablely carry the seat over the rocker mechanisms; and

a pair of the generally mirror-image linkage mechanisms each moveably interconnecting each of the base plates to a respective seat-mounting plate, wherein each of the linkage mechanisms comprise:

(a) a footrest assembly that extends and retracts the at least one foot-support ottoman; and

(b) a seat-adjustment assembly that reclines and inclines the backrest; and

a linear actuator that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position,

wherein the linear-actuator adjustment is sequenced into a first phase and a second phase that are mutually exclusive in stroke,

wherein the first phase moves the footrest assembly between the closed position and the extended position, and

wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position.

2. The seating unit of claim 1, further comprising:

a front motor tube; and

an activator bar, wherein the front motor tube and the activator bar span and couple to the pair of linkage mechanisms.

3. The seating unit of claim 2, wherein the linear actuator comprises:

a motor mechanism;

a track operably coupled to the motor mechanism, wherein the track includes a first travel section and a second travel section; and

a motor activator block that translates longitudinally along the track under automated control.

4. The seating unit of claim 3, wherein the front motor tube having a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to a front ottoman link within the footrest assembly, wherein the front ottoman link is rotatably coupled to a forward portion of the seat-mounting plate.

5. The seating unit of claim 4, wherein a housing of the motor mechanism is pivotably coupled to a section between the pair of ends of the front motor tube.

6. The seating unit of claim 5, wherein the first phase involves longitudinal translation of the motor activator block along the first travel section that creates a lateral thrust at the front motor tube, thereby invoking movement of the front ottoman link, the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position.

7. The seating unit of claim 6, wherein, during the stroke of the linear actuator within the first phase, the motor mechanism moves forward and upward with respect to the pair of rocker mechanisms while the motor activator block remains generally fixed in space.

8. The seating unit of claim 3, wherein the activator bar having a pair of ends, wherein one of the ends of the activator bar is rotatably coupled to a motor bellcrank within the seat-adjustment assembly via a motor pivot bracket.

9. The seating unit of claim 8, wherein the seat-adjustment assembly comprises:

the motor bellcrank that includes a mid portion located between a first end and a second end, wherein the motor pivot bracket is rotatably coupled to the first end of the motor bellcrank;

a back-mounting link rotatably coupled to a respective seat-mounting plate, wherein the back-mounting link is configured to support the backrest; and

a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link.

10. The seating unit of claim 9, wherein the motor activator block is fixedly coupled to a section between the pair of ends of the activator bar.

11. The seating unit of claim 10, wherein the second phase involves longitudinal translation of the motor activator block along the second travel section that creates a lateral thrust at the activator bar, thereby invoking movement of the motor bellcrank, the movement of the motor bellcrank controls adjustment of the seat-adjustment assembly between the extended position and the reclined position.

12. The seating unit of claim 11, wherein, during the stroke of the linear actuator within the second phase, the motor activator block moves rearward with respect to the pair of rocker mechanisms while the motor mechanism remains generally fixed in space.

13. The seating unit of claim 12, wherein each of the rocker mechanisms further comprise:

a rocker base that includes a front end, a rear end, and a mid section, wherein the front end and the rear end attach to respective legs that support the rocker base above the underlying surface;

a rocker element that is formed with a convex curvature that rollably rides upon the mid section of the rocker base, wherein the rocker element is attached to a respective base plate; and

at least one spring that interconnects the rocker base and the rocker element, wherein the interconnection of the at least one spring facilitates a controlled sway of the rocker element with respect to the rocker base.

14. The seating unit of claim 13, wherein the pair of linkage mechanisms are configured to translate the seat-mounting plates at a substantially consistent inclination angle, with respect to the rocker mechanisms, throughout the adjustment of the seating unit between the closed position, the extended position, and the reclined position.

15. The seating unit of claim 14, wherein the seat-adjustment assembly further comprises a lifter link that pivotably interconnects the second end of the motor bellcrank and a respective base plate.

16. A pair of the generally mirror-image linkage mechanisms adapted to move a rocker recliner between a closed, an extended, and a reclined position, the rocker recliner having a pair of rocker mechanisms, a seat that is translatable with respect to the rocker mechanisms, and a backrest that is angularly adjustable with respect to the seat, each of the linkage mechanisms comprising:

a sequence link having a guide slot, wherein the guide slot includes a first region and a second region; and

a sequence element that, at least partially, extends into the guide slot,

wherein the sequence element resides within the second region when the rocker recliner is adjusted to the reclined position, and when the rocker recliner is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the closed position.

wherein the sequence element resides within the first region when the rocker recliner is adjusted to the extended position, and when the rocker recliner is adjusted to the extended position, the interaction of the sequence element and

the sequence link allows adjustment of the rocker recliner to either the reclined position or to the closed position, and

wherein the sequence element resides within the second region when the rocker recliner is adjusted to the closed position, and when the rocker recliner is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the reclined position.

17. The linkage mechanism of claim 16, further comprising a back-mounting link that is configured to support the backrest, wherein the sequence link includes an upper portion and a lower portion, wherein the upper portion is rotatably coupled to the back-mounting link, and wherein the guide slot represents a pill-shaped aperture formed within the lower portion of the sequence link.

18. The linkage mechanism of claim 17, wherein the sequence element fully extends through the guide slot, and wherein the first region is above the second region within the guide slot.

19. The linkage mechanism of claim 18, further comprising:

a seat-mounting plate that supports the seat, the seat-mounting plate is rotatably coupled to the back-mounting link;

a base plate that is interconnected to the seat-mounting plate via a system of links;

a rocker base vertically supported above an underlying surface;

a rocker element that rollably engages with the rocker base, wherein the rocker element is attached to the base plate; and

a rear pivot link rotatably coupled to the back-mounting link, to the rearward portion of the base plate, and to the sequence element.

20. A seating unit, comprising:

a pair of base plates in substantially parallel-spaced relation;

a pair of rocker mechanisms, wherein each of the rocker mechanisms is attached to a respective base plate and moveably supports the respective base plate above an underlying surface;

a pair of seat-mounting plates in substantially parallel-spaced relation, wherein each of the seat-mounting plates is disposed in an inclined orientation in relation to each of the base plates, respectively; and

a pair of generally mirror-image linkage mechanisms each moveably interconnecting each of the seat-mounting plates to a respective base plate, and adapted to move the seating unit between a closed position, an extended position, and a reclined position, wherein each of the linkage mechanisms comprise:

(a) a back-mounting link rotatably coupled to a respective seat-mounting plate and configured to support a backrest of the seating unit;

(b) a sequence link rotatably coupled to the back-mounting link, wherein the sequence link includes a guide slot;

(c) a rear pivot link rotatably coupled to the back-mounting link, to a respective base plate, and to a sequence element, wherein the sequence element extends into the guide slot, and wherein interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position;

(d) a motor bellcrank having a mid portion located between a first end and a second end, wherein an activator bar is rotatably coupled to the first end of the motor bellcrank; and

(e) a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link.

ABSTRACT OF THE INVENTION

A rocker-recliner-style seating unit (rocker recliner) that includes a linkage mechanism adapted to move the rocker recliner between closed, extended, and reclined positions is provided. The rocker recliner is powered by a linear actuator that facilitates automated adjustment of the linkage mechanism. This adjustment of the linear actuator is sequenced into a first phase and a second phase. A stroke of the linear actuator in the first phase acts to adjust the linkage mechanism between the closed and extended positions by extending or retracting ottoman(s) attached to a footrest assembly. A stroke in the second phase acts to adjust the linkage mechanism between the extended and reclined positions by translating a seat-mounting plate forward or rearward at a consistent inclination angle while, concurrently, tilting a back-mounting link. Accordingly, the phase sequencing ensures that the linkage mechanism commences adjustment within the second phase only once the first-phase adjustment is substantially complete.

DECLARATION FOR PATENT APPLICATION

INVENTOR: Gregory M. Lawson

As a below named inventor, I hereby declare that:

My residence, post office address and citizenship are as stated below next to my name.

I believe I am the original, first and sole inventor of the subject matter which is claimed and for which a patent is sought on the invention entitled **POWERED ROCKER RECLINER LINKAGE MECHANISM**, the specification of which:

☒ is attached hereto.

☐ was filed on _____ as Application Serial No. _____, and was amended on _____ (if applicable).

I hereby state that I have reviewed and understand the contents of the above-identified specification, including the claims, as amended by any amendment referred to above.

I acknowledge the duty to disclose information which is material to patentability as defined in 37 CFR 1.56, including for continuation-in-part applications, material information which became available between the filing date of the prior application and the national or PCT international filing date of the continuation-in-part application.

Authorization to Permit Access To Application by Participating Offices

☒ If checked, the undersigned hereby grants the USPTO authority to provide the European Patent Office (EPO), the Japan Patent Office (JPO), and any other intellectual property offices in which a foreign application claiming priority to the above-identified is filed access to the above-identified patent application. See 37 CFR 1.14 (c) and (h). This box should not be checked if the applicant does not wish the EPO, JPO, or other intellectual property office in which a foreign application claiming priority to the above-identified application is filed to have access to the application.

In accordance with 37 CFR 1.14(h)(3), access will be provided to a copy of the application-as-filed with respect to: 1) the above-identified application, 2) any foreign application to which the above-identified application claims priority under 35 USC 119(a)-(d) if a copy of the foreign application that satisfies the certified copy requirement of 37 CFR 1.55 has been filed in the above-identified US application, and 3) any U.S. application from which benefit is sought in the above-identified application.

In accordance with 37 CFR 1.14 (c), access may be provided to information concerning the date of filing the Authorization to Permit Access to Application by Participating Offices.

I hereby claim foreign priority benefits under Title 35, United States Code, § 119 of any foreign application(s) for patent or inventor's certificate listed below and have also identified below any foreign application for patent or inventor's certificate having a filing date before that of the application on which priority is claimed.

Prior Foreign Application Number	Country	Foreign Filing Date (MM/DD/YYYY)	Priority Claimed? Y/N	Certified Copy Attached? Y/N

I hereby claim the benefit under 35 U.S.C. 119(e) of any United States provisional application(s) listed below:

Application Number(s)	Filing Date (MM/DD/YYYY)
61/295,546	01/15/2010

I hereby claim the benefit under Title 35, United States Code, § 120 of any United States application(s) listed below and, insofar as the subject matter of each of the claims of this application is not disclosed in the prior United States application in the manner provided by the first paragraph of Title 35, United States Code, § 112, I acknowledge the duty to disclose material information as defined in Title 37, Code of Federal Regulations, 1.56(a) which occurred between the filing date of the prior application and the national or PCT international filing date of this application:

Application Number(s)	Filing Date (MM/DD/YYYY)

I hereby appoint the attorneys associated with Customer No. 05251 to prosecute this application and to transact all business in the Patent and Trademark Office connected therewith and to file and prosecute any corresponding foreign applications, including any international applications under the Patent Cooperation Treaty or the European Patent Convention.

Please send all correspondence to the address associated with Customer No. 05251.

I hereby declare that all statements made herein of my own knowledge are true and that all statements made on information and belief are believed to be true; and further that these statements were made with the knowledge that willful false statements and the like so made are punishable by fine or imprisonment, or both, under Section 1001 of Title 18 of the United States Code and that such willful false statements may jeopardize the validity of the application or any patent issued thereon.

Inventor's signature Gregory M. Lawson Date 12/20/10
Gregory M. Lawson

Residence: Tupelo, Mississippi
Citizenship: United States
Post Office Address: 133 Woodland Avenue
Tupelo, MS 38801

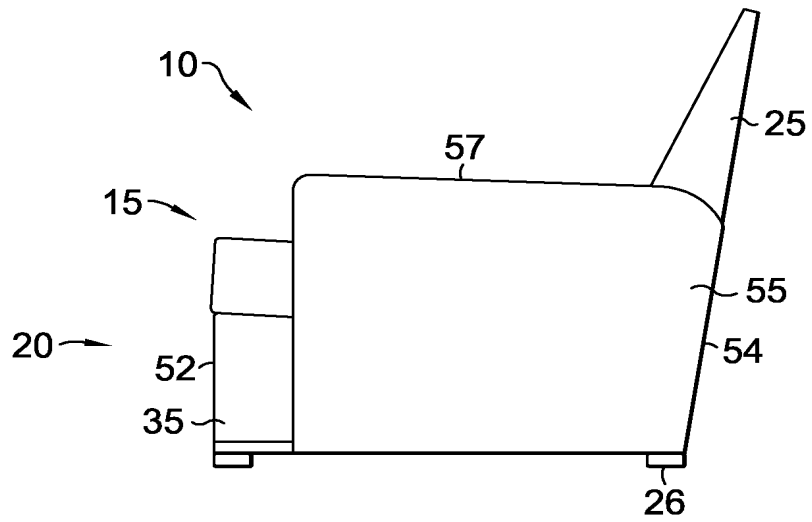


FIG. 1.

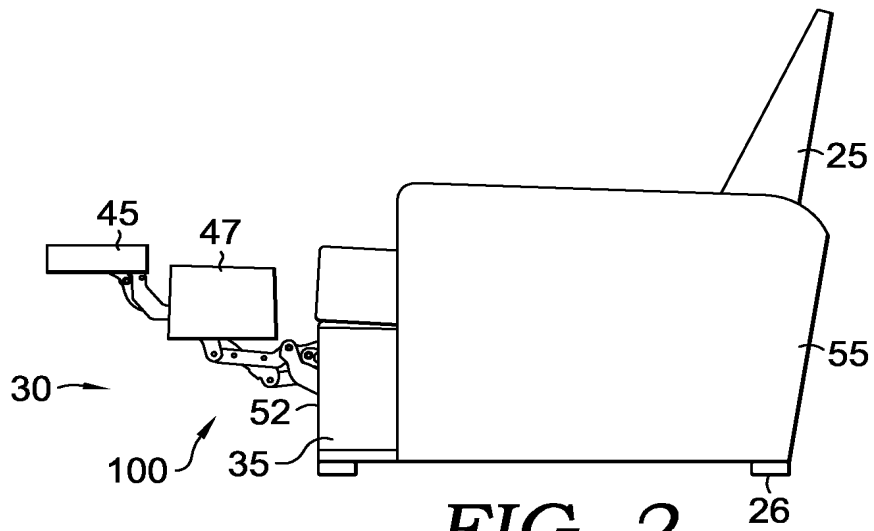


FIG. 2.

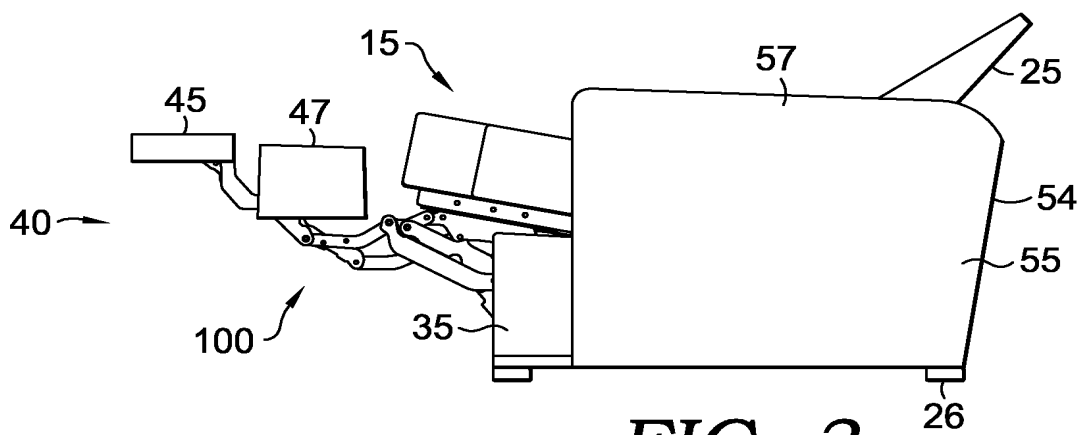
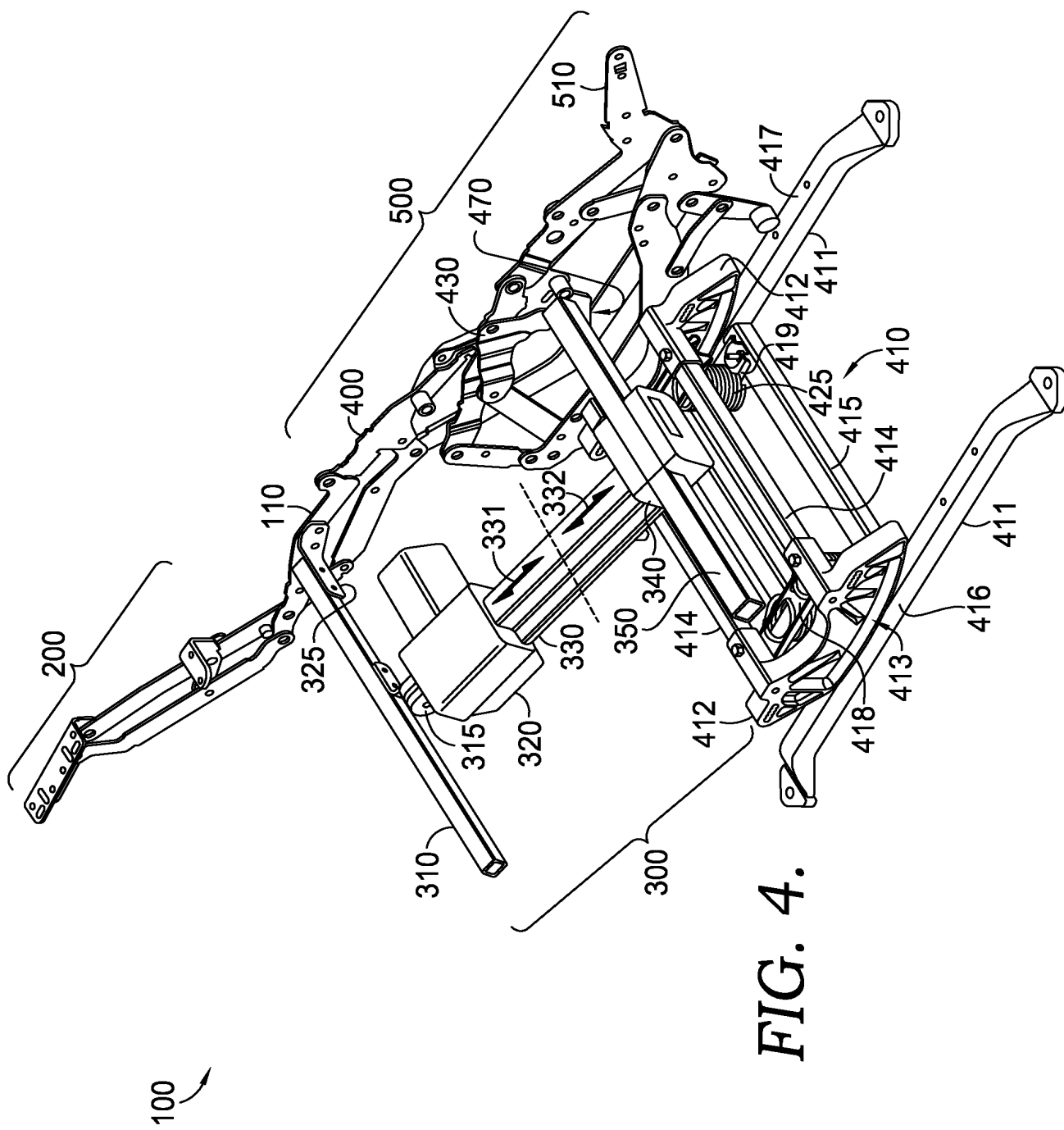


FIG. 3.



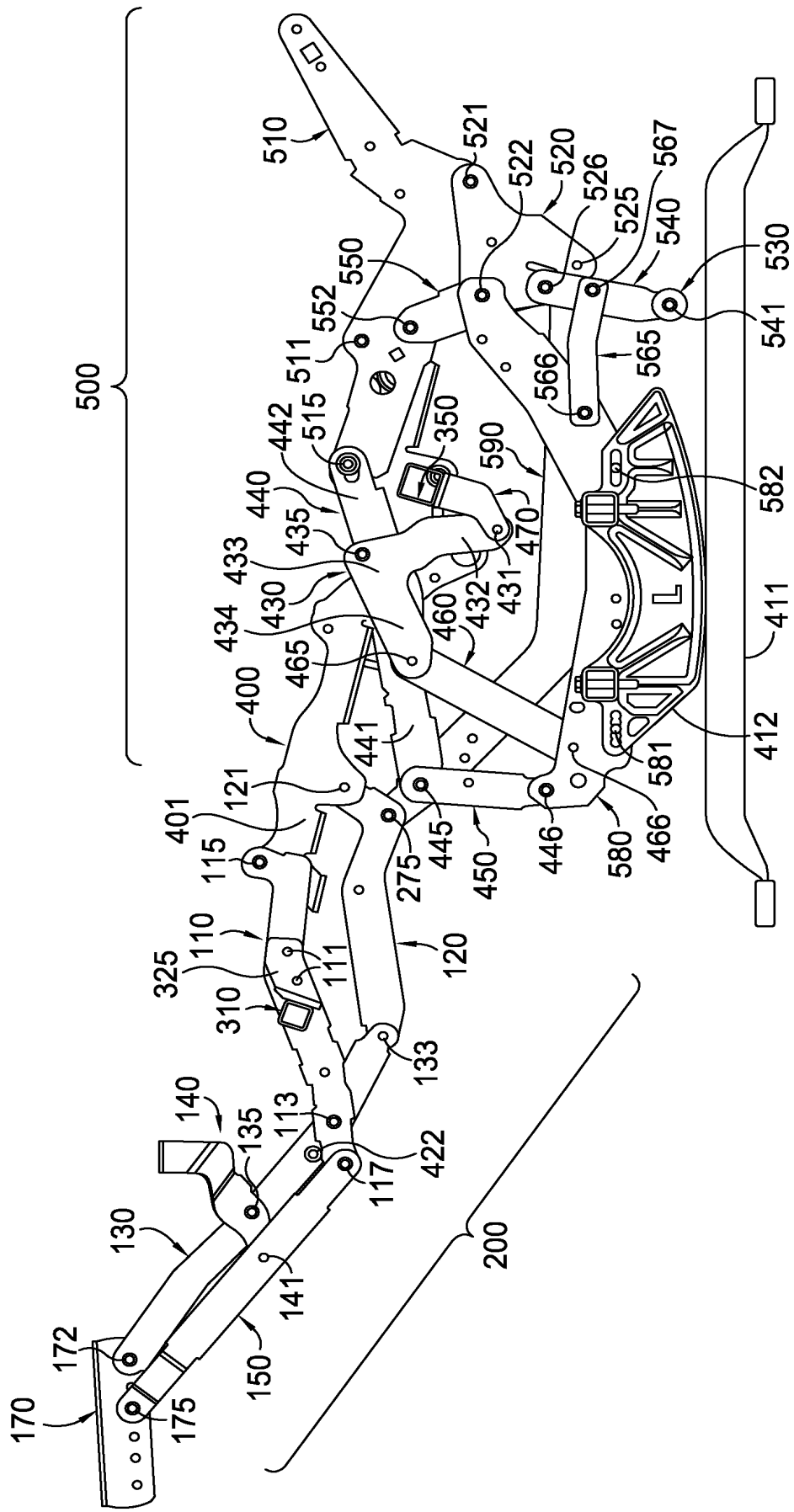
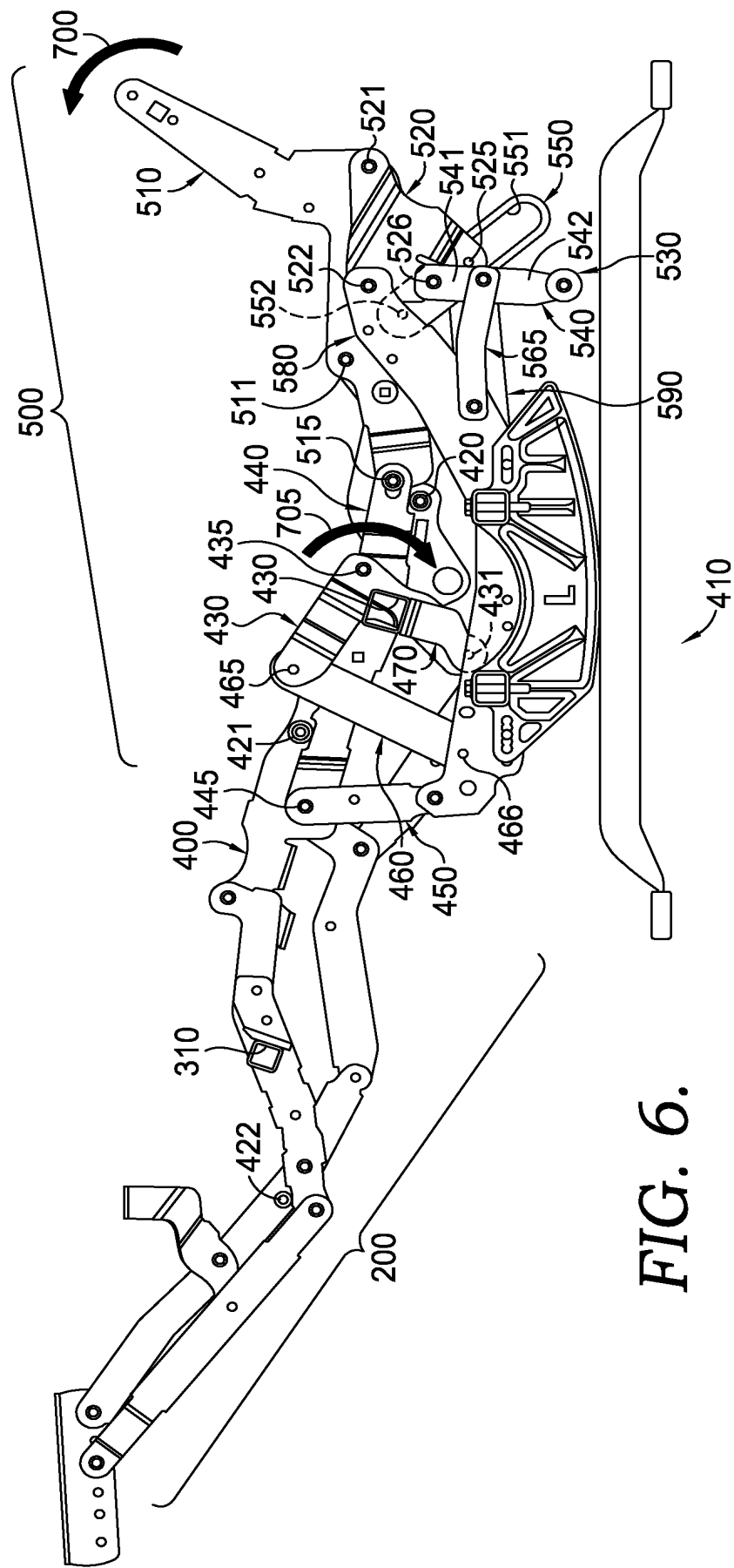


FIG. 5.

410



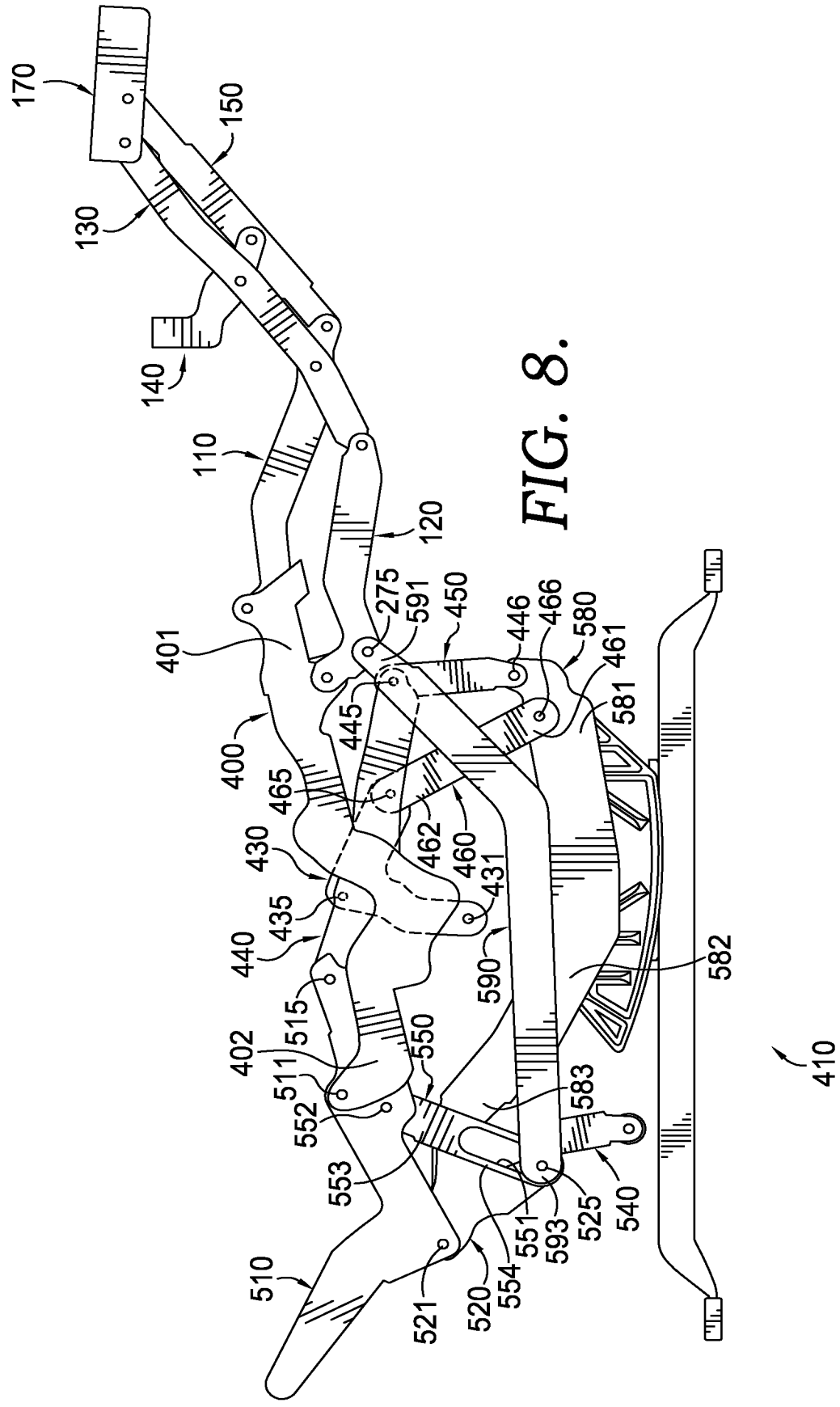


FIG. 9

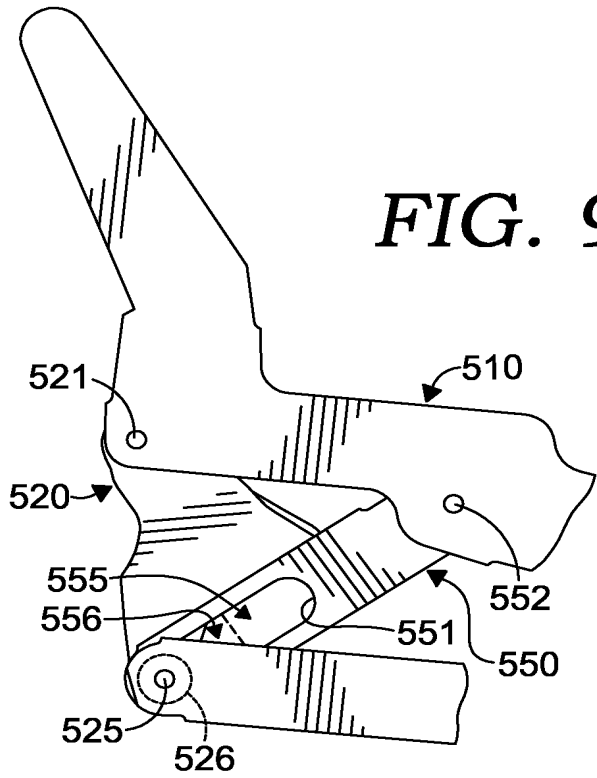
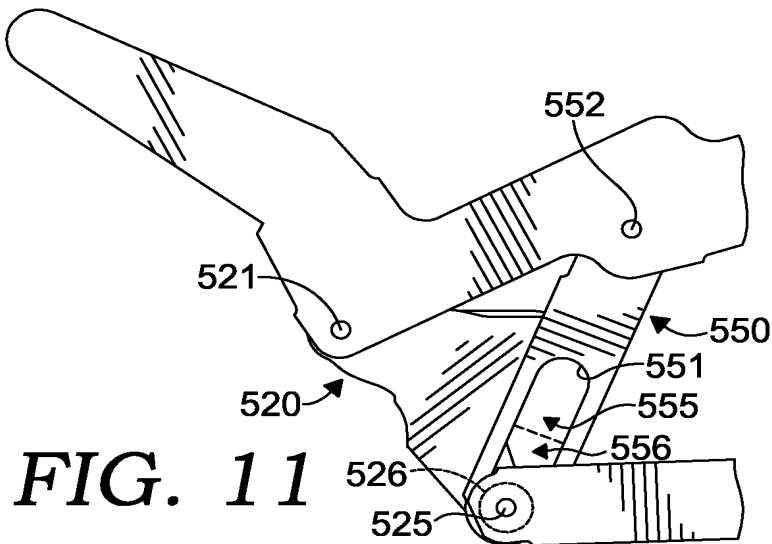
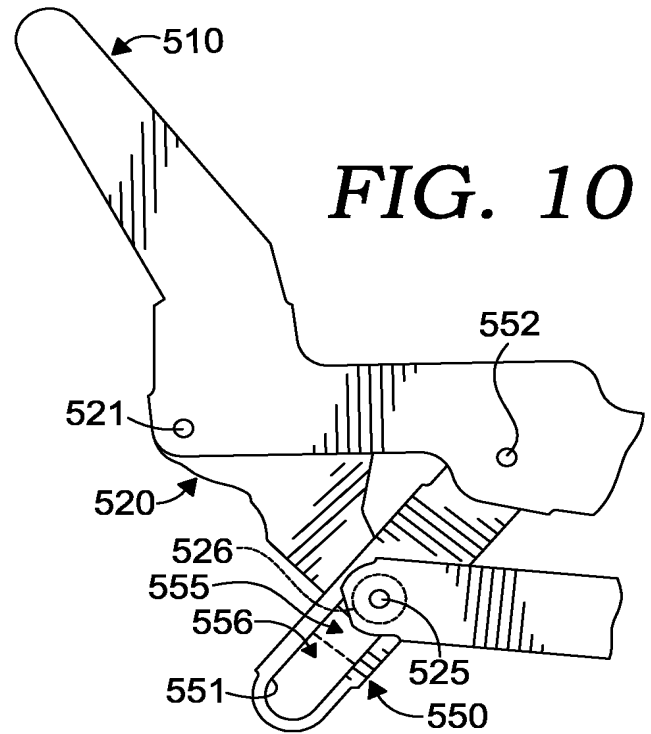


FIG. 10



Electronic Patent Application Fee Transmittal

Application Number:

Filing Date:

Title of Invention:

Powered Rocker Recliner Linkage Mechanism

First Named Inventor/Applicant Name:

Gregory M. Lawson

Filer:

Benjamin P. Tabor/Anna Muckenthaler Leeson

Attorney Docket Number:

LGPL.153597

Filed as Large Entity

Utility under 35 USC 111(a) Filing Fees

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Utility application filing	1011	1	330	330
Utility Search Fee	1111	1	540	540
Utility Examination Fee	1311	1	220	220

Pages:

Claims:

Miscellaneous-Filing:

Petition:

Patent-Appeals-and-Interference:

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				1090

Electronic Acknowledgement Receipt

EFS ID:	9134716
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	Powered Rocker Recliner Linkage Mechanism
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	05251
Filer:	Benjamin P. Tabor/Anna Muckenthaler Leeson
Filer Authorized By:	Benjamin P. Tabor
Attorney Docket Number:	LGPL.153597
Receipt Date:	29-DEC-2010
Filing Date:	
Time Stamp:	17:19:04
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	yes
Payment Type	Credit Card
Payment was successfully received in RAM	\$ 1090
RAM confirmation Number	3610
Deposit Account	
Authorized User	

File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
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1	Application Data Sheet	LGPL153597_ADS.pdf	1107387	no	4
			ea29bf58a5e637bb3324835509ff7e738de15f4e		
Warnings:					
Information:					
2		LGPL153597_Application.pdf	127502	yes	33
			c9a264c98b82b750b16a6a01d81f71ade9156a86		
	Multipart Description/PDF files in .zip description				
	Document Description		Start	End	
	Specification		1	24	
	Claims		25	32	
	Abstract		33	33	
Warnings:					
Information:					
3	Oath or Declaration filed	LGPL153597_Executed_Declaration.pdf	115348	no	2
			89b2d6380ac9433481d8637030fb98b4f6677e62		
Warnings:					
Information:					
4	Drawings-only black and white line drawings	LGPL153597_Figures.pdf	421933	no	8
			06915d5649883d3ff1ffd4adac1bb58864a4040b		
Warnings:					
Information:					
5	Fee Worksheet (PTO-875)	fee-info.pdf	32845	no	2
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Warnings:					
Information:					
Total Files Size (in bytes):			1805015		

This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503.

New Applications Under 35 U.S.C. 111

If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371

If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.

PATENT APPLICATION FEE DETERMINATION RECORD

Substitute for Form PTO-875

Application or Docket Number
12/981,176

APPLICATION AS FILED - PART I

(Column 1)

(Column 2)

SMALL ENTITY

OR

OTHER THAN SMALL ENTITY

FOR	NUMBER FILED	NUMBER EXTRA
BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A
SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A
EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A
TOTAL CLAIMS (37 CFR 1.16(i))	20 minus 20 =	*
INDEPENDENT CLAIMS (37 CFR 1.16(h))	3 minus 3 =	*
APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$270 (\$135 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).	
MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))		

RATE(\$)	FEE(\$)
N/A	
N/A	
N/A	
TOTAL	

OR

RATE(\$)	FEE(\$)
N/A	330
N/A	540
N/A	220
x 52 =	0.00
x 220 =	0.00
	0.00
	0.00
TOTAL	1090

* If the difference in column 1 is less than zero, enter "0" in column 2.

APPLICATION AS AMENDED - PART II

(Column 1)

(Column 2)

(Column 3)

SMALL ENTITY

OR

OTHER THAN SMALL ENTITY

AMENDMENT A		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA
	Total (37 CFR 1.16(i))	*	Minus	**	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=
	Application Size Fee (37 CFR 1.16(s))				
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))				

RATE(\$)	ADDITIONAL FEE(\$)
x =	
x =	
TOTAL ADD'L FEE	

OR

RATE(\$)	ADDITIONAL FEE(\$)
x =	
x =	
TOTAL ADD'L FEE	

(Column 1)

(Column 2)

(Column 3)

AMENDMENT B		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA
	Total (37 CFR 1.16(i))	*	Minus	**	=
	Independent (37 CFR 1.16(h))	*	Minus	***	=
	Application Size Fee (37 CFR 1.16(s))				
	FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))				

RATE(\$)	ADDITIONAL FEE(\$)
x =	
x =	
TOTAL ADD'L FEE	

OR

RATE(\$)	ADDITIONAL FEE(\$)
x =	
x =	
TOTAL ADD'L FEE	

* If the entry in column 1 is less than the entry in column 2, write "0" in column 3.

** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20".

*** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3".

The "Highest Number Previously Paid For" (Total or Independent) is the highest found in the appropriate box in column 1.



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APPLICATION NUMBER	FILING or 371(c) DATE	GRP ART UNIT	FIL FEE REC'D	ATTY. DOCKET NO	TOT CLAIMS	IND CLAIMS
12/981,176	12/29/2010	3636	1090	LGPL.153597	20	3

CONFIRMATION NO. 6055

5251
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

FILING RECEIPT



Date Mailed: 01/14/2011

Receipt is acknowledged of this non-provisional patent application. The application will be taken up for examination in due course. Applicant will be notified as to the results of the examination. Any correspondence concerning the application must include the following identification information: the U.S. APPLICATION NUMBER, FILING DATE, NAME OF APPLICANT, and TITLE OF INVENTION. Fees transmitted by check or draft are subject to collection. Please verify the accuracy of the data presented on this receipt. **If an error is noted on this Filing Receipt, please submit a written request for a Filing Receipt Correction. Please provide a copy of this Filing Receipt with the changes noted thereon. If you received a "Notice to File Missing Parts" for this application, please submit any corrections to this Filing Receipt with your reply to the Notice. When the USPTO processes the reply to the Notice, the USPTO will generate another Filing Receipt incorporating the requested corrections**

Applicant(s)

Gregory M. Lawson, Tupelo, MS;

Assignment For Published Patent Application

L & P PROPERTY MANAGEMENT COMPANY, South Gate, CA

Power of Attorney: The patent practitioners associated with Customer Number 05251

Domestic Priority data as claimed by applicant

This appln claims benefit of 61/295,546 01/15/2010

Foreign Applications (You may be eligible to benefit from the **Patent Prosecution Highway** program at the USPTO. Please see <http://www.uspto.gov> for more information.)

Permission to Access - A proper **Authorization to Permit Access to Application by Participating Offices** (PTO/SB/39 or its equivalent) has been received by the USPTO.

If Required, Foreign Filing License Granted: 01/12/2011

The country code and number of your priority application, to be used for filing abroad under the Paris Convention, is **US 12/981,176**

Projected Publication Date: 07/21/2011

Non-Publication Request: No

Early Publication Request: No

Title

POWERED ROCKER RECLINER LINKAGE MECHANISM

Preliminary Class

297

PROTECTING YOUR INVENTION OUTSIDE THE UNITED STATES

Since the rights granted by a U.S. patent extend only throughout the territory of the United States and have no effect in a foreign country, an inventor who wishes patent protection in another country must apply for a patent in a specific country or in regional patent offices. Applicants may wish to consider the filing of an international application under the Patent Cooperation Treaty (PCT). An international (PCT) application generally has the same effect as a regular national patent application in each PCT-member country. The PCT process **simplifies** the filing of patent applications on the same invention in member countries, but **does not result** in a grant of "an international patent" and does not eliminate the need of applicants to file additional documents and fees in countries where patent protection is desired.

Almost every country has its own patent law, and a person desiring a patent in a particular country must make an application for patent in that country in accordance with its particular laws. Since the laws of many countries differ in various respects from the patent law of the United States, applicants are advised to seek guidance from specific foreign countries to ensure that patent rights are not lost prematurely.

Applicants also are advised that in the case of inventions made in the United States, the Director of the USPTO must issue a license before applicants can apply for a patent in a foreign country. The filing of a U.S. patent application serves as a request for a foreign filing license. The application's filing receipt contains further information and guidance as to the status of applicant's license for foreign filing.

Applicants may wish to consult the USPTO booklet, "General Information Concerning Patents" (specifically, the section entitled "Treaties and Foreign Patents") for more information on timeframes and deadlines for filing foreign patent applications. The guide is available either by contacting the USPTO Contact Center at 800-786-9199, or it can be viewed on the USPTO website at <http://www.uspto.gov/web/offices/pac/doc/general/index.html>.

For information on preventing theft of your intellectual property (patents, trademarks and copyrights), you may wish to consult the U.S. Government website, <http://www.stopfakes.gov>. Part of a Department of Commerce initiative, this website includes self-help "toolkits" giving innovators guidance on how to protect intellectual property in specific countries such as China, Korea and Mexico. For questions regarding patent enforcement issues, applicants may call the U.S. Government hotline at 1-866-999-HALT (1-866-999-4158).

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set forth in 37 CFR 5.15. The scope and limitations of this license are set forth in 37 CFR 5.15(a) unless an earlier license has been issued under 37 CFR 5.15(b). The license is subject to revocation upon written notification. The date indicated is the effective date of the license, unless an earlier license of similar scope has been granted under 37 CFR 5.13 or 5.14.

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Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.

PATENT APPLICATION FEE DETERMINATION RECORD Substitute for Form PTO-875					Application or Docket Number 12/981,176		Filing Date 12/29/2010		☐ To be Mailed	
APPLICATION AS FILED – PART I										
(Column 1)			(Column 2)			SMALL ENTITY ☐ OR		OTHER THAN SMALL ENTITY		
FOR	NUMBER FILED	NUMBER EXTRA	RATE (\$)	FEE (\$)		RATE (\$)	FEE (\$)			
☒ BASIC FEE (37 CFR 1.16(a), (b), or (c))	N/A	N/A	N/A			N/A	330			
☒ SEARCH FEE (37 CFR 1.16(k), (l), or (m))	N/A	N/A	N/A			N/A	540			
☒ EXAMINATION FEE (37 CFR 1.16(o), (p), or (q))	N/A	N/A	N/A			N/A	220			
TOTAL CLAIMS (37 CFR 1.16(j))	20 minus 20 =	* 0	X \$ =		OR	X \$52 =	0			
INDEPENDENT CLAIMS (37 CFR 1.16(h))	3 minus 3 =	* 0	X \$ =			X \$220 =	0			
☐ APPLICATION SIZE FEE (37 CFR 1.16(s))	If the specification and drawings exceed 100 sheets of paper, the application size fee due is \$250 (\$125 for small entity) for each additional 50 sheets or fraction thereof. See 35 U.S.C. 41(a)(1)(G) and 37 CFR 1.16(s).									
☐ MULTIPLE DEPENDENT CLAIM PRESENT (37 CFR 1.16(j))										
			TOTAL			TOTAL	1090			
APPLICATION AS AMENDED – PART II										
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)		RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$ =		OR	X \$ =	
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$ =		OR	X \$ =	
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	
(Column 1)			(Column 2)			SMALL ENTITY OR		OTHER THAN SMALL ENTITY		
AMENDMENT		CLAIMS REMAINING AFTER AMENDMENT		HIGHEST NUMBER PREVIOUSLY PAID FOR	PRESENT EXTRA	RATE (\$)	ADDITIONAL FEE (\$)		RATE (\$)	ADDITIONAL FEE (\$)
	Total (37 CFR 1.16(i))	*	Minus	**	=	X \$ =		OR	X \$ =	
	Independent (37 CFR 1.16(h))	*	Minus	***	=	X \$ =		OR	X \$ =	
	☐ Application Size Fee (37 CFR 1.16(s))									
	☐ FIRST PRESENTATION OF MULTIPLE DEPENDENT CLAIM (37 CFR 1.16(j))							OR		
						TOTAL ADD'L FEE		OR	TOTAL ADD'L FEE	
* If the entry in column 1 is less than the entry in column 2, write "0" in column 3. ** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 20, enter "20". *** If the "Highest Number Previously Paid For" IN THIS SPACE is less than 3, enter "3". The "Highest Number Previously Paid For" (Total or Independent) is the highest number found in the appropriate box in column 1.										

Legal Instrument Examiner:
/EVA GILLIS/

This collection of information is required by 37 CFR 1.16. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176
	Filing Date		2010-12-29
	First Named Inventor	Gregory M. Lawson	
	Art Unit	3636	
	Examiner Name		
	Attorney Docket Number	LGPL.153597	

U.S.PATENTS						Remove
Examiner Initial*	Cite No	Patent Number	Kind Code ¹	Issue Date	Name of Patentee or Applicant of cited Document	Pages,Columns,Lines where Relevant Passages or Relevant Figures Appear
	1	6120095		2000-09-19	Rogers	
	2	5088473		2002-02-18	Chen	
	3	4244620		1981-01-13	Harrison, et al.	
	4	5765913		1998-06-16	Plunk	
	5	3300243		2009-14-16	Mizelle	
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Examiner Initial*	Cite No	Publication Number	Kind Code ¹	Publication Date	Name of Patentee or Applicant of cited Document	Pages,Columns,Lines where Relevant Passages or Relevant Figures Appear
	1	20040051350		2004-03-18	Duncan, et al.	

INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name			
	Attorney Docket Number	LGPL.153597		

	2	20060273631		2006-12-07	White, et al.	
	3	20090096255		2009-04-16	Robertson	

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Examiner Initial*	Cite No	Foreign Document Number ³	Country Code ² i	Kind Code ⁴	Publication Date	Name of Patentee or Applicant of cited Document	Pages, Columns, Lines where Relevant Passages or Relevant Figures Appear	T ⁵
	1							☐

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	1	International Search Report from PCT/US 11/20387 dated 03/23/2011	☐

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EXAMINER SIGNATURE			
Examiner Signature		Date Considered	

*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through a citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

¹ See Kind Codes of USPTO Patent Documents at www.USPTO.GOV or MPEP 901.04. ² Enter office that issued the document, by the two-letter code (WIPO Standard ST.3). ³ For Japanese patent documents, the indication of the year of the reign of the Emperor must precede the serial number of the patent document. ⁴ Kind of document by the appropriate symbols as indicated on the document under WIPO Standard ST.16 if possible. ⁵ Applicant is to place a check mark here if English language translation is attached.

**INFORMATION DISCLOSURE
STATEMENT BY APPLICANT**
(Not for submission under 37 CFR 1.99)

Application Number	12981176
Filing Date	2010-12-29
First Named Inventor	Gregory M. Lawson
Art Unit	3636
Examiner Name	
Attorney Docket Number	LGPL.153597

CERTIFICATION STATEMENT

Please see 37 CFR 1.97 and 1.98 to make the appropriate selection(s):

☐ That each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(1).

OR

☐ That no item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in 37 CFR 1.56(c) more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(2).

☐ See attached certification statement.

☐ The fee set forth in 37 CFR 1.17 (p) has been submitted herewith.

☒ A certification statement is not submitted herewith.

SIGNATURE

A signature of the applicant or representative is required in accordance with CFR 1.33, 10.18. Please see CFR 1.4(d) for the form of the signature.

Signature	/Benjamin P. Tabor/	Date (YYYY-MM-DD)	2011-05-19
Name/Print	Benjamin P. Tabor	Registration Number	60741

This collection of information is required by 37 CFR 1.97 and 1.98. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 1 hour to complete, including gathering, preparing and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

Privacy Act Statement

The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether the Freedom of Information Act requires disclosure of these records.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
4. A record in this system of records may be disclosed, as a routine use, to a contractor of the Agency having need for the information in order to perform a contract. Recipients of information shall be required to comply with the requirements of the Privacy Act of 1974, as amended, pursuant to 5 U.S.C. 552a(m).
5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspections or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

PATENT COOPERATION TREATY

From the INTERNATIONAL SEARCHING AUTHORITY

PCT

To:

BENJAMIN P. TABOR
SHOOK, HARDY & BACON L.L.P.
2555 GRAND BLVD.
KANSAS CITY, MO 64108-2613

NOTIFICATION OF TRANSMITTAL OF
THE INTERNATIONAL SEARCH REPORT AND
THE WRITTEN OPINION OF THE INTERNATIONAL
SEARCHING AUTHORITY, OR THE DECLARATION

(PCT Rule 44.1)

Date of mailing
(day/month/year)

23 MAR 2011

Applicant's or agent's file reference
LGPL153597/6

FOR FURTHER ACTION See paragraphs 1 and 4 below

International application No.
PCT/US 11/20387

International filing date
(day/month/year) 06 January 2011 (06.01.2011)

Applicant **L & P PROPERTY MANAGEMENT COMPANY**

1. ☒ The applicant is hereby notified that the international search report and the written opinion of the International Searching Authority have been established and are transmitted herewith.

Filing of amendments and statement under Article 19:

The applicant is entitled, if he so wishes, to amend the claims of the international application (see Rule 46):

When? The time limit for filing such amendments is normally two months from the date of transmittal of the international search report.

Where? Directly to the International Bureau of WIPO, 34 chemin des Colombettes
1211 Geneva 20, Switzerland, Facsimile No.: +41 22 338 82 70

For more detailed instructions, see PCT Applicant's Guide, International Phase, paragraphs 9.004 – 9.011.

2. ☐ The applicant is hereby notified that no international search report will be established and that the declaration under Article 17(2)(a) to that effect and the written opinion of the International Searching Authority are transmitted herewith.

3. ☐ **With regard to any protest against payment of (an) additional fee(s) under Rule 40.2, the applicant is notified that:**

☐ the protest together with the decision thereon has been transmitted to the International Bureau together with any request to forward the texts of both the protest and the decision thereon to the designated Offices.

☐ no decision has been made yet on the protest; the applicant will be notified as soon as a decision is made.

4. **Reminders**

The applicant may submit comments on an informal basis on the written opinion of the International Searching Authority to the International Bureau. The International Bureau will send a copy of such comments to all designated Offices unless an international preliminary examination report has been or is to be established. Following the expiration of 30 months from the priority date, these comments will also be made available to the public.

Shortly after the expiration of **18 months** from the priority date, the international application will be published by the International Bureau. If the applicant wishes to avoid or postpone publication, a notice of withdrawal of the international application, or of the priority claim, must reach the International Bureau before the completion of the technical preparations for international publication (Rules 90bis.1 and 90bis.3).

Within **19 months** from the priority date, but only in respect of some designated Offices, a demand for international preliminary examination must be filed if the applicant wishes to postpone the entry into the national phase **until 30 months** from the priority date (in some Offices even later); otherwise, the applicant must, **within 20 months** from the priority date, perform the prescribed acts for entry into the national phase before those designated Offices.

In respect of other designated Offices, the time limit of **30 months** (or later) will apply even if no demand is filed within 19 months.

For details about the applicable time limits, Office by Office, see www.wipo.int/pct/en/texts/time_limits.html and the *PCT Applicant's Guide, National Chapters*.

Name and mailing address of the ISA/
Mail Stop PCT, Attn: ISA/US
Commissioner for Patents
P.O. Box 1450, Alexandria, Virginia 22313-1450
Facsimile No. 571-273-3201

Authorized officer

Lee W. Young

PCT Helpdesk: 571-272-4300

Telephone No. PCT OSP: 571-272-7774

Form PCT/ISA/220 (July 2010)

RECEIVED BY SHB

MAR 28 2011

LGPL153597/106

PATENT COOPERATION TREATY

PCT

INTERNATIONAL SEARCH REPORT (PCT Article 18 and Rules 43 and 44)

Applicant's or agent's file reference LGPL153597/6	FOR FURTHER ACTION see Form PCT/ISA/220 as well as, where applicable, item 5 below.	
International application No. PCT/US 11/20387	International filing date (day/month/year) 06 January 2011 (06.01.2011)	(Earliest) Priority Date (day/month/year) 15 January 2010 (15.01.2010)
Applicant L & P PROPERTY MANAGEMENT COMPANY		

This international search report has been prepared by this International Searching Authority and is transmitted to the applicant according to Article 18. A copy is being transmitted to the International Bureau.

This international search report consists of a total of 2 sheets.

☐ It is also accompanied by a copy of each prior art document cited in this report.

1. Basis of the report

a. With regard to the **language**, the international search was carried out on the basis of:

- ☒ the international application in the language in which it was filed.
☐ a translation of the international application into _____ which is the language of a translation furnished for the purposes of international search (Rules 12.3(a) and 23.1(b)).

b. ☐ This international search report has been established taking into account the **rectification of an obvious mistake** authorized by or notified to this Authority under Rule 91 (Rule 43.6bis(a)).

c. ☐ With regard to any **nucleotide and/or amino acid sequence** disclosed in the international application, see Box No. I.

2. ☐ **Certain claims were found unsearchable** (see Box No. II).

3. ☐ **Unity of invention is lacking** (see Box No. III).

4. With regard to the **title**,

- ☒ the text is approved as submitted by the applicant.
☐ the text has been established by this Authority to read as follows:

5. With regard to the **abstract**,

- ☒ the text is approved as submitted by the applicant.
☐ the text has been established, according to Rule 38.2, by this Authority as it appears in Box No. IV. The applicant may, within one month from the date of mailing of this international search report, submit comments to this Authority.

6. With regard to the **drawings**,

- a. the figure of the **drawings** to be published with the abstract is Figure No. 4
☒ as suggested by the applicant.
☐ as selected by this Authority, because the applicant failed to suggest a figure.
☐ as selected by this Authority, because this figure better characterizes the invention.
- b. ☐ none of the figures is to be published with the abstract.

INTERNATIONAL SEARCH REPORT

International application No.

PCT/US 11/20387

A. CLASSIFICATION OF SUBJECT MATTER

IPC(8) - A47C 1/031 (2011.01)

USPC - 297/85M

According to International Patent Classification (IPC) or to both national classification and IPC

B. FIELDS SEARCHED

Minimum documentation searched (classification system followed by classification symbols)

USPC: 297/85M

Documentation searched other than minimum documentation to the extent that such documents are included in the fields searched
USPC: 297/68, 259.2, 260.2, 260.3, 271.1, 271.4, 71, 75, 76, 83, 85M, 86, 88 (text search - see terms below)

Electronic data base consulted during the international search (name of data base and, where practicable, search terms used)

PubWEST(USPT,PGPB,EPAB,JPAB); Google

Search Terms: linear actuator, TV position, three position, motor, chair, recline, linkage, footrest, foot, rest, carrier, assembly, glide, sequence, track

C. DOCUMENTS CONSIDERED TO BE RELEVANT

Category*	Citation of document, with indication, where appropriate, of the relevant passages	Relevant to claim No.
X	US 2004/0051350 A1 (DUNCAN et al.) 18 March 2004 (18.03.2004), entire document especially the Abstract; Figs 1-7; paras [0032]-[0034], [0041], [0063]-[0064], [0068]	1
Y		2-10, 15
Y	US 2006/0273631 A1 (WHITE et al.) 07 December 2006 (07.12.2006), entire document especially Figs 2-7; paras [0004], [0025]-[0029], [0067]	2, 7, 10-15
Y	US 6,120,095 A (ROGERS) 19 September 2000 (19.09.2000), entire document especially Fig 3; col 5, lns 45-56; col 6, lns 9-16	3
Y	US 5,088,473 A (CHEN et al.) 18 February 1992 (18.02.1992), entire document especially Figs 1, 5; col 6, lns 22-59	4-10
Y	US 4,244,620 A (HARRISON et al.) 13 January 1981 (13.01.1981), entire document especially col 8, lns 66-col 9, ln 24	11-15
A	US 5,765,913 A (LAPOINTE et al.) 16 June 1998 (16.06.1998), entire document especially the Abstract; Fig 2	3
A	US 5,072,988 A (PLUNK) 17 December 1991 (17.12.1991), entire document especially Fig 2	7, 10
A	US 3,300,243 A (MIZELLE) 24 January 1967 (24.01.1967), entire document	1-15
A	US 2009/0096255 A1 (ROBERTSON) 16 April 2009 (16.04.2009), entire document	1-15

☐ Further documents are listed in the continuation of Box C.

* Special categories of cited documents:

"A" document defining the general state of the art which is not considered to be of particular relevance

"E" earlier application or patent but published on or after the international filing date

"L" document which may throw doubts on priority claim(s) or which is cited to establish the publication date of another citation or other special reason (as specified)

"O" document referring to an oral disclosure, use, exhibition or other means

"P" document published prior to the international filing date but later than the priority date claimed

"T" later document published after the international filing date or priority date and not in conflict with the application but cited to understand the principle or theory underlying the invention

"X" document of particular relevance; the claimed invention cannot be considered novel or cannot be considered to involve an inventive step when the document is taken alone

"Y" document of particular relevance; the claimed invention cannot be considered to involve an inventive step when the document is combined with one or more other such documents, such combination being obvious to a person skilled in the art

"&" document member of the same patent family

Date of the actual completion of the international search

25 February 2011 (25.02.2011)

Date of mailing of the international search report

23 MAR 2011

Name and mailing address of the ISA/US

Mail Stop PCT, Attn: ISA/US, Commissioner for Patents
P.O. Box 1450, Alexandria, Virginia 22313-1450

Facsimile No. 571-273-3201

Authorized officer:

Lee W. Young

PCT Helpdesk: 571-272-4300
PCT OSP: 571-272-7774

PATENT COOPERATION TREATY

From the
INTERNATIONAL SEARCHING AUTHORITY

PCT

WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY

(PCT Rule 43bis.1)

To: BENJAMIN P. TABOR
SHOOK, HARDY & BACON L.L.P.
2555 GRAND BLVD.
KANSAS CITY, MO 64108-2613

Date of mailing
(day/month/year) **23 MAR 2011**

Applicant's or agent's file reference
LGPL153597/6

FOR FURTHER ACTION

See paragraph 2 below

International application No.
PCT/US 11/20387

International filing date (day/month/year)
06 January 2011 (06.01.2011)

Priority date (day/month/year)
15 January 2010 (15.01.2010)

International Patent Classification (IPC) or both national classification and IPC
IPC(8) - A47C 1/031 (2011.01)
USPC - 297/85M

Applicant **L & P PROPERTY MANAGEMENT COMPANY**

1. This opinion contains indications relating to the following items:

- ☒ Box No. I Basis of the opinion
- ☐ Box No. II Priority
- ☐ Box No. III Non-establishment of opinion with regard to novelty, inventive step and industrial applicability
- ☐ Box No. IV Lack of unity of invention
- ☒ Box No. V Reasoned statement under Rule 43bis.1(a)(i) with regard to novelty, inventive step or industrial applicability; citations and explanations supporting such statement
- ☐ Box No. VI Certain documents cited
- ☒ Box No. VII Certain defects in the international application
- ☐ Box No. VIII Certain observations on the international application

2. FURTHER ACTION

If a demand for international preliminary examination is made, this opinion will be considered to be a written opinion of the International Preliminary Examining Authority ("IPEA") except that this does not apply where the applicant chooses an Authority other than this one to be the IPEA and the chosen IPEA has notified the International Bureau under Rule 66.1bis(b) that written opinions of this International Searching Authority will not be so considered.

If this opinion is, as provided above, considered to be a written opinion of the IPEA, the applicant is invited to submit to the IPEA a written reply together, where appropriate, with amendments, before the expiration of 3 months from the date of mailing of Form PCT/ISA/220 or before the expiration of 22 months from the priority date, whichever expires later.

For further options, see Form PCT/ISA/220.

3. For further details, see notes to Form PCT/ISA/220.

Name and mailing address of the ISA/US
Mail Stop PCT, Attn: ISA/US
Commissioner for Patents
P.O. Box 1450, Alexandria, Virginia 22313-1450
Facsimile No. 571-273-3201

Date of completion of this opinion
25 February 2011 (25.02.2011)

Authorized officer:

Lee W. Young

PCT Helpdesk: 571-272-4300
PCT OSP: 571-272-7774

WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY

International application No.
PCT/US 11/20387

Box No. 1 Basis of this opinion

1. With regard to the **language**, this opinion has been established on the basis of:
 - ☒ the international application in the language in which it was filed.
 - ☐ a translation of the international application into _____ which is the language of a translation furnished for the purposes of international search (Rules 12.3(a) and 23.1(b)).
2. ☐ This opinion has been established taking into account the **rectification of an obvious mistake** authorized by or notified to this Authority under Rule 91 (Rule 43bis.1(a))
3. With regard to any **nucleotide and/or amino acid sequence** disclosed in the international application, this opinion has been established on the basis of a sequence listing filed or furnished:
 - a. (means)
 - ☐ on paper
 - ☐ in electronic form
 - b. (time)
 - ☐ in the international application as filed
 - ☐ together with the international application in electronic form
 - ☐ subsequently to this Authority for the purposes of search
4. ☐ In addition, in the case that more than one version or copy of a sequence listing has been filed or furnished, the required statements that the information in the subsequent or additional copies is identical to that in the application as filed or does not go beyond the application as filed, as appropriate, were furnished.
5. Additional comments:

**WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY**

International application No.

PCT/US 11/20387

Box No. V Reasoned statement under Rule 43bis.1(a)(i) with regard to novelty, inventive step or industrial applicability; citations and explanations supporting such statement

1. Statement

Novelty (N)	Claims	2-15	YES
	Claims	1	NO
Inventive step (IS)	Claims	None	YES
	Claims	1-15	NO
Industrial applicability (IA)	Claims	1-15	YES
	Claims	None	NO

2. Citations and explanations:

Claim 1 lacks novelty under PCT Article 33(2) as being anticipated by US 2004/0051350 A1 to DUNCAN et al. (hereinafter Duncan).

Claim 1; Duncan discloses a seating unit having a chassis (10, 18), a seat (17, 31), a backrest (15 27), and at least one foot support ottoman (13), the seating unit being adapted to move between a closed, an extended and a reclined position (Abstract; Fig 1; para [0032]), the seating unit comprising:

a pair of seat-mounting plates (20) in substantially parallel-spaced relation (Fig 2; para [0040]), wherein the seat-mounting plates translateably carry the seat over an underlying surface (24) (Figs 1B, 2; para [0041]) and a pair of the generally mirror-image linkage mechanisms (10L, 10R) each moveably interconnecting the backrest and the at least one foot-support ottoman to a respective seat-mounting plate (Fig 1; paras [0032], [0034]), wherein each of the linkage mechanisms comprise: (a) a footrest assembly (12) that extends and retracts the at least one foot-support ottoman (para [0032]); and (b) a seat-adjustment assembly (14) that reclines and inclines the backrest (para [0032]); and a linear actuator (90) that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position (Figs 5-7, 11; paras [0007], [0068]), wherein the linear-actuator adjustment is sequenced into a first phase and a second phase that are mutually exclusive in stroke (para [0068]), wherein the first phase moves the footrest assembly between the closed position and the extended position (para [0063]), and wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position (para [0064]).

Claim 2 lacks an inventive step under PCT Article 33(3) as being obvious over Duncan in view of US 2006/0273631 A1 to WHITE et al. (hereinafter White).

Claim 2; Duncan discloses the seating unit of Claim 1, but does not specifically disclose a pair of rocker mechanisms that are each attached to a respective base plate to moveably support the respective base plate above an underlying surface. White discloses a pair of rocker mechanisms (12) that are each attached to a respective base plate (48) to moveably support the respective base plate above an underlying surface (Fig 2; paras [0025], [0027]), and wherein each of the rocker mechanisms comprise: a rocker base (30) that includes a front end, a rear end, and a mid section, wherein the front end and the rear end attach to respective legs that support the rocker base above the underlying surface (Fig 2 (the legs are the portions of 30 that contact the ground)); a rocker element (28) that is formed with a convex curvature that rollably rides upon the mid section of the rocker base, wherein the rocker element is attached to the respective base plate (Figs 2, 7; para [0025]); and at least one spring (40) that interconnects the rocker base and the rocker element, wherein the interconnection of the at least one spring facilitates a controlled sway of the rocker element with respect to the rocker base (Figs 6, 7; para [0034]).

A person skilled in the art would have been motivated to modify the seating unit of Duncan in accordance with the teachings of White so as to include a pair of rocker mechanisms that are each attached to a respective base plate to moveably support the respective base plate above an underlying surface as claimed, since it would allow the seating unit to provide a rocking motion to the user.

Claim 3 lacks an inventive step under PCT Article 33(3) as being obvious over Duncan in view of US 6,120,095 A (ROGERS).

Claim 3; Duncan discloses the seating unit of Claim 1, but does not specifically disclose a pair of glide brackets or a glide assembly. Rogers discloses a pair of glide brackets (18) in substantially parallel-spaced relation that are each mounted to the chassis and that are each vertically raised above an underlying surface by a plurality of supports (Figs 1, 4; col 3, ln 67-col 4, ln 8); and a glide assembly provided in each of the linkage mechanisms, wherein the glide assembly includes a pair of glide links (50, 60) that swing in concert to translate a carrier link (33) of the seat-adjustment assembly forward and backward with respect to one of the pair of glide brackets (Fig 3; col 5, lns 45-56; col 6, lns 9-16).

A person skilled in the art would have been motivated to modify the seating unit of Duncan in accordance with the teachings of Rogers so as to include a pair of glide brackets and a glide assembly as claimed, since it would allow the seating unit to provide a gliding motion to the user.

-- Please See Continuation Sheet --

**WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY**

International application No.

PCT/US 11/20387

Box No. VII Certain defects in the international application

The following defects in the form or contents of the international application have been noted:
Claim 12 is unclear and improper as it depends from later, non-existing claim 16. It can be assumed that this is typographical error. For the purposes of this opinion, claim will depend from claim 11.

Claim 13 is unclear and improper as it depends from later, non-existing claim 17. It can be assumed that this is typographical error. For the purposes of this opinion, claim will depend from claim 11.

Claim 14 is unclear and improper as it depends from later, non-existing claim 18. It can be assumed that this is typographical error. For the purposes of this opinion, claim will depend from claim 12.

WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY

International application No.

PCT/US 11/20387

Supplemental Box

In case the space in any of the preceding boxes is not sufficient.

Continuation of:

Box V. 2. Citations and explanations:

Claims 4-6 and 8-9 lack an inventive step under PCT Article 33(3) as being obvious over Duncan in view of US 5,088,473 A to CHEN et al. (hereinafter Chen).

Claim 4: Duncan discloses the seating unit of Claim 1. Duncan further discloses a pair of motor tube/actuator bars (P1 P2) that span and couple to the pair of linkage mechanisms (Fig 11); a motor mechanism (90) (para [0068]); and that the linear actuator travels from a first position to a second position and from a second position to a third position (para [0068]).

However, Duncan does not specifically disclose a track operably coupled to the motor mechanism, wherein the track includes a first travel section and a second travel section; or a motor activator block that translates longitudinally along the track under automated control. Chen discloses a track (4g) operably coupled to the motor mechanism (M) and a block (6) that translates along the track so as to move the activator bar 7 (Figs 1, 5; col 6, lns 22-59).

A person skilled in the art would have been motivated to modify the seating unit of Duncan in accordance with the teachings of Chen so as to include a front motor tube; an activator bar, a track, and a block as claimed, since implementing the motion with a block moving along a track would provide for more precise control of the motion.

Claim 5: Duncan discloses that the front motor tube has a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to a front ottoman link (para [0032]) within the footrest assembly, wherein the front ottoman link is rotatably coupled to a forward portion of the seat-mounting plate 20, and wherein a housing of the motor mechanism is pivotably coupled to a section between the pair of ends of the front motor tube (Figs 1, 11).

Claim 6: Duncan discloses that the first phase involves longitudinal translation of the motor activator block along the first travel section that creates a lateral thrust at the front motor tube, thereby invoking movement of the front ottoman link, the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position, and wherein, during the stroke of the linear actuator 90 within the first phase, the motor mechanism moves forward and upward with respect to the pair of rocker mechanisms while the motor activator block remains generally fixed in space (paras [0064]-[0065], [0068]).

Claim 8: Duncan discloses that the second phase involves longitudinal translation of the motor activator block along the second travel section that creates a lateral thrust at the activator bar, thereby invoking movement of the motor bellcrank 52, the movement of the motor bellcrank controls adjustment of the seat-adjustment assembly between the extended position and the reclined position, and wherein, during the stroke of the linear actuator within the second phase, the motor activator block moves rearward with respect to the pair of rocker mechanisms while the motor mechanism remains generally fixed in space (Fig 11; para [0046], [0048], [0064]).

Claim 9: Duncan discloses that the pair of linkage mechanisms are configured to translate the seat-mounting plates at a substantially consistent inclination angle, with respect to the underlying surface, throughout the adjustment of the seating unit between the closed position, the extended position, and the reclined position (Figs 5A, 6A, 7A).

Claims 11-14 lack an inventive step under PCT Article 33(3) as being obvious over White in view of US 4,244,620 A to HARRISON et al. (hereinafter Harrison).

Claim 11: White discloses a pair of the generally mirror-image linkage mechanisms (14) adapted to move a seating unit between a closed, an extended, and a reclined position, the seating unit having a seat that is translatable with respect to an underlying surface and a backrest that is angularly adjustable with respect to the seat (paras [0004], [0024]), each of the linkage mechanisms comprising: a sequence link (64) having a guide slot (0074), wherein the guide slot includes a first region and a second region (Fig 2; para [0028]); and a sequence element (76) that, at least partially, extends into the guide slot, wherein the sequence element resides within the second region when the seating unit is adjusted to the reclined position, and wherein the sequence element resides within the first region when the seating unit is adjusted to the extended position, and when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link allows adjustment of the seating unit to either the reclined position or to the closed position, and wherein the sequence element resides within the second region when the seating unit is adjusted to the closed position (Figs 2-4; paras [0027]-[0028]).

However, White does not specifically disclose that when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position.

Harrison discloses that when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position (col 8, lns 66-67; col 9, ln 24).

A person skilled in the art would have been motivated to modify the seating unit of White in accordance with the teachings of Harrison such that when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position, since it enable the chair to be easily placed in the TV position from either the closed position or the reclined position.

Claim 12: White discloses a backmounting link (82) that is configured to support the backrest, wherein the sequence link includes an upper portion and a lower portion, wherein the upper portion is rotatably coupled to the back-mounting link, and wherein the guide slot represents a pill-shaped aperture formed within the lower portion of the sequence link (para [0029]; Fig 3).

-- Please See Continuation Sheet --

WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY

International application No.
PCT/US 11/20387

Supplemental Box

In case the space in any of the preceding boxes is not sufficient.

Continuation of:

Box V. 2. Citations and explanations:

Claim 13; White discloses that the sequence element fully extends through the guide slot, and wherein the first region is above the second region within the guide slot (Fig 3).

Claim 14; White discloses a seat mounting plate (50) that supports the seat, the seat-mounting plate is rotatably coupled to the back-mounting link (Fig 2; a base plate that is interconnected to the seat-mounting plate via a system of links (para [0027]); a rear pivot link (84) rotatably coupled to the back-mounting link, to the rearward portion of the base plate, and to the sequence element (para [0029]).

Claims 7 and 10 lack an inventive step under PCT Article 33(3) as being obvious over Duncan in view of Chen and further in view of White.

Claim 7; Duncan in view of Chen discloses the seating unit of Claim 4. Duncan further discloses that the activator bar (P1) has a pair of ends, wherein one of the ends of the activator bar is rotatably coupled to a motor bellcrank (52) within the seat-adjustment assembly via a motor pivot bracket (32) (Figs 1, 2, 11; para [0046] linear actuator 90 applies force to pivot bracket 32 at P1 to cause motion of 20 that is applied at the first end of the bell crank the bellcrank 52)), wherein the motor activator block is fixedly coupled to a section between the pair of ends of the activator bar (P1) (Figs 1-3, 11; paras [0046], [0048] (the activator block is disclosed in Chen)), and wherein the seat-adjustment assembly comprises: the motor bellcrank (52) that includes a mid portion (C') located between a first end and a second end, wherein the motor pivot bracket is rotatably coupled to the first end of the motor bellcrank (Figs 1-3; 11; 32 is coupled to 54 via 20)); a back-mounting link (56) rotatably coupled (via 58 and 60) to a respective seat-mounting plate (20), wherein the back-mounting link is configured to support the backrest (Figs 1, 5-7); and a front lift link having a front end and a back end, wherein the mid portion C' of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link (Fig 2; para [0046]).

However, Duncan does not specifically show that the back end of the front lift link is pivotably coupled to the back-mounting link. White discloses that the back end of the front lift link (62) is pivotably coupled to the back-mounting link 82 (via 84 - fig 2).

A person skilled in the art would have been motivated to further modify the seating unit of Duncan/Chen in accordance with the teachings of White and through routine experimentation such that the back end of the front lift link is pivotably coupled to the back-mounting link, since it would provide an effective means of moving the chair between its three positions.

Claim 10; Duncan discloses that the seat-adjustment assembly further comprises a lifter link (50) that pivotably connects to the second end of the motor bellcrank (Fig 3).

-- Please See Continuation Sheet --

WRITTEN OPINION OF THE
INTERNATIONAL SEARCHING AUTHORITY

International application No.
PCT/US 11/20387

Supplemental Box

In case the space in any of the preceding boxes is not sufficient.
Continuation of:

Claim 15 lacks an inventive step under PCT Article 33(3) as being obvious over White in view of Harrison and in view of Duncan.

Claim 15; White discloses a seating unit, comprising: a pair of seat-mounting plates (50) in substantially parallel-spaced relation, wherein each of the seat-mounting plates is disposed in an inclined orientation in relation to an underlying surface (Fig 2; para [0024]); a pair of generally mirror-image linkage mechanisms (14) adapted to move the seating unit between a closed position, an extended position, and a reclined position (paras [0004], [0024]), wherein each of the linkage mechanisms comprise:

(a) a back-mounting link (82) rotatably coupled to a respective seat-mounting plate and configured to support a backrest of the seating unit (para [0029]; Fig 3); (b) a sequence link (64) rotatably coupled to the backmounting link, wherein the sequence link includes a guide slot (74) (Fig 2; para [0028]); (c) a rear pivot link (84) rotatably coupled to the back-mounting link and to a sequence element, wherein the sequence element extends into the guide slot (para [0029]).

However, White does not specifically disclose that the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position; or

(d) a motor bellcrank having a mid portion located between a first end and a second end, wherein an activator bar is rotatably coupled to the first end of the motor bellcrank; or

(e) a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link; and a linear actuator, coupled to the activator bar, that is sequenced into a mutually exclusive first phase and second phase, wherein the first phase moves the linkage mechanisms between the closed position and the extended position, and wherein the second phase moves the linkage mechanisms between the extended position and the reclined position.

Harrison discloses that the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position (col 8, lns 66-col 9, ln 24).

Duncan discloses (d) a motor bellcrank (52) having a mid portion located between a first end and a second end, wherein an activator bar (P2) is rotatably coupled to the first end of the motor bellcrank (Figs 1, 5, 11; para [0048]); and

(e) a front lift link (58) having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link (Figs 1, 5-7; para [0047]); and a linear actuator (90), coupled to the activator bar, that is sequenced into a mutually exclusive first phase and second phase, wherein the first phase moves the linkage mechanisms between the closed position and the extended position, and wherein the second phase moves the linkage mechanisms between the extended position and the reclined position (para [0063]-[0064], [0068]).

A person skilled in the art would have been motivated to modify the seating unit of White in accordance with the teachings of Harrison such that the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position, since it enable the seating unit to be placed into the TV position from either the closed position or the reclined position.

A person skilled in the art would have been motivated to modify the seating unit of White in accordance with the teachings of Duncan to include a motor bell crank and a front lift link as claimed, since it would allow the seating unit to be automatically switched between positions.

Claims 1-15 have industrial applicability as defined by PCT Article 33(4) because the subject matter can be made or used in industry.

SEARCH HISTORY

Application Number	PCT/US 11/20387
Search Conducted By	TCS
Search Approved By	MJB

US/IPC Classifications Searched	USPC: 297/85M
Date Conducted	24 February 2011 (24.02.2011)

Documentation Searched	USPC: 297/68, 259.2, 260.2, 260.3, 271.1, 271.4, 71, 75, 76, 83, 85M, 86, 88
Search Terms Used	linear actuator, TV position, three position, motor, chair, recline, linkage, footrest, foot, rest, carrier, assembly, glide, sequence, track
Date Conducted	24 February 2011 (24.02.2011)

Electronic Database Searched	PubWest
Files Searched	USPT,PGPB,EPAB,JPAB
Date Conducted	24 February 2011 (24.02.2011)
Search Logic:	

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<u>L9</u>	L8 and motor	3	<u>L9</u>	<u>L9</u>
<u>L8</u>	L7 and three position	14	<u>L8</u>	<u>L8</u>
<u>L7</u>	L6 and l3	87	<u>L7</u>	<u>L7</u>

SEARCH HISTORY

<u>L6</u>	TV position	318	<u>L6</u>	<u>L6</u>
<u>L5</u>	L4 and l3	22	<u>L5</u>	<u>L5</u>
<u>L4</u>	linear actuator	24491	<u>L4</u>	<u>L4</u>
<u>L3</u>	297/68[ccls] or 297/259.2[ccls] or 297/260.2[ccls] or 297/260.3[ccls] or 297/271.1[ccls] or 297/271.4[ccls] or 297/71[ccls] 297/75[ccls] 297/76[ccls] or 297/83[ccls] or 297/85M[ccls] or 297/86[ccls] or 297/88[ccls]	1377	<u>L3</u>	<u>L3</u>
<u>L2</u>	97/68[ccls] or 97/259.2[ccls] or 97/260.2[ccls] or 97/260.3[ccls] or 97/271.1[ccls] or 97/271.4[ccls] or 97/71[ccls] 97/75[ccls] 97/76[ccls] or 97/83[ccls] or 97/85M[ccls] or 97/86[ccls] or 97/88[ccls]	0	<u>L2</u>	<u>L2</u>
<u>L1</u>	297/85M[ccls]	45	<u>L1</u>	<u>L1</u>

END OF SEARCH HISTORY

DATE: Thursday, February 24, 2011 [Purge Queries](#) [Printable Copy](#) [Create Case](#)

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Side by Side			Result Set	Grid
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<u>L31</u>	l28 and l4	10	<u>L31</u>	<u>L31</u>
<u>L30</u>	l28 and l20	0	<u>L30</u>	<u>L30</u>
<u>L29</u>	L28 and motor	1	<u>L29</u>	<u>L29</u>
<u>L28</u>	chair and l24	29	<u>L28</u>	<u>L28</u>
<u>L27</u>	L6 and l24	0	<u>L27</u>	<u>L27</u>
<u>L26</u>	L6 and l14	0	<u>L26</u>	<u>L26</u>
<u>L25</u>	L24 and l14	0	<u>L25</u>	<u>L25</u>
<u>L24</u>	sequence link	697	<u>L24</u>	<u>L24</u>
<u>L23</u>	L20 and l8	28	<u>L23</u>	<u>L23</u>
<u>L22</u>	L20 and l17	0	<u>L22</u>	<u>L22</u>
<u>L21</u>	L20 and l14	0	<u>L21</u>	<u>L21</u>
<u>L20</u>	glide assembly	283	<u>L20</u>	<u>L20</u>
<u>L19</u>	L17 and l14	0	<u>L19</u>	<u>L19</u>
<u>L18</u>	L17 and l16	1	<u>L18</u>	<u>L18</u>
<u>L17</u>	carrier link\$	2727	<u>L17</u>	<u>L17</u>
<u>L16</u>	glide links	14	<u>L16</u>	<u>L16</u>
<u>L15</u>	L14 and glide links	2	<u>L15</u>	<u>L15</u>
<u>L14</u>	L13 and motor	43	<u>L14</u>	<u>L14</u>
<u>L13</u>	L12 and recline\$	43	<u>L13</u>	<u>L13</u>
<u>L12</u>	L11 and l10	65	<u>L12</u>	<u>L12</u>
<u>L11</u>	footrest or foot rest or foot support	23646	<u>L11</u>	<u>L11</u>
<u>L10</u>	L9 and linkage	209	<u>L10</u>	<u>L10</u>

SEARCH HISTORY

<u>L9</u>	L8 and l1	509	<u>L9</u>	<u>L9</u>
<u>L8</u>	(seat) NEAR3 (mount\$)	70359	<u>L8</u>	<u>L8</u>
<u>L7</u>	L6 and recline\$	5	<u>L7</u>	<u>L7</u>
<u>L6</u>	L5 and chair	52	<u>L6</u>	<u>L6</u>
<u>L5</u>	L4 and l1	334	<u>L5</u>	<u>L5</u>
<u>L4</u>	three position	19926	<u>L4</u>	<u>L4</u>
<u>L3</u>	L2 and l1	7	<u>L3</u>	<u>L3</u>
<u>L2</u>	tv position	318	<u>L2</u>	<u>L2</u>
<u>L1</u>	linear actuator	24491	<u>L1</u>	<u>L1</u>

END OF SEARCH HISTORY

DATE: Friday, February 25, 2011 [Purge Queries](#) [Printable Copy](#) [Create Case](#)

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Side by		Result	Grid
Side		Set	

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20090096255[did] or 4,386,803[did] or 2,714,922[did] or 20060082195[did] or 20040051350[did] or 20080023992[did] or 5013084[did] or 5312153[did] or 20080012396[did] or 20060085919[did] or 5366036[did] or 20030075965[did] or 6120095[did] or 20060273631[did] or 5072988[did] or 4352523[did] or 1,366,419[did] or 1,377,605[did] or 3,300,243[did] or 3,947,067[did] or 3,338,632[did] or 4,061,397[did] or 3,147,038[did] or 5765913[did] or 5795028[did] or 5165389[did] or 5088473[did] or 4244620[did]	36	<u>L1</u>	<u>L1</u>
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END OF SEARCH HISTORY

Electronic Database Searched	GOOGLE
Files Searched	ALL
Date Conducted	24 February 2011 (24.02.2011)
Search Logic:	

"linear actuator" chair "tv position" About 61 results

SEARCH HISTORY

"linear actuator" chair "three position" About 1,010 results

chair "three-position" "linear actuator " filetype:pdf About 41 results

"three-position chair" "linear actuator " 4 results

"reclining chair" "linear actuator" footrest About 3,150 results

PROPOSED NEW PROGRAM: "TRACK ONE" ACCELERATED PATENT EXAMINATION:

On February 4, 2011, the USPTO published in the Federal Register a notice of proposed rulemaking, titled "Changes to Implement the Prioritized Examination Track (Track I) of the Enhanced Examination Timing Control Procedures." The "Three-Track" program is designed to enable applicants to choose the speed with which their patent application is processed. Track I will give applicants the opportunity for prioritized examination of a patent application within 12 months of its filing date for a fee. The Federal Register notice requests comments from the public on a number of different proposed requirements for participation in Track I, including (a) a prioritized examination fee, which is in addition to the current filing fees, the publication fee, and a processing fee; (b) limits on the number of claims to four independent claims and 30 total claims; (c) application filing through the USPTO's electronic filing system (EFS-Web); and other such requirements. The comment period closed 30 days after February 4, 2011. For complete information see the notice at 76 Fed. Reg. 6371.

In preparation for this initiative, look for further announcements including a final notice.

Other available programs which allow prioritized examination include:

PATENT PROSECUTION HIGHWAY PILOT PROGRAM: An applicant receiving a ruling from the Office of First Filing (OFF) that at least one claim in an application filed in the OFF is patentable may request that the Office of Second Filing (OSF) fast track the examination of corresponding claims in a corresponding application in the OSF. For further information, see http://www.uspto.gov/patents/init_events/pph/index.jsp and the Federal Register notice of May 25, 2010, (75 Fed. Reg. 29312).

GREEN TECHNOLOGY PILOT PROGRAM: An application pertaining to green technologies including greenhouse gas reduction (applications pertaining to environmental quality, energy conservation, development of renewable energy resources or greenhouse gas emission reduction) may be advanced out of turn for examination. The USPTO has expanded the eligibility for the pilot program to include applications irrespective of filing date and classification, and extended the program until December 31, 2011. For complete information see http://www.uspto.gov/patents/init_events/green_tech.jsp

PROJECT EXCHANGE: An application will be advanced out of turn for examination if the applicant files a petition to make special with the appropriate showing. Special status for examination is accorded if the applicant is able to satisfy (i) the requirements set forth in the June 24, 2010 Federal Register notice titled "Expansion and Extension of the Patent Application Backlog Reduction Stimulus Plan" and (ii) the conditions sets forth in the November 27, 2009 Federal Register notice titled "Patent Application Backlog Reduction Stimulus Plan," other than the small entity requirement, which was eliminated. This procedure allows applicants having multiple applications currently pending before the USPTO to have greater control over the priority with which their applications are examined. The program has been extended to December 31, 2011. For full details visit http://www.uspto.gov/patents/init_events/PatentStimulusPlan.jsp#heading-1

ACCELERATED EXAMINATION: The USPTO will prioritize an application for examination if the applicant files a grantable petition to make special under the accelerated examination program. Under this program applicant can expect examination before the examiner to be disposed of within 12 months of filing of the application. Requirements include a complete application upon filing and a petition filed on the same day. The petition must include, *inter alia*, documentation of a prior art search and a discussion of the most relevant references and the patentability of the claims over those references. For complete details see MPEP § 708.02(a) and <http://www.uspto.gov/patents/process/file/accelerated/index.jsp>

PEER REVIEW PILOT PROGRAM FY 2011: A notice titled "A New Pilot Program Concerning Public Submission of Peer Reviewed Prior Art" published in the *Official Gazette* on December 28, 2010. The notice provides details about the viability of using Internet technologies and the power of crowdsourcing to uncover potentially useful prior art for consideration by patent examiners during the examination process. For more information on the pilot and how to participate, visit http://www.uspto.gov/patents/init_events/peerpriorartpilotindex.jsp

Electronic Acknowledgement Receipt

EFS ID:	10130322
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	05251
Filer:	Benjamin P. Tabor
Filer Authorized By:	
Attorney Docket Number:	LGPL.153597
Receipt Date:	19-MAY-2011
Filing Date:	29-DEC-2010
Time Stamp:	17:38:18
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Information Disclosure Statement (IDS) Filed (SB/08)	LGPL_153597_IDS.pdf	612477 86dbf93975383c18989667c8aeb2465d20c a0c82	no	4

Warnings:

Information:

2	NPL Documents	LGPL_153597_NPL1.pdf	8094206 6b303c9c35378e4f951e0cf526ff536e0b860052	no	15
Warnings:					
Information:					
Total Files Size (in bytes):			8706683		
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					



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APPLICATION NUMBER	FILING OR 371(C) DATE	FIRST NAMED APPLICANT	ATTY. DOCKET NO./TITLE
12/981,176	12/29/2010	Gregory M. Lawson	LGPL.153597

CONFIRMATION NO. 6055

5251
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

PUBLICATION NOTICE



OC000000048885974

Title:POWERED ROCKER RECLINER LINKAGE MECHANISM

Publication No.US-2011-0175404-A1

Publication Date:07/21/2011

NOTICE OF PUBLICATION OF APPLICATION

The above-identified application will be electronically published as a patent application publication pursuant to 37 CFR 1.211, et seq. The patent application publication number and publication date are set forth above.

The publication may be accessed through the USPTO's publically available Searchable Databases via the Internet at www.uspto.gov. The direct link to access the publication is currently <http://www.uspto.gov/patft/>.

The publication process established by the Office does not provide for mailing a copy of the publication to applicant. A copy of the publication may be obtained from the Office upon payment of the appropriate fee set forth in 37 CFR 1.19(a)(1). Orders for copies of patent application publications are handled by the USPTO's Office of Public Records. The Office of Public Records can be reached by telephone at (703) 308-9726 or (800) 972-6382, by facsimile at (703) 305-8759, by mail addressed to the United States Patent and Trademark Office, Office of Public Records, Alexandria, VA 22313-1450 or via the Internet.

In addition, information on the status of the application, including the mailing date of Office actions and the dates of receipt of correspondence filed in the Office, may also be accessed via the Internet through the Patent Electronic Business Center at www.uspto.gov using the public side of the Patent Application Information and Retrieval (PAIR) system. The direct link to access this status information is currently <http://pair.uspto.gov/>. Prior to publication, such status information is confidential and may only be obtained by applicant using the private side of PAIR.

Further assistance in electronically accessing the publication, or about PAIR, is available by calling the Patent Electronic Business Center at 1-866-217-9197.

Office of Data Management, Application Assistance Unit (571) 272-4000, or (571) 272-4200, or 1-888-786-0101

INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name	White, Rodney Barnett		
	Attorney Docket Number	LGPL.153597		

U.S.PATENTS						Remove
Examiner Initial*	Cite No	Patent Number	Kind Code ¹	Issue Date	Name of Patentee or Applicant of cited Document	Pages,Columns,Lines where Relevant Passages or Relevant Figures Appear
	1	5072988		1991-12-17	Plunk, Jeffrey L.	

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176
	Filing Date		2010-12-29
	First Named Inventor	Gregory M. Lawson	
	Art Unit	3636	
	Examiner Name	White, Rodney Barnett	
	Attorney Docket Number	LGPL.153597	

	1	Nonfinal Office Action in US Application No. 12/870,498, mailed April 3, 2012, 18 pages	☐
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If you wish to add additional non-patent literature document citation information please click the Add button **Add**

EXAMINER SIGNATURE

Examiner Signature		Date Considered	
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through a citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

¹ See Kind Codes of USPTO Patent Documents at www.USPTO.GOV or MPEP 901.04. ² Enter office that issued the document, by the two-letter code (WIPO Standard ST.3). ³ For Japanese patent documents, the indication of the year of the reign of the Emperor must precede the serial number of the patent document. ⁴ Kind of document by the appropriate symbols as indicated on the document under WIPO Standard ST.16 if possible. ⁵ Applicant is to place a check mark here if English language translation is attached.

**INFORMATION DISCLOSURE
STATEMENT BY APPLICANT**
(Not for submission under 37 CFR 1.99)

Application Number	12981176
Filing Date	2010-12-29
First Named Inventor	Gregory M. Lawson
Art Unit	3636
Examiner Name	White, Rodney Barnett
Attorney Docket Number	LGPL.153597

CERTIFICATION STATEMENT

Please see 37 CFR 1.97 and 1.98 to make the appropriate selection(s):

☐ That each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(1).

OR

☐ That no item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in 37 CFR 1.56(c) more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(2).

☐ See attached certification statement.

☐ The fee set forth in 37 CFR 1.17 (p) has been submitted herewith.

☒ A certification statement is not submitted herewith.

SIGNATURE

A signature of the applicant or representative is required in accordance with CFR 1.33, 10.18. Please see CFR 1.4(d) for the form of the signature.

Signature	/Benjamin P. Tabor/	Date (YYYY-MM-DD)	2012-07-03
Name/Print	Benjamin P. Tabor	Registration Number	60741

This collection of information is required by 37 CFR 1.97 and 1.98. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 1 hour to complete, including gathering, preparing and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. **SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether the Freedom of Information Act requires disclosure of these records.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
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5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspections or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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12/870,498

08/27/2010

Gregory M. Lawson

LGPL.153598

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5251 7590 04/03/2012

SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

EXAMINER

GARRETT, ERIKA P

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

04/03/2012

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No. 12/870,498	Applicant(s) LAWSON, GREGORY M.	
	Examiner ERIKA GARRETT	Art Unit 3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 14 September 2010.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-20 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-20 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☐ The drawing(s) filed on ____ is/are: a) ☐ accepted or b) ☐ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____. |
| 3) ☒ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date <u>06/2011</u> . | 6) ☐ Other: ____. |

DETAILED ACTION

Double Patenting

1. The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the “right to exclude” granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory obviousness-type double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); and *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on a nonstatutory double patenting ground provided the conflicting application or patent either is shown to be commonly owned with this application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement.

Effective January 1, 1994, a registered attorney or agent of record may sign a terminal disclaimer. A terminal disclaimer signed by the assignee must fully comply with 37 CFR 3.73(b).

2. Claims 1-20 are provisionally rejected on the ground of nonstatutory obviousness-type double patenting as being unpatentable over claims 1-20 of copending Application No. 12/981,176. Although the conflicting claims are not identical, they are not patentably distinct from each other because 12/981,176 fully recites the same claim limitations as the present invention including the pair of glide brackets, seat-mounting plates, mirror-image linkage mechanisms, and linear actuator.

This is a provisional obviousness-type double patenting rejection because the conflicting claims have not in fact been patented.

Claim Rejections - 35 USC § 103

3. The following is a quotation of 35 U.S.C. 103(a) which forms the basis for all obviousness rejections set forth in this Office action:

(a) A patent may not be obtained though the invention is not identically disclosed or described as set forth in section 102 of this title, if the differences between the subject matter sought to be patented and the prior art are such that the subject matter as a whole would have been obvious at the time the invention was made to a person having ordinary skill in the art to which said subject matter pertains. Patentability shall not be negated by the manner in which the invention was made.

4. Claim 1 is rejected under 35 U.S.C. 103(a) as being unpatentable over Duncan (20040051350) in view of Rogers (6,120,095).

5. Regarding claim 1, Duncan discloses a seating unit having a chassis (10, 18), a seat (17, 31), a backrest (15 27), and at least one foot support ottoman (13), the seating unit being adapted to move between a closed, an extended and a reclined position

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(Abstract; Fig 1; ¶0032), the seating unit comprising a pair of seat-mounting plates (20) in substantially parallel-spaced relation (Fig 2; ¶ 0040), wherein the seat-mounting plates translatably carry the seat over an underlying surface (24) (Figs 1B, 2; ¶ 0041) and a pair of the generally mirror-image linkage mechanisms (10L, 10R) each moveably interconnecting the backrest and the at least one foot-support ottoman to a respective seat-mounting plate (Fig 1; ¶ 0032, 0034), wherein each of the linkage mechanisms comprise: (a) a footrest assembly (12) that extends and retracts the at least one foot-support ottoman (¶ 0032); and (b) a seat-adjustment assembly (14) that reclines and inclines the backrest (¶ 0032); and a linear actuator (90) that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position (Figs 5-7, 11; ¶ 0007, 0068), wherein the linear-actuator adjustment is sequenced into a first phase and a second phase that are mutually exclusive in stroke (¶ 0068), wherein the first phase moves the footrest assembly between the closed position and the extended position (¶ 0063), and wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position (¶ 0064).

6. Duncan fails to show a pair of glide brackets or a glide assembly.
7. Rogers teaches a pair of glide brackets (18) in substantially parallel-spaced relation that are each mounted to the chassis and that are each vertically raised above an underlying surface by a plurality of supports (Figs 1,4; col 3, ln 67-col 4, ln 8).
8. It would have been obvious to one of ordinary skill in the art at the time of invention to modify the seating unit of Duncan in accordance with the teachings of

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Rogers to include a pair of glide brackets and a glide assembly as claimed, since it would allow the seating unit to provide a gliding motion to the user.

9. Claims 2-15 rejected under 35 U.S.C. 103(a) as being unpatentable over the combination of Duncan and Rogers further in view of Chen (5,088,473).

10. Duncan disclose a pair of motor tube/actuator bars (P2) that span and couple to the pair of linkage mechanisms (Fig 11); a motor mechanism (90) (§0068); and that the linear actuator travels from a first position to a second position and from a second position to a third position (§0068); a front motor tube (P1) has a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to a front ottoman link (§0032) within the footrest assembly, wherein the front ottoman link is rotatably coupled to a forward portion of the seat-mounting plate 20, and wherein a housing of the motor mechanism is pivotally coupled to a section between the pair of ends of the front motor tube (Figs 1, 11).

11. Duncan further discloses that the first phase involves longitudinal translation of the motor activator block along the first travel section that creates a lateral thrust at the front motor tube, thereby invoking movement of the front ottoman link, the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position, and wherein, during the stroke of the linear actuator (90) within the first phase, the motor mechanism moves forward and upward with respect to the pair of rocker mechanisms while the motor activator block remains generally fixed in space (§0064, 0065, 0068); **the** second phase involves longitudinal translation of the motor activator block along the second travel section that

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creates a lateral thrust at the activator bar, thereby invoking movement of the motor bell crank (52), the movement of the motor bell crank controls adjustment of the seat-adjustment assembly between the extended position and the reclined position, and wherein, during the stroke of the linear actuator within the second phase, the motor activator block moves rearward with respect to the motor mechanism remains generally fixed in space (Fig 11; ¶0046, [0048], [0064]); the pair of linkage mechanisms are configured to translate the seat-mounting plates at a substantially consistent inclination angle, with respect to the underlying surface, throughout the adjustment of the seating unit between the closed position, the extended position, and the reclined position (Figs 5A, 6A, 7A) seat assembly further comprises a lifter link (50) that pivotally connects to the second end of the motor bell crank (Fig 3).

12. Rogers further teaches a glide assembly provided in each of the linkage mechanisms, wherein the glide assembly includes a pair of glide links (50, 60) that swing in concert to translate a carrier link (33) of the seat-adjustment assembly forward and backward with respect to one of the pair of glide brackets (Fig 3; col 5, lns 45-56; col 6, lns 9-16).

13. Duncan fails to show a track operably coupled to the motor mechanism, wherein the track includes a first travel section and a second travel section; or a motor activator block that translates longitudinally along the track under automated control.

14. Chen discloses a track (4g) operably coupled to the motor mechanism (M) and a block (6) that translates along the track so as to move the activator bar 7 (Figs 1, 5; col 6, lns 22-59).

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15. It would have been obvious to one of ordinary skill in the art at the time of invention to modify the seating unit of Duncan in accordance with the teachings of Chen to include a front motor tube; an activator bar, a track, and a block as claimed, since implementing the motion with a block moving along a track would provide for more precise control of the motion.

16. Claims 16-19 are rejected under 35 U.S.C. 103(a) as being unpatentable over White (20060273631) in view of Harrison (4,244,620).

17. White discloses a pair of the generally mirror-image linkage mechanisms (14) adapted to move a seating unit between a closed, an extended, and a reclined position, the seating unit having a seat that is translatable with respect to an underlying surface and a backrest that is angularly adjustable with respect to the seat (¶0004, 0024), each of the linkage mechanisms comprising a sequence link (64) having a guide slot (0074), wherein the guide slot includes a first region and a second region (Fig 2; ¶0028); and a sequence element (76) that, at least partially, extends into the guide slot, wherein the sequence element resides within the second region when the seating unit is adjusted to the reclined position, and wherein the sequence element resides within the first region when the seating unit is adjusted to the extended position, and when the seating unit is adjusted to the extended position, the interaction of the sequence element and the sequence link allows adjustment of the seating unit to either the reclined position or to the closed position, and wherein the sequence element resides within the second region when the seating unit is adjusted to the closed position (Figs 2-4; ¶0027-0028).

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18. White disclose a back mounting link (82) that is configured to support the backrest, wherein the sequence link includes an upper portion and a lower portion, wherein the upper portion is rotatably coupled to the back-mounting link, and wherein the guide slot represents a pill-shaped aperture formed within the lower portion of the sequence link (¶0029; Fig 3); the sequence element fully extends through the guide slot, and wherein the first region is above the second region within the guide slot (Fig 3); a seat mounting plate (50) that supports the seat, the seat-mounting plate is rotatably coupled to the back-mounting link (Fig 2; a base plate that is interconnected to the seat-mounting plate via a system of links (¶0027); a rear pivot link (84) rotatably coupled to the back-mounting link, to the rearward portion of the base plate, and to the sequence element (¶0029).

19. White fails to show does not specifically disclose that when the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position.

20. Harrison teaches the seating unit is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position (col 8, lns 66-col 9, ln 24).

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21. It would have been obvious to one of ordinary skill in the art at the time of invention to modify the seating unit of White with the teachings of Harrison in order for the seating unit to be adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the closed position; or that when the seating unit is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the seating unit to the reclined position, since it enable the chair to be easily placed in the TV position from either the closed position or the reclined position.

22. Claim 20 is rejected under 35 U.S.C. 103(a) as being unpatentable over White in view of Harrison and in view of Duncan.

23. White discloses a seating unit, comprising: a pair of seat-mounting plates (50) in substantially parallel-spaced relation, wherein each of the seat-mounting plates is disposed in an inclined orientation in relation to an underlying surface (Fig 2; ¶0024); a pair of generally mirror-image linkage mechanisms (14) adapted to move the seating unit between a closed position, an extended position, and a reclined position (¶0004, 0024), wherein each of the linkage mechanisms comprise a back-mounting link (82) rotatably coupled to a respective seat-mounting plate and configured to support a backrest of the seating unit (¶0029; Fig 3); (b) a sequence link (64) rotatably coupled to the back mounting link, wherein the sequence link includes a guide slot (74) (Fig 2; ¶0028); a rear pivot link (84) rotatably coupled to the back-mounting link and to a sequence element, wherein the sequence element extends into the guide slot (¶0029).

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24. White fails to show the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position; or a motor bell crank having a mid-portion located between a first end and a second end, wherein an activator bar is rotatably coupled to the first end of the motor bell crank; or a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotally coupled to the back-mounting link, and wherein the mid portion of the motor bell crank is rotatably coupled to a section between the front end and the back end of the front lift link; and a linear actuator, coupled to the activator bar, that is sequenced into a mutually exclusive first phase and second phase, wherein the first phase moves the linkage mechanisms between the closed position and the extended position, and wherein the second phase moves the linkage mechanisms between the extended position and the reclined position.

25. Harrison teaches the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position (col 8, col 9 line **24**).

26. Duncan teaches a motor bell crank (52) having a mid-portion located between a first end and a second end, wherein an activator bar (P2) is rotatably coupled to the first end of the motor bell crank (Figs 1, 5, 11; ¶0048); and a front lift link (58) having a front end and a back end, wherein the back end of the front lift link is pivotally coupled to the back-mounting link, and wherein the mid portion of the motor bell crank is rotatably coupled to a section between the front end and the back end of the front lift link (Figs 1, 5-7; ¶0047); and a linear actuator (90), coupled to the activator bar, that is sequenced

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into a mutually exclusive first phase and second phase, wherein the first phase moves the linkage mechanisms between the closed position and the extended position, and wherein the second phase moves the linkage mechanisms between the extended position and the reclined position (§0063, 0064, 0068).

27. It would have been obvious to one of ordinary skill in the art at the time of invention to modify the seating unit of White with in the teachings of Harrison that the interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position, since it enable the seating unit to be placed into the TV position from either the closed position or the reclined position; furthermore the teachings of Duncan include a motor bell crank and a front lift link as claimed, would allow the seating unit to be automatically switched between positions.

Conclusion

28. The prior art made of record and not relied upon is considered pertinent to applicant's disclosure. The following patents are cited to further show the state of the art with respect to seating unit: U.S Pat. No. 5088473, 5765913, 20090096255.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to ERIKA GARRETT whose telephone number is (571)272-6859. The examiner can normally be reached on Monday, Wednesday-Thursday 8:30 a.m.-6:30 p.m.

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If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, David Dunn can be reached on 571-272-6670. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/E. G./

Examiner, Art Unit 3636

/DAVID DUNN/

Supervisory Patent Examiner, Art Unit 3636

Notice of References Cited	Application/Control No. 12/870,498	Applicant(s)/Patent Under Reexamination LAWSON, GREGORY M.	
	Examiner ERIKA GARRETT	Art Unit 3636	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
*	A	US-2004/0051350	03-2004	Duncan et al.	297/068
*	B	US-2006/0273631	12-2006	White et al.	297/085
*	C	US-5,765,913	06-1998	LaPointe et al.	297/281
*	D	US-5,072,988	12-1991	Plunk, Jeffrey L.	297/68
*	E	US-3,300,243	01-1967	MIZELLE NED W	297/85R
*	F	US-2009/0096255	04-2009	Robertson, Dale	297/85
	G	US-			
	H	US-			
	I	US-			
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	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

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	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
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	V	
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Receipt date: 06/17/2011

Doc code: IDS

Doc description: Information Disclosure Statement (IDS) Filed

PTO/SB/08a (01-10)

Approved for use through 07/31/2012. OMB 0651-0031

U.S. Patent and Trademark Office; U.S. DEPARTMENT OF COMMERCE

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12870498
	Filing Date		2010-08-27
	First Named Inventor	Gregory M. Lawson	
	Art Unit	3636	
	Examiner Name		
	Attorney Docket Number	LGPL.153598	

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Examiner Initial*	Cite No	Patent Number	Kind Code ¹	Issue Date	Name of Patentee or Applicant of cited Document	Pages,Columns,Lines where Relevant Passages or Relevant Figures Appear	
	1	6120095		2000-09-19	Rogers		
	2	5088473		2002-02-18	Chen		
	3	4244620		1981-01-13	Harrison, et al.		
	4	5765913		1998-06-16	Plunk		
	5	3300243		2009-14-16	Mizelle		
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Examiner Initial*	Cite No	Publication Number	Kind Code ¹	Publication Date	Name of Patentee or Applicant of cited Document	Pages,Columns,Lines where Relevant Passages or Relevant Figures Appear	
	1	20040051350		2004-03-18	Duncan, et al.		

Receipt date: 06/17/2011 INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12870498	
	Filing Date		2010-08-27	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name			
	Attorney Docket Number	LGPL.153598		

	2	20060273631		2006-12-07	White, et al.	
	3	20090096255		2009-04-16	Robertson	

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FOREIGN PATENT DOCUMENTS

Examiner Initial*	Cite No	Foreign Document Number ³	Country Code ²	Kind Code ⁴	Publication Date	Name of Patentee or Applicant of cited Document	Pages, Columns, Lines where Relevant Passages or Relevant Figures Appear	T ⁵
	1							☐

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NON-PATENT LITERATURE DOCUMENTS

Examiner Initials*	Cite No	Include name of the author (in CAPITAL LETTERS), title of the article (when appropriate), title of the item (book, magazine, journal, serial, symposium, catalog, etc), date, pages(s), volume-issue number(s), publisher, city and/or country where published.	T ⁵
	1	International Search Report from PCT/US 11/20387 dated 03/23/2011	☐

If you wish to add additional non-patent literature document citation information please click the Add button.

EXAMINER SIGNATURE

Examiner Signature	/Erika Garrett/	Date Considered	02/10/2012
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*EXAMINER: Initial if reference considered, whether or not citation is in conformance with MPEP 609. Draw line through a citation if not in conformance and not considered. Include copy of this form with next communication to applicant.

¹ See Kind Codes of USPTO Patent Documents at www.USPTO.GOV or MPEP 901.04. ² Enter office that issued the document, by the two-letter code (WIPO Standard ST.3). ³ For Japanese patent documents, the indication of the year of the reign of the Emperor must precede the serial number of the patent document. ⁴ Kind of document by the appropriate symbols as indicated on the document under WIPO Standard ST.16 if possible. ⁵ Applicant is to place a check mark here if English language translation is attached.

Search Notes 	Application/Control No. 12870498	Applicant(s)/Patent Under Reexamination LAWSON, GREGORY M.
	Examiner ERIKA GARRETT	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85m,88,271.1,260.2,68, 75	2/7/12	eg

SEARCH NOTES		
Search Notes	Date	Examiner
east search	2/7/12	eg
inventor search		
ids search		
forward and backward citations		

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner

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BIB DATA SHEET

CONFIRMATION NO. 9935

SERIAL NUMBER 12/870,498	FILING or 371(c) DATE 08/27/2010 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. LGPL.153598		
APPLICANTS Gregory M. Lawson, Tupelo, MS; ** CONTINUING DATA ***** This appln claims benefit of 61/295,554 01/15/2010 ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** 09/10/2010						
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and Acknowledged <u>/ERIKA P GARRETT/</u> Examiner's Signature		☐ Met after Allowance eg Initials	STATE OR COUNTRY MS	SHEETS DRAWINGS 8	TOTAL CLAIMS 18	INDEPENDENT CLAIMS 1
ADDRESS SHOOK, HARDY & BACON LLP INTELLECTUAL PROPERTY DEPARTMENT 2555 GRAND BLVD KANSAS CITY, MO 64108-2613 UNITED STATES						
TITLE Powered Glider Recliner Linkage Mechanism						
FILING FEE RECEIVED 1090	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees			
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			☐ Other _____			
				☐ Credit		

Electronic Acknowledgement Receipt

EFS ID:	13169544
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	5251
Filer:	Benjamin P. Tabor/Tammy Winson
Filer Authorized By:	Benjamin P. Tabor
Attorney Docket Number:	LGPL.153597
Receipt Date:	03-JUL-2012
Filing Date:	29-DEC-2010
Time Stamp:	13:33:21
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Information Disclosure Statement (IDS) Form (SB08)	LGPL_153597_IDS_07032012.pdf	612273 85b0ad438fd67ff95312226a6fa44eb952f6c19e	no	4

Warnings:

Information:

2	Non Patent Literature	LGPL_153597_NPL1_07032012.pdf	13815535 8a23a1ea22ecf12dcd9297ebc343b1da7837d03d	no	18
Warnings:					
Information:					
Total Files Size (in bytes):				14427808	
This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503. <u>New Applications Under 35 U.S.C. 111</u> If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application. <u>National Stage of an International Application under 35 U.S.C. 371</u> If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course. <u>New International Application Filed with the USPTO as a Receiving Office</u> If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.					



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APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
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12/981,176

12/29/2010

Gregory M. Lawson

LGPL.153597

6055

5251 7590 07/24/2012

SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

EXAMINER

WHITE, RODNEY BARNETT

ART UNIT

PAPER NUMBER

3636

MAIL DATE

DELIVERY MODE

07/24/2012

PAPER

Please find below and/or attached an Office communication concerning this application or proceeding.

The time period for reply, if any, is set in the attached communication.

Office Action Summary	Application No.	Applicant(s)	
	12/981,176	LAWSON, GREGORY M.	
	Examiner	Art Unit	
	Rodney B. White	3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address --

Period for Reply

A SHORTENED STATUTORY PERIOD FOR REPLY IS SET TO EXPIRE 3 MONTH(S) OR THIRTY (30) DAYS, WHICHEVER IS LONGER, FROM THE MAILING DATE OF THIS COMMUNICATION.

- Extensions of time may be available under the provisions of 37 CFR 1.136(a). In no event, however, may a reply be timely filed after SIX (6) MONTHS from the mailing date of this communication.
- If NO period for reply is specified above, the maximum statutory period will apply and will expire SIX (6) MONTHS from the mailing date of this communication.
- Failure to reply within the set or extended period for reply will, by statute, cause the application to become ABANDONED (35 U.S.C. § 133). Any reply received by the Office later than three months after the mailing date of this communication, even if timely filed, may reduce any earned patent term adjustment. See 37 CFR 1.704(b).

Status

- 1) ☒ Responsive to communication(s) filed on 03 July 2012.
- 2a) ☐ This action is **FINAL**. 2b) ☒ This action is non-final.
- 3) ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
- 4) ☐ Since this application is in condition for allowance except for formal matters, prosecution as to the merits is closed in accordance with the practice under *Ex parte Quayle*, 1935 C.D. 11, 453 O.G. 213.

Disposition of Claims

- 5) ☒ Claim(s) 1-20 is/are pending in the application.
- 5a) Of the above claim(s) ____ is/are withdrawn from consideration.
- 6) ☐ Claim(s) ____ is/are allowed.
- 7) ☒ Claim(s) 1-20 is/are rejected.
- 8) ☐ Claim(s) ____ is/are objected to.
- 9) ☐ Claim(s) ____ are subject to restriction and/or election requirement.

Application Papers

- 10) ☐ The specification is objected to by the Examiner.
- 11) ☒ The drawing(s) filed on 29 December 2010 is/are: a) ☐ accepted or b) ☒ objected to by the Examiner.
Applicant may not request that any objection to the drawing(s) be held in abeyance. See 37 CFR 1.85(a).
Replacement drawing sheet(s) including the correction is required if the drawing(s) is objected to. See 37 CFR 1.121(d).
- 12) ☐ The oath or declaration is objected to by the Examiner. Note the attached Office Action or form PTO-152.

Priority under 35 U.S.C. § 119

- 13) ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
- a) ☐ All b) ☐ Some * c) ☐ None of:
1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this National Stage application from the International Bureau (PCT Rule 17.2(a)).

* See the attached detailed Office action for a list of the certified copies not received.

Attachment(s)

- | | |
|--|---|
| 1) ☒ Notice of References Cited (PTO-892) | 4) ☐ Interview Summary (PTO-413) |
| 2) ☐ Notice of Draftsperson's Patent Drawing Review (PTO-948) | Paper No(s)/Mail Date. ____. |
| 3) ☒ Information Disclosure Statement(s) (PTO/SB/08) | 5) ☐ Notice of Informal Patent Application |
| Paper No(s)/Mail Date <u>05/19/2011 & 07/03/2012</u> . | 6) ☐ Other: ____. |

DETAILED ACTION

Drawings

The drawings are objected to under 37 CFR 1.83(a). The drawings must show every feature of the invention specified in the claims. Therefore, the “chassis” in claim 1 must be shown or labeled or the feature(s) canceled from the claim(s). No new matter should be entered.

Corrected drawing sheets in compliance with 37 CFR 1.121(d) are required in reply to the Office action to avoid abandonment of the application. Any amended replacement drawing sheet should include all of the figures appearing on the immediate prior version of the sheet, even if only one figure is being amended. The figure or figure number of an amended drawing should not be labeled as “amended.” If a drawing figure is to be canceled, the appropriate figure must be removed from the replacement sheet, and where necessary, the remaining figures must be renumbered and appropriate changes made to the brief description of the several views of the drawings for consistency. Additional replacement sheets may be necessary to show the renumbering of the remaining figures. Each drawing sheet submitted after the filing date of an application must be labeled in the top margin as either “Replacement Sheet” or “New Sheet” pursuant to 37 CFR 1.121(d). If the changes are not accepted by the examiner, the applicant will be notified and informed of any required corrective action in the next Office action. The objection to the drawings will not be held in abeyance.

Claim Objections

Claims 9 and 13 are objected to because of the following informalities: In claims 9 and 13, the terms “mid portion” and “mid section” should be - - mid-portion - - and - - mid-section - -, respectively. Applicant should look for other such typographical errors in the claims and throughout the specification. Appropriate correction is required.

Double Patenting

The nonstatutory double patenting rejection is based on a judicially created doctrine grounded in public policy (a policy reflected in the statute) so as to prevent the unjustified or improper timewise extension of the “right to exclude” granted by a patent and to prevent possible harassment by multiple assignees. A nonstatutory obviousness-type double patenting rejection is appropriate where the conflicting claims are not identical, but at least one examined application claim is not patentably distinct from the reference claim(s) because the examined application claim is either anticipated by, or would have been obvious over, the reference claim(s). See, e.g., *In re Berg*, 140 F.3d 1428, 46 USPQ2d 1226 (Fed. Cir. 1998); *In re Goodman*, 11 F.3d 1046, 29 USPQ2d 2010 (Fed. Cir. 1993); *In re Longi*, 759 F.2d 887, 225 USPQ 645 (Fed. Cir. 1985); *In re Van Ornum*, 686 F.2d 937, 214 USPQ 761 (CCPA 1982); *In re Vogel*, 422 F.2d 438, 164 USPQ 619 (CCPA 1970); and *In re Thorington*, 418 F.2d 528, 163 USPQ 644 (CCPA 1969).

A timely filed terminal disclaimer in compliance with 37 CFR 1.321(c) or 1.321(d) may be used to overcome an actual or provisional rejection based on a nonstatutory double patenting ground provided the conflicting application or patent either is shown to be commonly owned with this application, or claims an invention made as a result of activities undertaken within the scope of a joint research agreement.

Effective January 1, 1994, a registered attorney or agent of record may sign a terminal disclaimer. A terminal disclaimer signed by the assignee must fully comply with 37 CFR 3.73(b).

Claims 1-12 are provisionally rejected on the ground of nonstatutory double patenting over claims 1-13 and 15 of copending Application No. 12/981,186. This is a provisional double patenting rejection since the conflicting claims have not yet been patented.

The subject matter claimed in the instant application is fully disclosed in the referenced copending application and would be covered by any patent granted on that copending application since the referenced copending application and the instant application are claiming common subject matter.

Furthermore, there is no apparent reason why applicant would be prevented from presenting claims corresponding to those of the instant application in the other copending application. See *In re Schneller*, 397 F.2d 350, 158 USPQ 210 (CCPA 1968). See also MPEP § 804.

Claim Rejections - 35 USC § 102

The following is a quotation of the appropriate paragraphs of 35 U.S.C. 102 that form the basis for the rejections under this section made in this Office action:

A person shall be entitled to a patent unless –

(e) the invention was described in (1) an application for patent, published under section 122(b), by another filed in the United States before the invention by the applicant for patent or (2) a patent granted on an application for patent by another filed in the United States before the invention by the applicant for patent, except that an international application filed under the treaty defined in section 351(a) shall have the effects for purposes of this subsection of an application filed in the United States only if the international application designated the United States and was published under Article 21(2) of such treaty in the English language.

(e) the invention was described in a patent granted on an application for patent by another filed in the United States before the invention thereof by the applicant for patent, or on an international application by another who has fulfilled the requirements of paragraphs (1), (2), and (4) of section 371(c) of this title before the invention thereof by the applicant for patent.

The changes made to 35 U.S.C. 102(e) by the American Inventors Protection Act of 1999 (AIPA) and the Intellectual Property and High Technology Technical Amendments Act of 2002 do not apply when the reference is a U.S. patent resulting directly or indirectly from an international application filed before November 29, 2000. Therefore, the prior art date of the reference is determined under 35 U.S.C. 102(e) prior to the amendment by the AIPA (pre-AIPA 35 U.S.C. 102(e)).

Claims 1-20 are rejected under 35 U.S.C. 102(e) as being anticipated by Hoffman et al (U.S. Patent Nos. 7,997,644 B2, 8,016,348 B2, and 8,113,574 B2).

Using the specification and drawings of U.S. Patent No. 7,997,644 B2 and 8,113,574 B2, Hoffman et al teach a seating unit having a chassis, a seat 13, a backrest 15, and at least one foot- support ottoman 17a,17b, the seating unit being adapted to

Art Unit: 3636

move between a closed, an extended and a reclined position, the seating unit comprising: a pair of base plates in substantially parallel-spaced relation;

a pair of rocker mechanisms (see "FIELD OF THE INVENTION" where it reads "This invention relates generally to seating units, and relates more particularly to reclining seating units with rocking capability." As well as other sections of the specification where the "rocker" or the "rocking motion" is described), wherein each of the rocker mechanisms is attached to a respective base plate and moveably supports the respective base plate above an underlying surface; a pair of seat-mounting plates in substantially parallel-spaced relation, wherein the seat-mounting plates translatably carry the seat over the rocker mechanisms; and

a pair of the generally mirror-image linkage mechanisms 30 each moveably interconnecting each of the base plates to a respective seat-mounting plate, wherein each of the linkage mechanisms comprise:

(a) a footrest assembly that extends and retracts the at least one foot-support ottoman 17a, 17b; and (b) a seat-adjustment assembly that reclines and inclines the backrest; and

a linear actuator (not shown but described in column 1, lines 56-67, column 2, lines 14-67, column 3, lines 1-3, and defined and/or claimed in Claims 10 and 16-20) that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position,

wherein the linear-actuator adjustment is sequenced via “sequencer plate 54” (see specification for description of the sequencing of the linear-actuator adjustment) into a first phase and a second phase that are mutually exclusive in stroke, wherein the first phase moves the footrest assembly between the closed position and the extended position, and

wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position,

a front motor tube 108; and an activator bar 44, wherein the front motor tube and the activator bar span and couple to the pair of linkage mechanisms,

a motor mechanism 114;

a track operably coupled to the motor mechanism, wherein the track includes a first travel section 116 and a second travel section 118; and

a motor activator block that translates longitudinally along the track under automated control (not shown),

wherein the front motor tube having a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to a front ottoman link within the footrest assembly, wherein the front ottoman link is rotatably coupled to a forward portion of the seat-mounting plate,

wherein a housing of the motor mechanism is pivotably coupled at 120 via mounting tab 114a to a section between the pair of ends of the front motor tube 108,

wherein the first phase involves longitudinal translation of the motor activator block along the first travel section that creates a lateral thrust at the front motor tube,

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thereby invoking movement of the front ottoman link, the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position,

wherein, during the stroke of the linear actuator within the first phase, the motor mechanism moves forward and upward with respect to the pair of rocker mechanisms while the motor activator block remains generally fixed in space,

wherein the activator bar 44 having a pair of ends, wherein one of the ends of the activator bar is rotatably coupled to a motor bellcrank within the seat-adjustment assembly via a motor pivot bracket 46 via pivot 122,

the motor bellcrank that includes a mid portion located between a first end and a second end, wherein the motor pivot bracket is rotatably coupled to the first end of the motor bellcrank;

a back-mounting link rotatably coupled to a respective seat-mounting plate, wherein the back-mounting link is configured to support the backrest; and

a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the mid portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link,

a rocker base that includes a front end, a rear end, and a mid section, wherein the front end and the rear end attach to respective legs that support the rocker base above the underlying surface; a rocker element that is formed with a convex curvature

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that rollably rides upon the mid section of the rocker base, wherein the rocker element is attached to a respective base plate; and

at least one spring that interconnects the rocker base and the rocker element, wherein the interconnection of the at least one spring facilitates a controlled sway of the rocker element with respect to the rocker base,

a rocker base that includes a front end, a rear end, and a mid section, wherein the front end and the rear end attach to respective legs that support the rocker base above the underlying surface;

a rocker element 20 that is formed with a convex curvature that rollably rides upon the mid section of the rocker base, wherein the rocker element is attached to a respective base plate; and

at least one spring 22 that interconnects the rocker base and the rocker element, wherein the interconnection of the at least one spring facilitates a controlled sway of the rocker element with respect to the rocker base,

wherein the pair of linkage mechanisms are configured to translate the seat-mounting plates at a substantially consistent inclination angle, with respect to the rocker mechanisms, throughout the adjustment of the seating unit between the closed position, the extended position, and the reclined position, wherein the seat-adjustment assembly further comprises a lifter link that pivotably interconnects the second end of the motor bellcrank and a respective base plate (See specification and drawings of 8,113,574 B2).

As for claims 16-19, Hoffman et al teach a pair of the generally mirror-image linkage mechanisms adapted to move a rocker recliner between a closed, an extended,

and a reclined position, the rocker recliner having a pair of rocker mechanisms, a seat that is translatable with respect to the rocker mechanisms, and a backrest that is angularly adjustable with respect to the seat, each of the linkage mechanisms comprising:

a sequence link 54 having a guide slot 54a, wherein the guide slot includes a first region and a second region; and

a sequence element 48b that, at least partially, extends into the guide slot, wherein the sequence element resides within the second region when the rocker recliner is adjusted to the reclined position, and when the rocker recliner is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the closed position.

wherein the sequence element resides within the first region when the rocker recliner is adjusted to the extended position, and when the rocker recliner is adjusted to the extended position, the interaction of the sequence element and the sequence link allows adjustment of the rocker recliner to either the reclined position or to the closed position, and

wherein the sequence element resides within the second region when the rocker recliner is adjusted to the closed position, and when the rocker recliner is adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the reclined position,

further comprising a back-mounting link that is configured to support the backrest, wherein the sequence link includes an upper portion and a lower portion, wherein the upper portion is rotatably coupled to the back-mounting link, and wherein the guide slot represents a pill-shaped aperture formed within the lower portion of the sequence link, wherein the sequence element fully extends through the guide slot, and wherein the first region is above the second region within the guide slot,

a seat-mounting plate that supports the seat, the seat-mounting plate is rotatably coupled to the back-mounting link; a base plate that is interconnected to the seat-mounting plate via a system of links;

a rocker base vertically supported above an underlying surface; a rocker element 14 that rollably engages with the rocker base, wherein the rocker element is attached to the base plate; and

a rear pivot link rotatably coupled to the back-mounting link, to the rearward portion of the base plate, and to the sequence element.

The prior art made of record and not relied upon is considered pertinent to applicant's disclosure. Schaffner et al and Pollard et al teach bell cranks.

Any inquiry concerning this communication or earlier communications from the examiner should be directed to Rodney B. White whose telephone number is (571)272-6863. The examiner can normally be reached on 5:30 AM - 2:00PM.

Art Unit: 3636

If attempts to reach the examiner by telephone are unsuccessful, the examiner's supervisor, David Dunn can be reached on (571) 272-6670. The fax phone number for the organization where this application or proceeding is assigned is 571-273-8300.

Information regarding the status of an application may be obtained from the Patent Application Information Retrieval (PAIR) system. Status information for published applications may be obtained from either Private PAIR or Public PAIR. Status information for unpublished applications is available through Private PAIR only. For more information about the PAIR system, see <http://pair-direct.uspto.gov>. Should you have questions on access to the Private PAIR system, contact the Electronic Business Center (EBC) at 866-217-9197 (toll-free). If you would like assistance from a USPTO Customer Service Representative or access to the automated information system, call 800-786-9199 (IN USA OR CANADA) or 571-272-1000.

/Rodney B. White/
Primary Examiner,
Art Unit 3636
July 19, 2012

Notice of References Cited	Application/Control No. 12/981,176		Applicant(s)/Patent Under Reexamination LAWSON, GREGORY M.	
	Examiner Rodney B. White		Art Unit 3636	Page 1 of 1

U.S. PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Name	Classification
*	A	US-6,000,758	12-1999	Schaffner et al.	297/84X
*	B	US-7,543,885 B2	06-2009	Pollard et al.	297/85MX
*	C	US-2009/0278395 A1	11-2009	Pollard et al.	297/85M
*	D	US-7,997,644 B2	08-2011	Hoffman et al.	297/85M
*	E	US-8,016,348 B2	09-2011	Hoffman et al.	297/85M
*	F	US-8,113,574 B2	02-2012	Hoffman et al.	297/85M
*	G	US-2012/0153704 A1	06-2012	Hoffman et al.	297/85M
	H	US-			
	I	US-			
	J	US-			
	K	US-			
	L	US-			
	M	US-			

FOREIGN PATENT DOCUMENTS

*		Document Number Country Code-Number-Kind Code	Date MM-YYYY	Country	Name	Classification
	N					
	O					
	P					
	Q					
	R					
	S					
	T					

NON-PATENT DOCUMENTS

*		Include as applicable: Author, Title Date, Publisher, Edition or Volume, Pertinent Pages)
	U	
	V	
	W	
	X	

*A copy of this reference is not being furnished with this Office action. (See MPEP § 707.05(a).)
Dates in MM-YYYY format are publication dates. Classifications may be US or foreign.

Search Notes 	Application/Control No. 12981176	Applicant(s)/Patent Under Reexamination LAWSON, GREGORY M.
	Examiner RODNEY B WHITE	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85M, 259.2	07/19/2012	RBW

SEARCH NOTES		
Search Notes	Date	Examiner
EAST	07/19/2012	RBW

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner

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Receipt date: 07/03/2012

Doc code: IDS

Doc description: Information Disclosure Statement (IDS) Filed

12981176 - GAIL 3636

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name	White, Rodney Barnett		
	Attorney Docket Number	LGPL.153597		

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/R.W./	1	5072988		1991-12-17	Plunk, Jeffrey L.	

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T⁵

Receipt date: 07/03/2012 INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	12981176 - GAU: 3636
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name	White, Rodney Barnett		
	Attorney Docket Number	LGPL.153597		

/R.W./	1	Nonfinal Office Action in US Application No. 12/870,498, mailed April 3, 2012, 18 pages	☐
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Examiner Signature	/Rodney B. White/	Date Considered	07/23/2012
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	Examiner Name	White, Rodney Barnett		
	Attorney Docket Number	LGPL.153597		

CERTIFICATION STATEMENT

Please see 37 CFR 1.97 and 1.98 to make the appropriate selection(s):

☐ That each item of information contained in the information disclosure statement was first cited in any communication from a foreign patent office in a counterpart foreign application not more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(1).

OR

☐ That no item of information contained in the information disclosure statement was cited in a communication from a foreign patent office in a counterpart foreign application, and, to the knowledge of the person signing the certification after making reasonable inquiry, no item of information contained in the information disclosure statement was known to any individual designated in 37 CFR 1.56(c) more than three months prior to the filing of the information disclosure statement. See 37 CFR 1.97(e)(2).

☐ See attached certification statement.

☐ The fee set forth in 37 CFR 1.17 (p) has been submitted herewith.

☒ A certification statement is not submitted herewith.

SIGNATURE

A signature of the applicant or representative is required in accordance with CFR 1.33, 10.18. Please see CFR 1.4(d) for the form of the signature.

Signature	/Benjamin P. Tabor/	Date (YYYY-MM-DD)	2012-07-03
Name/Print	Benjamin P. Tabor	Registration Number	60741

This collection of information is required by 37 CFR 1.97 and 1.98. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 1 hour to complete, including gathering, preparing and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, VA 22313-1450. **DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, VA 22313-1450.**

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ALL REFERENCES CONSIDERED EXCEPT WHERE LINED THROUGH. /R.W./



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BIB DATA SHEET

CONFIRMATION NO. 6055

SERIAL NUMBER 12/981,176	FILING or 371(c) DATE 12/29/2010 RULE	CLASS 297	GROUP ART UNIT 3636	ATTORNEY DOCKET NO. LGPL.153597	
APPLICANTS Gregory M. Lawson, Tupelo, MS; ** CONTINUING DATA ***** This appln claims benefit of 61/295,546 01/15/2010 ** FOREIGN APPLICATIONS ***** ** IF REQUIRED, FOREIGN FILING LICENSE GRANTED ** 01/12/2011					
Foreign Priority claimed ☐ Yes ☒ No 35 USC 119(a-d) conditions met ☐ Yes ☒ No Verified and /RODNEY BARNETT WHITE/ Acknowledged Examiner's Signature	☐ Met after Allowance Initials	STATE OR COUNTRY MS	SHEETS DRAWINGS 8	TOTAL CLAIMS 20	INDEPENDENT CLAIMS 3
ADDRESS SHOOK, HARDY & BACON LLP INTELLECTUAL PROPERTY DEPARTMENT 2555 GRAND BLVD KANSAS CITY, MO 64108-2613 UNITED STATES					
TITLE POWERED ROCKER RECLINER LINKAGE MECHANISM					
FILING FEE RECEIVED 1090	FEES: Authority has been given in Paper No. _____ to charge/credit DEPOSIT ACCOUNT No. _____ for following:		☐ All Fees ☐ 1.16 Fees (Filing) ☐ 1.17 Fees (Processing Ext. of time) ☐ 1.18 Fees (Issue) ☐ Other _____ ☐ Credit		

Receipt date: 05/19/2011

Doc code: IDS

Doc description: Information Disclosure Statement (IDS) Filed

12981176 - GAI: 3636

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	Art Unit	3636	
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/R.W./	1	6120095		2000-09-19	Rogers	
/R.W./	2	5088473		2002-02-18	Chen	
/R.W./	3	4244620		1981-01-13	Harrison, et al.	
/R.W./	4	5765913		1998-06-16	Plunk	
/R.W./	5	3300243		2009-14-16	Mizelle	
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/R.W./	1	20040051350		2004-03-18	Duncan, et al.	

Receipt date: 05/19/2011 INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	12981176 - GAU: 3636
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name			
	Attorney Docket Number	LGPL.153597		

/R.W./	2	20060273631		2006-12-07	White, et al.	
/R.W./	3	20090096255		2009-04-16	Robertson	

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/R.W./	1	International Search Report from PCT/US 11/20387 dated 03/23/2011	☐

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Examiner Signature	/Rodney B. White/	Date Considered	07/19/2012
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EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
L1	9	("20060273631" "20090096255" "6120095" "20040051350" "4244620" "5088473" "5072988" "3300243" "5765913").PN.	US-PGPUB; USPAT	AND	OFF	2012/07/19 15:09
L2	23	297/85M.ccls. and linear actuator	US-PGPUB; USPAT	AND	OFF	2012/07/19 15:19
L3	10	L2 and rock\$	US-PGPUB; USPAT	AND	OFF	2012/07/19 15:20
L4	0	297/259.2.ccls. and linear actuator	US-PGPUB; USPAT	AND	OFF	2012/07/19 15:38
L5	3	297/259.2.ccls. and motor	US-PGPUB; USPAT	AND	OFF	2012/07/19 15:38
L6	1	("20110181094").PN.	US-PGPUB; USPAT	OR	OFF	2012/07/19 15:47
L7	1	L6 and motor tube	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 15:47
L8	1	L6 and front motor tube	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 15:49
L9	1	("20110175404").PN.	US-PGPUB; USPAT	OR	OFF	2012/07/19 16:30
L11	1	L9 and activator bar	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 16:31
L12	0	L3 and chassis	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:05
L13	1	L9 and chassis	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:05
L14	1	L9 and base plate\$	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:07
L15	1	L9 and seat mounting plate\$	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:12
L16	0	L9 and foot rest assembly	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:15

L17	0	L9 and foot rest	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:15
L18	1	L9 and footrest assembly	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:15
L19	0	L3 and sequenced	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:24
L20	0	L3 and sequence	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:24
L21	21	L2 and motor	US-PGPUB; USPAT	AND	OFF	2012/07/19 17:26
L22	10	L3 and motor	US-PGPUB; USPAT	AND	OFF	2012/07/19 17:26
L23	5	L3 and sequencer	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:47
L24	0	L23 and bellcrank	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:52
L25	0	L23 and bell crank	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:53
L26	3	L3 and bell crank	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 17:53
L27	4	((("6213554") or ("6000758") or ("5651580") or ("5265935")).PN.	US-PGPUB; USPAT	OR	OFF	2012/07/19 18:20
L28	1	L27 and bell crank	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 18:20
L29	5	((("6213554") or ("6000758") or ("5651580") or ("5265935") or ("5312153")).PN.	US-PGPUB; USPAT	OR	OFF	2012/07/19 18:25
L30	1	L9 and guide slot	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 18:36
L31	3	L3 and curve\$	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 18:51
L33	8	L2 and curve\$	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/07/19 18:52

7/ 19/ 2012 7:05:21 PM

IN THE UNITED STATES PATENT AND TRADEMARK OFFICE

Appl. No.	:	12/981,176	Confirmation No.	6055
Applicant	:	Gregory M. Lawson		
Filed	:	12/29/2010		
Title	:	POWERED ROCKER RECLINER LINKAGE MECHANISM		
Group Art Unit	:	3636		
Examiner	:	Rodney Barnett White		
Docket No.	:	LGPL.153597		
Customer No.	:	05251		

VIA EFS – October 29, 2012

Mail Stop Amendment
Commissioner for Patents
P. O. Box 1450
Alexandria, VA 22313-1450

REQUEST FOR ONE-MONTH EXTENSION OF TIME

It is hereby requested that the time period for responding to the Office Action mailed July 24, 2012, be extended for one (1) month or until November 24, 2012. The appropriate extension fee of \$150 under 37 C.F.R. § 1.17(a)(1) is submitted herewith.

AMENDMENT UNDER 37 C.F.R. § 1.111

The present communication is submitted in response to the Examiner's remarks in the Non-Final Office Action mailed July 24, 2012, the three-month statutory period for response to which expires on October 24, 2012. In response to the Non-Final Office Action, please consider the following:

Amendments to the Drawings: being on page 2 of this paper.

Amendments to the Claims: are reflected in the Listing of Claims that begins on page 3 of this paper.

Remarks: begin on page 12 of this paper.

AMENDMENT TO THE DRAWINGS

The drawings are objected to under 37 CFR 1.83(a) because the Examiner believes that they fail to show every feature of the invention specified in the claims. In response, the term “chassis” has been removed from the preamble of claim 1, thereby rendering the objection to the drawings moot.

AMENDMENTS TO THE CLAIMS

All claims currently pending and under consideration in the present application are shown below. This listing of claims will replace all prior versions, and listings, of claims in the application and is presented here for convenience of the Examiner:

Listing of Claims:

1. (Currently Amended) A seating unit having ~~a chassis~~, a seat, a backrest, and at least one foot-support ottoman, the seating unit being adapted to move between a closed, an extended and a reclined position, the seating unit comprising:

a pair of base plates in substantially parallel-spaced relation;

a pair of rocker mechanisms, wherein each of the rocker mechanisms is attached to a respective base plate and moveably supports the respective base plate above an underlying surface;

a pair of seat-mounting plates in substantially parallel-spaced relation, wherein the seat-mounting plates translatably carry the seat over the rocker mechanisms; and

a pair of the generally mirror-image linkage mechanisms each moveably interconnecting each of the base plates to a respective seat-mounting plate, wherein each of the linkage mechanisms comprise:

(a) a footrest assembly that extends and retracts the at least one foot-support ottoman, wherein the footrest assembly includes a front ottoman link that is rotatably coupled to a forward portion of one of the seat-mounting plates; and

(b) a seat-adjustment assembly that reclines and inclines the backrest; and

a front motor tube that spans the pair of linkage mechanisms, wherein the front motor tube having a pair of ends, wherein one of the ends of the front motor tube is coupled to the front ottoman link;

a linear actuator that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position, wherein the linear actuator is coupled to the front motor tube,

wherein the linear-actuator adjustment is sequenced into a first phase and a second phase that are mutually exclusive in stroke,

wherein the first phase moves the footrest assembly between the closed position and the extended position upon the linear actuator exerting lateral thrust onto the front motor tube that, in turn, invokes movement of the front ottoman link,

wherein the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position, and

wherein the second phase moves the seat-adjustment assembly between the extended position and the reclined position.

2. (Currently Amended) The seating unit of claim 1, further comprising[[:]]

~~a front motor tube; and~~

~~an activator bar; wherein the front motor tube and the activator bar spanning and couple to the pair of linkage mechanisms.~~

3. (Original) The seating unit of claim 2, wherein the linear actuator comprises:

a motor mechanism;

a track operably coupled to the motor mechanism, wherein the track includes a first travel section and a second travel section; and

a motor activator block that translates longitudinally along the track under automated control.

4. (Canceled).

5. (Currently Amended) The seating unit of claim ~~[[4]]~~3, wherein a housing of the motor mechanism is pivotably coupled to a section between the pair of ends of the front motor tube.

6. (Currently Amended) The seating unit of claim 5, wherein the first phase involves longitudinal translation of the motor activator block along the first travel section that creates a lateral thrust at the front motor tube, ~~thereby invoking movement of the front ottoman link, the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position.~~

7. (Original) The seating unit of claim 6, wherein, during the stroke of the linear actuator within the first phase, the motor mechanism moves forward and upward with respect to the pair of rocker mechanisms while the motor activator block remains generally fixed in space.

8. (Original) The seating unit of claim 3, wherein the activator bar having a pair of ends, wherein one of the ends of the activator bar is rotatably coupled to a motor bellcrank within the seat-adjustment assembly via a motor pivot bracket.

9. (Currently Amended) The seating unit of claim 8, wherein the seat-adjustment assembly comprises:

the motor bellcrank that includes a ~~mid-portion~~ mid-portion located between a first end and a second end, wherein the motor pivot bracket is rotatably coupled to the first end of the motor bellcrank;

a back-mounting link rotatably coupled to a respective seat-mounting plate, wherein the back-mounting link is configured to support the backrest; and

a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the ~~mid-portion~~ mid-portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link.

10. (Original) The seating unit of claim 9, wherein the motor activator block is fixedly coupled to a section between the pair of ends of the activator bar.

11. (Original) The seating unit of claim 10, wherein the second phase involves longitudinal translation of the motor activator block along the second travel section that creates a lateral thrust at the activator bar, thereby invoking movement of the motor bellcrank, the movement of the motor bellcrank controls adjustment of the seat-adjustment assembly between the extended position and the reclined position.

12. (Original) The seating unit of claim 11, wherein, during the stroke of the linear actuator within the second phase, the motor activator block moves rearward with respect to the pair of rocker mechanisms while the motor mechanism remains generally fixed in space.

13. (Currently Amended) The seating unit of claim 12, wherein each of the rocker mechanisms further comprise:

a rocker base that includes a front end, a rear end, and a ~~mid-section~~ mid-section, wherein the front end and the rear end attach to respective legs that support the rocker base above the underlying surface;

a rocker element that is formed with a convex curvature that rollably rides upon the ~~mid-section~~ mid-section of the rocker base, wherein the rocker element is attached to a respective base plate; and

at least one spring that interconnects the rocker base and the rocker element, wherein the interconnection of the at least one spring facilitates a controlled sway of the rocker element with respect to the rocker base.

14. (Original) The seating unit of claim 13, wherein the pair of linkage mechanisms are configured to translate the seat-mounting plates at a substantially consistent inclination angle, with respect to the rocker mechanisms, throughout the adjustment of the seating unit between the closed position, the extended position, and the reclined position.

15. (Original) The seating unit of claim 14, wherein the seat-adjustment assembly further comprises a lifter link that pivotably interconnects the second end of the motor bellcrank and a respective base plate.

16. (Currently Amended) A pair of the generally mirror-image linkage mechanisms adapted to move a rocker recliner between a closed, an extended, and a reclined position, the rocker recliner having a pair of rocker mechanisms, a seat that is translatable with respect to the rocker mechanisms, and a backrest that is angularly adjustable with respect to the seat, each of the linkage mechanisms comprising:

a back-mounting link that is configured to support the backrest;

a sequence link having a guide slot, wherein the guide slot includes a first region and a second region, and wherein the sequence link is rotatably coupled to the back-mounting link; and

a sequence element that, at least partially, extends into the guide slot; and

a rear pivot link rotatably coupled to the back-mounting link and attached to the sequence element,

wherein the sequence element resides within the second region when the rocker recliner is adjusted to the reclined position, and when the rocker recliner is adjusted to the reclined position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the closed position.

wherein the sequence element resides within the first region when the rocker recliner is adjusted to the extended position, and when the rocker recliner is adjusted to the extended position, the interaction of the sequence element and the sequence link allows adjustment of the rocker recliner to either the reclined position or to the closed position, and

wherein the sequence element resides within the second region when the rocker recliner is adjusted to the closed position, and when the rocker recliner is

adjusted to the closed position, the interaction of the sequence element and the sequence link resists adjustment of the rocker recliner to the reclined position.

17. (Currently Amended) The linkage mechanism of claim 16, ~~further comprising a back mounting link that is configured to support the backrest~~, wherein the sequence link includes an upper portion and a lower portion, wherein the upper portion of the sequence link is rotatably coupled to the back-mounting link, and wherein the guide slot represents ~~a pill-shaped~~ an aperture formed within the lower portion of the sequence link.

18. (Original) The linkage mechanism of claim 17, wherein the sequence element fully extends through the guide slot, and wherein the first region is above the second region within the guide slot.

19. (Currently Amended) The linkage mechanism of claim 18, further comprising:

a seat-mounting plate that supports the seat, the seat-mounting plate is rotatably coupled to the back-mounting link;

a base plate that is interconnected to the seat-mounting plate via a system of links;

a rocker base vertically supported above an underlying surface; and

a rocker element that rollably engages with the rocker base, wherein the rocker element is attached to the base plate; ~~and~~

~~a rear pivot link rotatably coupled to the back mounting link, to the rearward portion of the base plate, and to the sequence element.~~

20. (Currently Amended) A seating unit, comprising:

a pair of base plates in substantially parallel-spaced relation;

~~a pair of rocker mechanisms, wherein each of the rocker mechanisms is attached to a respective base plate and moveably supports the respective base plate above an underlying surface;~~

a pair of seat-mounting plates in substantially parallel-spaced relation, wherein each of the seat-mounting plates is disposed in an inclined orientation in relation to each of the base plates, respectively; and

a pair of generally mirror-image linkage mechanisms each moveably interconnecting each of the seat-mounting plates to a respective base plate, and adapted to move the seating unit between a closed position, an extended position, and a reclined position, wherein each of the linkage mechanisms comprise:

(a) a back-mounting link rotatably coupled to a respective seat-mounting plate and configured to support a backrest of the seating unit;

(b) a sequence link rotatably coupled to the back-mounting link, wherein the sequence link includes a guide slot;

(c) a rear pivot link rotatably coupled to the back-mounting link ~~link[[],]~~ and to a respective base plate, and attached to a sequence element, wherein the sequence element extends into the guide slot, and wherein interaction between the sequence element and the sequence link resists direct adjustment between the closed position and the reclined position;

(d) a motor bellcrank having a ~~mid-portion~~ mid-portion located between a first end and a second end, wherein an activator bar is rotatably coupled to the first end of the motor bellcrank; and

(e) a front lift link having a front end and a back end, wherein the back end of the front lift link is pivotably coupled to the back-mounting link, and wherein the ~~mid-portion~~ mid-portion of the motor bellcrank is rotatably coupled to a section between the front end and the back end of the front lift link.

REMARKS

The Non-Final Office Action mailed July 24, 2012 (hereinafter "Office Action"), has been received and reviewed. Prior to the present communication, claims 1-20 were pending in the subject application. All pending claims stand rejected under 35 U.S.C. § 102(e).

In order to expedite allowance of the rejected claims, without conceding to the validity of the Office's rejections, claims 1, 2, 5, 6, 9, 13, 16, 17, 19, and 20 have been amended, as set forth herein, while claim 4 has been canceled. Upon entry of the claim amendments, claims 1-3 and 5-20 will remain pending. It is submitted that no new matter has been added by way of the present proposed amendments. Reconsideration of the subject application is respectfully requested in view of the proposed amendments and the following remarks.

Claim Objections

Claims 9, 13, and 20 were objected to because the Examiner believed that typographical errors occurred within the claim language. In response, the terms "mid portion" and "mid section" have been revised in the amendments above to the terms "mid-portion" and "mid-section," respectively.

Double Patenting

Claims 1-12 were provisionally rejected on the ground of nonstatutory double patenting over claims 1-13 and 15 of co-pending Application No. 12/981,186. A terminal disclaimer in compliance with 37 CFR § 1.321 (c) has been prepared and is submitted herewith, thereby rendering the double patenting rejection moot.

Rejections based on 35 U.S.C. § 102

A.) Applicable Authority

Anticipation “requires that the same invention, including each element and limitation of the claims, was known or used by others before it was invented by the patentee.”¹ “[P]rior knowledge by others requires that all of the elements and limitations of the claimed subject matter must be expressly or inherently described in a single prior art reference.”² “The single reference must describe and enable the claimed invention, including all claim limitations, with sufficient clarity and detail to establish that the subject matter already existed in the prior art and that its existence was recognized by persons of ordinary skill in the field of the invention.”³

B.) Anticipation rejection over U.S. Patent No. 7,997,644, U.S. Patent No. 8,016,348 and U.S. Patent No. 8,113,574 to Hoffman et al.

Claims 1-20 were rejected under 35 U.S.C. 102(e) as being anticipated by Hoffman et al. (hereinafter Hoffman ‘644)⁴, (hereinafter Hoffman ‘348)⁵ and (hereinafter Hoffman ‘574)⁶. As the Hoffman reference does not describe, either expressly or inherently, each and every element of amended independent claims 1, 16, and 20, or the claims that depend therefrom, Applicants respectfully consider the pending rejection of these claims overcome, as hereinafter set forth. Further, claim 4 has been canceled by way of the present communication and, accordingly, the rejection of this claim has been rendered moot.

With regard to independent claim 1, the Examiner has rejected claim 1 for being anticipated by Hoffman. As part of the explanation of this rejection, the Officer indicates that

¹ MPEP § 2131, *passim*; *Hoover Group, Inc. v. Custom Metalcraft, Inc.*, 66 F.3d 299, 302 (Fed. Cir. 1995).

² *Elan Pharms., Inc. v. Mayo Foundation for Medical Educ. & Research*, 304 F.2d 1221, 1227 (Fed. Cir. 2002) (citing *In re Robertson*, 169 F.3d 743, 745 (Fed. Cir. 1999); *Constant v. Advanced Micro-Devices, Inc.*, 848 F.2d 1560, 1571 (Fed. Cir. 1988)).

³ *Id.* (emphasis added)(citing *Crown Operations Int’l, Ltd. v. Solutia Inc.*, 289 F.3d 1367, 1375 (Fed. Cir. 2002); *In re Spada*, 911 F.2d 705, 708 (Fed. Cir. 1990)). *See also*, *PPG Indus., Inc. v. Guardian Indus. Corp.*, 75 F.3d 1558, 1566 (Fed. Cir. 1996).

⁴ U.S. Patent No. 7,997,644

⁵ U.S. Patent No. 8,016,348

Hoffman includes an actuating mechanism 113 (see FIG. 5 of Hoffman '348) that is employed to adjust the chair from the closed to the TV and to the reclined positions. The actuating mechanism 113 includes a motor unit 114 that is attached to a cross-member 108 via mounting bracket 110, where the cross-member 108 extends between the reclining mechanisms 30. Specifically, the ends of the cross-member 108 are attached to the *lower ottoman swing links* 76 via the bracket 106.⁷

In order to clearly distinguish between the Hoffman patents and the innovative linkage mechanism of the instant application, claim 1 is amended to expand upon the attachment points of the linear actuator. In particular, the seating unit of claim 1 now recites the following components:

- “a front motor tube that spans the pair of linkage mechanisms, wherein the front motor tube having a pair of ends, wherein one of the ends of the front motor tube is fixedly coupled to the front ottoman link,” where the front ottoman link is within the footrest assembly that extends and retracts the foot-support ottoman(s); and
- “a linear actuator that provides automated adjustment of the seating unit between a closed position, an extended position, and a reclined position, wherein the linear actuator is pivotably coupled to the front motor tube.”

In operation, the linear actuator is sequenced into a first phase and a second phase that are mutually exclusive in stroke. During the first phase, “the linear actuator exert[s] lateral thrust onto the front motor tube that, in turn, invokes movement of the front ottoman link,” where “the movement of the first ottoman link controls adjustment of the footrest assembly between the closed position and the extended position.” In other words, with respect to FIG. 5 of

⁶ U.S. Patent No. 8,113,574

the Specification, the linear actuator 90 is coupled to the front ottoman link 110 via the front motor tube 310. As recited by claim 1, the front ottoman link 110 is a member of the footrest assembly 200, which acts to extend and retract the foot-support ottoman(s) during the first phase of operation.

The *lower ottoman swing link 76* (connecting to the cross-member 108) of the Hoffman patents is not comparable to the front ottoman link (connecting to the front motor tube) of amended independent claim 1. If anything, the *lower ottoman swing link 76* of the Hoffman patents is somewhat comparable to the rear ottoman link 120 of FIG. 5 because they are connected to a seat plate rearward of the upper ottoman swing link 72 (Hoffman patents) and the front ottoman link (claim 1).

Claim 1 now recites the “front ottoman link” as being “rotatably coupled to a forward portion of one of the seat-mounting plates.” Hoffman ‘348 describes the upper ottoman swing link 72 as being attached to a front region of the seat adapter 66 at pivot 74, while the *lower ottoman swing link 76* is “attached at pivot 78 that is located rearwardly and downwardly from pivot 74.”⁸ Thus, the lower swing link 76 is not comparable to the front ottoman link of claim 1 because it is not rotatably coupled to the forward portion of one of the seat-mounting plates.

Further, the seat-mounting plates of claim 1 are recited as being configured to “translatably carry the seat over the rocker mechanisms.” As mentioned above, the front ottoman link is coupled to a forward portion of one of the seat-mounting plates. The Hoffman patents disclose the *lower ottoman swing link 76* as being attached to a seat adapter 66. This seat adapter 66 is not comparable to the seat-mounting plates of claim 1 because the seat adapter 66 is

⁷ See Hoffman ‘348 at col. 5, ll. 64-67 and col. 6, ll. 1-6 and ll. 50-56.

not configured to carry a seat. Instead, it is the seat frame 62 of the Hoffman patents that underlies the seat 13.

Because claim 1 recites a linear actuator that couples to the front ottoman link within the footrest assembly (as opposed to the rear ottoman link), while the linear actuator of the Hoffman patents does not, Applicants respectfully assert that amended claim 1 overcomes the pending anticipation rejection.

In view of the above, it is respectfully requested that the 35 U.S.C. § 102 rejection of claim 1 be withdrawn. Further, claim 1 is believed to be in condition for allowance and such favorable action is respectfully requested. Each of claims 2, 3, and 5-15 depend, either directly or indirectly, from independent claim 1. As such, these claims are believed to be in condition for allowance at least by virtue of their dependency.⁹

Independent claims 16 and 20 are amended to clarify the interaction of a sequence element (e.g., pin) with guide slot (e.g., pill-shaped aperture) within a sequence link. In particular, with respect to claim 16, the interaction is clarified with the following elements:

- “a back-mounting link that is configured to support the backrest;”
- “a sequence link having a guide slot, wherein the guide slot includes a first region and a second region, and wherein *the sequence link is rotatably coupled to the back-mounting link;*”
- “a sequence element that, at least partially, extends into the guide slot;”
and
- “*a rear pivot link rotatably coupled to the back-mounting link and attached to the sequence element*” (emphasis added).

⁸ *Id.*

⁹ *See* 37 C.F.R. § 1.75(c) (2006).

In this way, as seen in FIGS. 9-11 of the Specification of the instant application, the sequence link 550 is coupled to the back-mounting link 510 at pivot 552, while the rear pivot link 520 is coupled to the back-mounting link 510 at pivot 521. Also, the rear pivot link 520 is attached to the sequence element 526 that extends within the guide slot 551 of the sequence link 550. Thus, the sequence link is coupled to one plate (back-mounting plate), while a different plate (rear pivot link) is attached to the sequence element. In contrast, the Hoffman patents disclose a sequence plate 54 (see FIG. 4) that is coupled to the backpost 48 at pivot 58, where the backpost 48 also is attached to pin 48a. That is, the sequence plate 54 is coupled to the same plate (backpost 48) to which the pin 48a is affixed.

In view of the above, it is respectfully requested that the 35 U.S.C. § 102 rejection of independent claims 16 and 20 be withdrawn. Further, claims 16 and 20, as amended, are believed to be in condition for allowance and such favorable action is respectfully requested. Each of claims 17-19 depend, either directly or indirectly, from independent claim 16. As such, these claims are believed to be in condition for allowance at least by virtue of their dependency.¹⁰

¹⁰ See 37 C.F.R. § 1.75(c) (2006).

CONCLUSION

For at least the reasons stated above, each of claims 1-3 and 5-20 is believed to be in condition for allowance. Applicants respectfully request withdrawal of the pending rejections and allowance of the claims. If any issues remain that would prevent issuance of this application, the Examiner is urged to contact the undersigned—by telephone at 816.559.2136 or via email at btabor@shb.com (such communication via email is herein expressly granted)—to resolve the same prior to issuing a subsequent action.

It is believed that no fee is due in conjunction with the present communication. However, if this belief is in error, the Commissioner is hereby authorized to charge any amount required to Deposit Account No. 19-2112, referencing attorney docket number LGPL.153597.

Respectfully submitted,

/BENJAMIN P. TABOR/

Benjamin P. Tabor
Reg. No. 60,741

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**TERMINAL DISCLAIMER TO OBVIATE A PROVISIONAL DOUBLE PATENTING
REJECTION OVER A PENDING "REFERENCE" APPLICATION**Docket Number (Optional)
LGPL.153597

In re Application of: Gregory M. Lawson

Application No.: 12/981,176

Filed: December 29, 2012

For: Powered Rocker Recliner Linkage Mechanism

The owner*, L & P Property Management Company, of 100 percent interest in the instant application hereby disclaims, except as provided below, the terminal part of the statutory term of any patent granted on the instant application which would extend beyond the expiration date of the full statutory term of any patent granted on pending **reference** Application Number 12/981,186, filed December 29, 2010, as the term of any patent granted on said **reference** application may be shortened by any terminal disclaimer filed prior to the grant of any patent on the pending **reference** application. The owner hereby agrees that any patent so granted on the instant application shall be enforceable only for and during such period that it and any patent granted on the **reference** application are commonly owned. This agreement runs with any patent granted on the instant application and is binding upon the grantee, its successors or assigns.

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2. ☒ The undersigned is an attorney or agent of record. Reg. No. 60741

/Benjamin P. Tabor/
Signature

10/29/2012
Date

Benjamin P. Tabor
Typed or printed name

816.559.2136
Telephone Number

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7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (*i.e.*, GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspection or an issued patent.
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Electronic Patent Application Fee Transmittal

Application Number:	12981176			
Filing Date:	29-Dec-2010			
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM			
First Named Inventor/Applicant Name:	Gregory M. Lawson			
Filer:	Benjamin P. Tabor/Tammy Winson			
Attorney Docket Number:	LGPL.153597			
Filed as Large Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Extension-of-Time:				
Extension - 1 month with \$0 paid	1251	1	150	150

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Miscellaneous:				
Statutory or terminal disclaimer	1814	1	160	160
Total in USD (\$)				310

Electronic Acknowledgement Receipt

EFS ID:	14093658
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	5251
Filer:	Benjamin P. Tabor/Tammy Winson
Filer Authorized By:	Benjamin P. Tabor
Attorney Docket Number:	LGPL.153597
Receipt Date:	29-OCT-2012
Filing Date:	29-DEC-2010
Time Stamp:	10:18:45
Application Type:	Utility under 35 USC 111(a)

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1	Amendment/Req. Reconsideration-After Non-Final Reject	LGPL_153597_RESPONSE_TO_ NONFINAL_OA.pdf	88304	no	18
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Warnings:					
Information:					
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3	Fee Worksheet (SB06)	fee-info.pdf	32358	no	2
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Application Number 	Application/Control No. 12/981,176	Applicant(s)/Patent under Reexamination LAWSON, GREGORY M.	

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LGPL.153597

In re Application of: Gregory M. Lawson

Application No.: 12/981,176

Filed: December 29, 2010

For: Powered Rocker Recliner Linkage Mechanism

The owner*, L & P Property Management Company, of 100 percent interest in the instant application hereby disclaims, except as provided below, the terminal part of the statutory term of any patent granted on the instant application which would extend beyond the expiration date of the full statutory term of any patent granted on pending **reference** Application Number 12/981,186, filed December 29, 2010, as the term of any patent granted on said **reference** application may be shortened by any terminal disclaimer filed prior to the grant of any patent on the pending **reference** application. The owner hereby agrees that any patent so granted on the instant application shall be enforceable only for and during such period that it and any patent granted on the **reference** application are commonly owned. This agreement runs with any patent granted on the instant application and is binding upon the grantee, its successors or assigns.

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2. ☒ The undersigned is an attorney or agent of record. Reg. No. 60741

/Benjamin P. Tabor/
Signature

11/06/2012
Date

Benjamin P. Tabor
Typed or printed name

816.559.2136
Telephone Number

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Privacy Act Statement

The **Privacy Act of 1974 (P.L. 93-579)** requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether disclosure of these records is required by the Freedom of Information Act.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
4. A record in this system of records may be disclosed, as a routine use, to a contractor of the Agency having need for the information in order to perform a contract. Recipients of information shall be required to comply with the requirements of the Privacy Act of 1974, as amended, pursuant to 5 U.S.C. 552a(m).
5. A record related to an International Application filed under the Patent Cooperation Treaty in this system of records may be disclosed, as a routine use, to the International Bureau of the World Intellectual Property Organization, pursuant to the Patent Cooperation Treaty.
6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (*i.e.*, GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
8. A record from this system of records may be disclosed, as a routine use, to the public after either publication of the application pursuant to 35 U.S.C. 122(b) or issuance of a patent pursuant to 35 U.S.C. 151. Further, a record may be disclosed, subject to the limitations of 37 CFR 1.14, as a routine use, to the public if the record was filed in an application which became abandoned or in which the proceedings were terminated and which application is referenced by either a published application, an application open to public inspection or an issued patent.
9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

Electronic Acknowledgement Receipt

EFS ID:	14160966
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	5251
Filer:	Benjamin P. Tabor
Filer Authorized By:	
Attorney Docket Number:	LGPL.153597
Receipt Date:	06-NOV-2012
Filing Date:	29-DEC-2010
Time Stamp:	14:58:32
Application Type:	Utility under 35 USC 111(a)

Payment information:

Submitted with Payment	no
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File Listing:

Document Number	Document Description	File Name	File Size(Bytes)/ Message Digest	Multi Part /.zip	Pages (if appl.)
1	Terminal Disclaimer Filed	LGPL_153597_REVISIED_TERM NAL_DISCLAIMER.pdf	342415 ff2ba1b1b5427f37bf9575e87207cc1b28b78a94	no	2

Warnings:

Information:

This Acknowledgement Receipt evidences receipt on the noted date by the USPTO of the indicated documents, characterized by the applicant, and including page counts, where applicable. It serves as evidence of receipt similar to a Post Card, as described in MPEP 503.

New Applications Under 35 U.S.C. 111

If a new application is being filed and the application includes the necessary components for a filing date (see 37 CFR 1.53(b)-(d) and MPEP 506), a Filing Receipt (37 CFR 1.54) will be issued in due course and the date shown on this Acknowledgement Receipt will establish the filing date of the application.

National Stage of an International Application under 35 U.S.C. 371

If a timely submission to enter the national stage of an international application is compliant with the conditions of 35 U.S.C. 371 and other applicable requirements a Form PCT/DO/EO/903 indicating acceptance of the application as a national stage submission under 35 U.S.C. 371 will be issued in addition to the Filing Receipt, in due course.

New International Application Filed with the USPTO as a Receiving Office

If a new international application is being filed and the international application includes the necessary components for an international filing date (see PCT Article 11 and MPEP 1810), a Notification of the International Application Number and of the International Filing Date (Form PCT/RO/105) will be issued in due course, subject to prescriptions concerning national security, and the date shown on this Acknowledgement Receipt will establish the international filing date of the application.

Application Number 	Application/Control No. 12/981,176	Applicant(s)/Patent under Reexamination LAWSON, GREGORY M.	

Document Code - DISQ	Internal Document – DO NOT MAIL
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TERMINAL DISCLAIMER	☒ APPROVED	☐ DISAPPROVED
Date Filed : 11/06/12	This patent is subject to a Terminal Disclaimer	

Approved/Disapproved by:
Angie Walker



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

NOTICE OF ALLOWANCE AND FEE(S) DUE

5251 7590 11/13/2012
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

EXAMINER

WHITE, RODNEY BARNETT

ART UNIT

PAPER NUMBER

3636

DATE MAILED: 11/13/2012

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

12/981,176

12/29/2010

Gregory M. Lawson

LGPL.153597

6055

TITLE OF INVENTION: POWERED ROCKER RECLINER LINKAGE MECHANISM

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	NO	\$1770	\$300	\$0	\$2070	02/13/2013

THE APPLICATION IDENTIFIED ABOVE HAS BEEN EXAMINED AND IS ALLOWED FOR ISSUANCE AS A PATENT. PROSECUTION ON THE MERITS IS CLOSED. THIS NOTICE OF ALLOWANCE IS NOT A GRANT OF PATENT RIGHTS. THIS APPLICATION IS SUBJECT TO WITHDRAWAL FROM ISSUE AT THE INITIATIVE OF THE OFFICE OR UPON PETITION BY THE APPLICANT. SEE 37 CFR 1.313 AND MPEP 1308.

THE ISSUE FEE AND PUBLICATION FEE (IF REQUIRED) MUST BE PAID WITHIN THREE MONTHS FROM THE MAILING DATE OF THIS NOTICE OR THIS APPLICATION SHALL BE REGARDED AS ABANDONED. THIS STATUTORY PERIOD CANNOT BE EXTENDED. SEE 35 U.S.C. 151. THE ISSUE FEE DUE INDICATED ABOVE DOES NOT REFLECT A CREDIT FOR ANY PREVIOUSLY PAID ISSUE FEE IN THIS APPLICATION. IF AN ISSUE FEE HAS PREVIOUSLY BEEN PAID IN THIS APPLICATION (AS SHOWN ABOVE), THE RETURN OF PART B OF THIS FORM WILL BE CONSIDERED A REQUEST TO REAPPLY THE PREVIOUSLY PAID ISSUE FEE TOWARD THE ISSUE FEE NOW DUE.

HOW TO REPLY TO THIS NOTICE:

I. Review the SMALL ENTITY status shown above.

If the SMALL ENTITY is shown as YES, verify your current SMALL ENTITY status:

A. If the status is the same, pay the TOTAL FEE(S) DUE shown above.

B. If the status above is to be removed, check box 5b on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and twice the amount of the ISSUE FEE shown above, or

If the SMALL ENTITY is shown as NO:

A. Pay TOTAL FEE(S) DUE shown above, or

B. If applicant claimed SMALL ENTITY status before, or is now claiming SMALL ENTITY status, check box 5a on Part B - Fee(s) Transmittal and pay the PUBLICATION FEE (if required) and 1/2 the ISSUE FEE shown above.

II. PART B - FEE(S) TRANSMITTAL, or its equivalent, must be completed and returned to the United States Patent and Trademark Office (USPTO) with your ISSUE FEE and PUBLICATION FEE (if required). If you are charging the fee(s) to your deposit account, section "4b" of Part B - Fee(s) Transmittal should be completed and an extra copy of the form should be submitted. If an equivalent of Part B is filed, a request to reapply a previously paid issue fee must be clearly made, and delays in processing may occur due to the difficulty in recognizing the paper as an equivalent of Part B.

III. All communications regarding this application must give the application number. Please direct all communications prior to issuance to Mail Stop ISSUE FEE unless advised to the contrary.

IMPORTANT REMINDER: Utility patents issuing on applications filed on or after Dec. 12, 1980 may require payment of maintenance fees. It is patentee's responsibility to ensure timely payment of maintenance fees when due.

PART B - FEE(S) TRANSMITTAL

**Complete and send this form, together with applicable fee(s), to: Mail Mail Stop ISSUE FEE
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax (571)-273-2885**

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

5251 7590 11/13/2012
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

(Depositor's name)
(Signature)
(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

12/981,176 12/29/2010 Gregory M. Lawson LGPL.153597 6055

TITLE OF INVENTION: POWERED ROCKER RECLINER LINKAGE MECHANISM

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
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nonprovisional NO \$1770 \$300 \$0 \$2070 02/13/2013

EXAMINER	ART UNIT	CLASS-SUBCLASS
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WHITE, RODNEY BARNETT 3636 297-08500R

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

- ☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached.
☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list

- (1) the names of up to 3 registered patent attorneys or agents OR, alternatively, 1 _____
(2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed. 2 _____
3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE (B) RESIDENCE: (CITY and STATE OR COUNTRY)

Please check the appropriate assignee category or categories (will not be printed on the patent) : ☐ Individual ☐ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

- ☐ Issue Fee
☐ Publication Fee (No small entity discount permitted)
☐ Advance Order - # of Copies _____

4b. Payment of Fee(s); (Please first reapply any previously paid issue fee shown above)

- ☐ A check is enclosed.
☐ Payment by credit card. Form PTO-2038 is attached.
☐ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number _____ (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

- ☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27. ☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature _____ Date _____

Typed or printed name _____ Registration No. _____

This collection of information is required by 37 CFR 1.311. The information is required to obtain or retain a benefit by the public which is to file (and by the USPTO to process) an application. Confidentiality is governed by 35 U.S.C. 122 and 37 CFR 1.14. This collection is estimated to take 12 minutes to complete, including gathering, preparing, and submitting the completed application form to the USPTO. Time will vary depending upon the individual case. Any comments on the amount of time you require to complete this form and/or suggestions for reducing this burden, should be sent to the Chief Information Officer, U.S. Patent and Trademark Office, U.S. Department of Commerce, P.O. Box 1450, Alexandria, Virginia 22313-1450. DO NOT SEND FEES OR COMPLETED FORMS TO THIS ADDRESS. SEND TO: Commissioner for Patents, P.O. Box 1450, Alexandria, Virginia 22313-1450.

Under the Paperwork Reduction Act of 1995, no persons are required to respond to a collection of information unless it displays a valid OMB control number.



UNITED STATES PATENT AND TRADEMARK OFFICE

UNITED STATES DEPARTMENT OF COMMERCE
United States Patent and Trademark Office
Address: COMMISSIONER FOR PATENTS
P.O. Box 1450
Alexandria, Virginia 22313-1450
www.uspto.gov

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/981,176	12/29/2010	Gregory M. Lawson	LGPL.153597	6055

5251 7590 11/13/2012
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

EXAMINER

WHITE, RODNEY BARNETT

ART UNIT PAPER NUMBER

3636

DATE MAILED: 11/13/2012

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment to date is 133 day(s). If the issue fee is paid on the date that is three months after the mailing date of this notice and the patent issues on the Tuesday before the date that is 28 weeks (six and a half months) after the mailing date of this notice, the Patent Term Adjustment will be 133 day(s).

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Customer Service Center of the Office of Patent Publication at 1-(888)-786-0101 or (571)-272-4200.

Privacy Act Statement

The Privacy Act of 1974 (P.L. 93-579) requires that you be given certain information in connection with your submission of the attached form related to a patent application or patent. Accordingly, pursuant to the requirements of the Act, please be advised that: (1) the general authority for the collection of this information is 35 U.S.C. 2(b)(2); (2) furnishing of the information solicited is voluntary; and (3) the principal purpose for which the information is used by the U.S. Patent and Trademark Office is to process and/or examine your submission related to a patent application or patent. If you do not furnish the requested information, the U.S. Patent and Trademark Office may not be able to process and/or examine your submission, which may result in termination of proceedings or abandonment of the application or expiration of the patent.

The information provided by you in this form will be subject to the following routine uses:

1. The information on this form will be treated confidentially to the extent allowed under the Freedom of Information Act (5 U.S.C. 552) and the Privacy Act (5 U.S.C. 552a). Records from this system of records may be disclosed to the Department of Justice to determine whether disclosure of these records is required by the Freedom of Information Act.
2. A record from this system of records may be disclosed, as a routine use, in the course of presenting evidence to a court, magistrate, or administrative tribunal, including disclosures to opposing counsel in the course of settlement negotiations.
3. A record in this system of records may be disclosed, as a routine use, to a Member of Congress submitting a request involving an individual, to whom the record pertains, when the individual has requested assistance from the Member with respect to the subject matter of the record.
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6. A record in this system of records may be disclosed, as a routine use, to another federal agency for purposes of National Security review (35 U.S.C. 181) and for review pursuant to the Atomic Energy Act (42 U.S.C. 218(c)).
7. A record from this system of records may be disclosed, as a routine use, to the Administrator, General Services, or his/her designee, during an inspection of records conducted by GSA as part of that agency's responsibility to recommend improvements in records management practices and programs, under authority of 44 U.S.C. 2904 and 2906. Such disclosure shall be made in accordance with the GSA regulations governing inspection of records for this purpose, and any other relevant (i.e., GSA or Commerce) directive. Such disclosure shall not be used to make determinations about individuals.
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9. A record from this system of records may be disclosed, as a routine use, to a Federal, State, or local law enforcement agency, if the USPTO becomes aware of a violation or potential violation of law or regulation.

Notice of Allowability	Application No.	Applicant(s)	
	12/981,176	LAWSON, GREGORY M.	
	Examiner	Art Unit	
	Rodney B. White	3636	

-- The MAILING DATE of this communication appears on the cover sheet with the correspondence address--

All claims being allowable, PROSECUTION ON THE MERITS IS (OR REMAINS) CLOSED in this application. If not included herewith (or previously mailed), a Notice of Allowance (PTOL-85) or other appropriate communication will be mailed in due course. **THIS NOTICE OF ALLOWABILITY IS NOT A GRANT OF PATENT RIGHTS.** This application is subject to withdrawal from issue at the initiative of the Office or upon petition by the applicant. See 37 CFR 1.313 and MPEP 1308.

1. ☒ This communication is responsive to the Amendment and Terminal Disclaimer filed 10/29/2012.
2. ☐ An election was made by the applicant in response to a restriction requirement set forth during the interview on ____; the restriction requirement and election have been incorporated into this action.
3. ☒ The allowed claim(s) is/are 1-3 and 5-20, renumbered 1-19. As a result of the allowed claim(s), you may be eligible to benefit from the **Patent Prosecution Highway** program at a participating intellectual property office for the corresponding application. For more information, please see http://www.uspto.gov/patents/init_events/pph/index.jsp or send an inquiry to PPHfeedback@uspto.gov.
4. ☐ Acknowledgment is made of a claim for foreign priority under 35 U.S.C. § 119(a)-(d) or (f).
 - a) ☐ All b) ☐ Some* c) ☐ None of the:
 1. ☐ Certified copies of the priority documents have been received.
 2. ☐ Certified copies of the priority documents have been received in Application No. ____.
 3. ☐ Copies of the certified copies of the priority documents have been received in this national stage application from the International Bureau (PCT Rule 17.2(a)).

* Certified copies not received: ____.

Applicant has THREE MONTHS FROM THE "MAILING DATE" of this communication to file a reply complying with the requirements noted below. Failure to timely comply will result in ABANDONMENT of this application.

THIS THREE-MONTH PERIOD IS NOT EXTENDABLE.

5. ☐ CORRECTED DRAWINGS (as "replacement sheets") must be submitted.

☐ including changes required by the attached Examiner's Amendment / Comment or in the Office action of Paper No./Mail Date _____.

Identifying indicia such as the application number (see 37 CFR 1.84(c)) should be written on the drawings in the front (not the back) of each sheet. Replacement sheet(s) should be labeled as such in the header according to 37 CFR 1.121(d).
6. ☐ DEPOSIT OF and/or INFORMATION about the deposit of BIOLOGICAL MATERIAL must be submitted. Note the attached Examiner's comment regarding REQUIREMENT FOR THE DEPOSIT OF BIOLOGICAL MATERIAL.

Attachment(s)

- | | |
|--|--|
| <ol style="list-style-type: none"> 1. ☐ Notice of References Cited (PTO-892) 2. ☐ Information Disclosure Statements (PTO/SB/08),
Paper No./Mail Date ____ 3. ☐ Examiner's Comment Regarding Requirement for Deposit
of Biological Material 4. ☐ Interview Summary (PTO-413),
Paper No./Mail Date ____. | <ol style="list-style-type: none"> 5. ☐ Examiner's Amendment/Comment 6. ☐ Examiner's Statement of Reasons for Allowance 7. ☐ Other ____. |
|--|--|

/Rodney B. White/
Primary Examiner, Art Unit 3636

Search Notes 	Application/Control No. 12981176	Applicant(s)/Patent Under Reexamination LAWSON, GREGORY M.
	Examiner RODNEY B WHITE	Art Unit 3636

SEARCHED			
Class	Subclass	Date	Examiner
297	85M, 259.2	07/19/2012	RBW
Updated search		11/02/2012	RBW

SEARCH NOTES			
Search Notes		Date	Examiner
EAST		07/19/2012	RBW

INTERFERENCE SEARCH			
Class	Subclass	Date	Examiner
297	85M, 259.2	11/02/2012	RBW

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EAST Search History

EAST Search History (Prior Art)

Ref #	Hits	Search Query	DBs	Default Operator	Plurals	Time Stamp
L1	62	297/85M.ccls.	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/11/02 19:13
L2	89	297/259.2.ccls.	US-PGPUB; USPAT; FPRS; EPO; JPO; DERWENT	AND	OFF	2012/11/02 19:15

11/ 2/ 2012 7:16:31 PM

PART B - FEE(S) TRANSMITTAL

Complete and send this form, together with applicable fee(s), to: **Mail** **Mail Stop ISSUE FEE**
Commissioner for Patents
P.O. Box 1450
Alexandria, Virginia 22313-1450
or Fax **(571)-273-2885**

INSTRUCTIONS: This form should be used for transmitting the ISSUE FEE and PUBLICATION FEE (if required). Blocks 1 through 5 should be completed where appropriate. All further correspondence including the Patent, advance orders and notification of maintenance fees will be mailed to the current correspondence address as indicated unless corrected below or directed otherwise in Block 1, by (a) specifying a new correspondence address; and/or (b) indicating a separate "FEE ADDRESS" for maintenance fee notifications.

CURRENT CORRESPONDENCE ADDRESS (Note: Use Block 1 for any change of address)

Note: A certificate of mailing can only be used for domestic mailings of the Fee(s) Transmittal. This certificate cannot be used for any other accompanying papers. Each additional paper, such as an assignment or formal drawing, must have its own certificate of mailing or transmission.

5251 7590 11/13/2012
SHOOK, HARDY & BACON LLP
INTELLECTUAL PROPERTY DEPARTMENT
2555 GRAND BLVD
KANSAS CITY, MO 64108-2613

Certificate of Mailing or Transmission

I hereby certify that this Fee(s) Transmittal is being deposited with the United States Postal Service with sufficient postage for first class mail in an envelope addressed to the Mail Stop ISSUE FEE address above, or being facsimile transmitted to the USPTO (571) 273-2885, on the date indicated below.

VIA EFS-WEB	(Depositor's name)
	(Signature)
FEBRUARY 12, 2013	(Date)

APPLICATION NO.	FILING DATE	FIRST NAMED INVENTOR	ATTORNEY DOCKET NO.	CONFIRMATION NO.
-----------------	-------------	----------------------	---------------------	------------------

12/981,176

12/29/2010

Gregory M. Lawson

LGPL153597

6055

TITLE OF INVENTION: POWERED ROCKER RECLINER LINKAGE MECHANISM

APPLN. TYPE	SMALL ENTITY	ISSUE FEE DUE	PUBLICATION FEE DUE	PREV. PAID ISSUE FEE	TOTAL FEE(S) DUE	DATE DUE
nonprovisional	NO	\$1770	\$300	\$0	\$2070	02/13/2013

EXAMINER	ART UNIT	CLASS-SUBCLASS
WHITE, RODNEY BARNETT	3636	297-08500R

1. Change of correspondence address or indication of "Fee Address" (37 CFR 1.363).

☐ Change of correspondence address (or Change of Correspondence Address form PTO/SB/122) attached.

☐ "Fee Address" indication (or "Fee Address" Indication form PTO/SB/47; Rev 03-02 or more recent) attached. **Use of a Customer Number is required.**

2. For printing on the patent front page, list

(1) the names of up to 3 registered patent attorneys or agents OR, alternatively,

1 SHOOK HARDY & BACON L.L.P.

(2) the name of a single firm (having as a member a registered attorney or agent) and the names of up to 2 registered patent attorneys or agents. If no name is listed, no name will be printed.

2 _____

3 _____

3. ASSIGNEE NAME AND RESIDENCE DATA TO BE PRINTED ON THE PATENT (print or type)

PLEASE NOTE: Unless an assignee is identified below, no assignee data will appear on the patent. If an assignee is identified below, the document has been filed for recordation as set forth in 37 CFR 3.11. Completion of this form is NOT a substitute for filing an assignment.

(A) NAME OF ASSIGNEE

(B) RESIDENCE: (CITY and STATE OR COUNTRY)

L & P PROPERTY MANAGEMENT COMPANY

SOUTH GATE, CALIFORNIA

Please check the appropriate assignee category or categories (will not be printed on the patent): ☐ Individual ☒ Corporation or other private group entity ☐ Government

4a. The following fee(s) are submitted:

☒ Issue Fee

☒ Publication Fee (No small entity discount permitted)

☐ Advance Order - # of Copies _____

4b. Payment of Fee(s): (Please first reapply any previously paid issue fee shown above)

☐ A check is enclosed.

☒ Payment by credit card. ~~Form PTO-2038 is attached.~~ VIA EFS-WEB

☒ The Director is hereby authorized to charge the required fee(s), any deficiency, or credit any overpayment, to Deposit Account Number 192112 (enclose an extra copy of this form).

5. Change in Entity Status (from status indicated above)

☐ a. Applicant claims SMALL ENTITY status. See 37 CFR 1.27.

☐ b. Applicant is no longer claiming SMALL ENTITY status. See 37 CFR 1.27(g)(2).

NOTE: The Issue Fee and Publication Fee (if required) will not be accepted from anyone other than the applicant; a registered attorney or agent; or the assignee or other party in interest as shown by the records of the United States Patent and Trademark Office.

Authorized Signature /BENJAMIN P. TABOR/

Date FEBRUARY 12, 2013

Typed or printed name BENJAMIN P. TABOR

Registration No. 60741

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Electronic Patent Application Fee Transmittal

Application Number:	12981176			
Filing Date:	29-Dec-2010			
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM			
First Named Inventor/Applicant Name:	Gregory M. Lawson			
Filer:	Benjamin P. Tabor/Tammy Winson			
Attorney Docket Number:	LGPL.153597			
Filed as Large Entity				
Utility under 35 USC 111(a) Filing Fees				
Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Basic Filing:				
Pages:				
Claims:				
Miscellaneous-Filing:				
Petition:				
Patent-Appeals-and-Interference:				
Post-Allowance-and-Post-Issuance:				
Utility Appl issue fee	1501	1	1770	1770
Publ. Fee- early, voluntary, or normal	1504	1	300	300

Description	Fee Code	Quantity	Amount	Sub-Total in USD(\$)
Extension-of-Time:				
Miscellaneous:				
Total in USD (\$)				2070

Electronic Acknowledgement Receipt

EFS ID:	14937820
Application Number:	12981176
International Application Number:	
Confirmation Number:	6055
Title of Invention:	POWERED ROCKER RECLINER LINKAGE MECHANISM
First Named Inventor/Applicant Name:	Gregory M. Lawson
Customer Number:	5251
Filer:	Benjamin P. Tabor/Tammy Winson
Filer Authorized By:	Benjamin P. Tabor
Attorney Docket Number:	LGPL.153597
Receipt Date:	12-FEB-2013
Filing Date:	29-DEC-2010
Time Stamp:	14:15:53
Application Type:	Utility under 35 USC 111(a)

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1	Issue Fee Payment (PTO-85B)	LGPL_153597_IDS_ISSUE_FEE_ TRANSMITTAL.pdf	1527320 3c996261068682a146a42345e67cf85910b d6ebe	no	1
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Information:					
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Receipt date: 05/19/2011

Doc code: IDS

Doc description: Information Disclosure Statement (IDS) Filed

12981176 - GAI: 3636

PFO/05/054 (01-10)

Approved for use through 07/31/2012. OMB 0651-0031

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INFORMATION DISCLOSURE STATEMENT BY APPLICANT (Not for submission under 37 CFR 1.99)	Application Number		12981176	
	Filing Date		2010-12-29	
	First Named Inventor	Gregory M. Lawson		
	Art Unit	3636		
	Examiner Name			
	Attorney Docket Number	LGPL.153597		

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/R.W./	1	6120095		2000-09-19	Rogers	
Change(s) applied to document /R.W./ /S.D./ 1/3/2013	2	5088473		1992 2002-02-18	Chen	
/R.W./	3	4244620		1981-01-13	Harrison, et al.	
/R.W./	4	5765913		1998-06-16	Punk LaPointe, et al.	
Change(s) applied to document /R.W./ /S.D./ 12/28/2012	5	3300243		2009-11-16 Jan. 24, 1967	Mizelle	

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APPLICATION NO.	ISSUE DATE	PATENT NO.	ATTORNEY DOCKET NO.	CONFIRMATION NO.
12/981,176	03/19/2013	8398165	LGPL.153597	6055

5251 7590 02/27/2013

SHOOK, HARDY & BACON LLP
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KANSAS CITY, MO 64108-2613

ISSUE NOTIFICATION

The projected patent number and issue date are specified above.

Determination of Patent Term Adjustment under 35 U.S.C. 154 (b) (application filed on or after May 29, 2000)

The Patent Term Adjustment is 133 day(s). Any patent to issue from the above-identified application will include an indication of the adjustment on the front page.

If a Continued Prosecution Application (CPA) was filed in the above-identified application, the filing date that determines Patent Term Adjustment is the filing date of the most recent CPA.

Applicant will be able to obtain more detailed information by accessing the Patent Application Information Retrieval (PAIR) WEB site (<http://pair.uspto.gov>).

Any questions regarding the Patent Term Extension or Adjustment determination should be directed to the Office of Patent Legal Administration at (571)-272-7702. Questions relating to issue and publication fee payments should be directed to the Application Assistance Unit (AAU) of the Office of Data Management (ODM) at (571)-272-4200.

APPLICANT(s) (Please see PAIR WEB site <http://pair.uspto.gov> for additional applicants):

Gregory M. Lawson, Tupelo, MS;

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